

CONDOMINIUM
DECLARATION

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CONDOMINIUM DECLARATION

FOR

SPRINGHART CONDOMINIUMS

Dallas County, Texas

02/13/97 2774

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SPRINGMONT CONDOMINIUMS

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CONDOMINIUM DECLARATION

FOR

SPRINGMONT CONDOMINIUMS

THE STATE OF TEXAS §
COUNTY OF DALLAS §

KNOW ALL MEN BY THESE PRESENTS:

THAT, WHEREAS U.S. HOME CORPORATION, a Delaware corporation, having its principal office at 13771 North Central Expressway, Suite 624, Dallas, Texas 75243, hereinafter called "Declarant", is the Owner of certain real property situated in the County of Dallas, State of Texas, being described more fully on Exhibit "A" which by this reference is made a part hereof; and

WHEREAS, Declarant desires to establish a Condominium Regime under the Condominium Act of the State of Texas, Article 1301a, Revised Civil Statutes of Texas, herein called the "Act"; and

WHEREAS, Declarant has prepared plans for the construction of three (3) multifamily Buildings and other improvements appurtenant thereto on the Property described in said Exhibit "A", which when completed shall consist of twenty-four (24) separately designated Condominium Units and which will be known as SPRINGMONT CONDOMINIUMS; and

WHEREAS, Declarant does hereby establish a plan for the individual ownership in fee simple of estates consisting of the area or space contained in each of the Units, herein called the "Condominium Regime", in the three (3) Buildings and the co-ownership by the individual and separate Unit Owners thereof, as tenants in common, of all the remaining property, which includes both Limited Common Elements and General Common Elements, as hereinafter defined in Paragraph 1.1 hereof, and which are hereinafter collectively referred to as the "Common Elements" or "Common Areas".

NOW, THEREFORE, Declarant does hereby submit the real property described on the attached Exhibit "A", and all improvements thereon, to the provisions of the Act and the Condominium Regime, and does hereby publish and declare that the following terms, covenants, conditions, easements, restrictions, uses, limitations and obligations shall be deemed to run with the land and shall be a burden and a benefit to Declarant, its successors and assigns and to any person acquiring or owning an interest in the real property and improvements, their grantees, successors, heirs, executors, administrators, devisees and assigns.

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ARTICLE I

DEFINITIONS AND TERMS

1.1 DEFINITIONS OF TERMS. As used in this agreement, the following terms shall have the following meanings unless the context shall expressly provide otherwise:

a. "Board" or "Board of Directors" shall refer to the Board of Directors of SPRINGMONT OWNERS ASSOCIATION, INC.

b. "Common Assessment" means the charge against each Unit Owner and his Unit, representing a portion of the total costs to the Association of maintaining, improving, repairing, replacing, managing and operating the Property, which are to be paid uniformly and equally by each Unit Owner of the Association, as provided herein. This shall also include charges assessed against each Unit Owner to maintain a reserve for replacement fund and to cover costs incurred by the Association to participate in any condemnation suit, as provided in Paragraph 6.3 hereof.

c. "Common Elements" means and includes all of the Property described in Exhibit "A", and all of the improvements thereto and thereon located, excepting all Units. Common Elements shall consist of the General Common Elements and the Limited Common Elements.

d. "Common Expenses" means and includes:

(1) All sums lawfully assessed against the Common Elements by the Managing Agent or Board;

(2) All expenses of administration and management, maintenance, operation, repair or replacement of and addition to the Common Elements (including unpaid special assessments);

(3) Expenses agreed upon as Common Expenses by the Unit Owners; and

(4) Expenses declared to be Common Expenses by this Declaration or by the By-Laws.

e. "Completed Unit" means a completely finished Unit, including, but not limited to, the installation of all appliances and utilities, rendering it ready for occupancy by an Owner other than the Declarant.

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f. "Condominium Owners Association" or "Association" means SPRINGMONT OWNERS ASSOCIATION, INC., a Texas non-profit corporation, the By-Laws of which shall govern the administration of this Condominium Property and the membership of which shall be composed of all the Owners of the Condominium Units according to such By-Laws.

g. "Condominium Unit" shall mean an individual Unit together with the interest in the Common Elements (General or Limited) appurtenant to such Unit.

h. "Construction Period" means that period of time during which Declarant is developing the Premises and selling the Condominium Units, which time period shall extend from the date hereof until such time as the Declarant transfers title to all of the Condominium Units, including all Units annexed to this Condominium Regime pursuant to the provisions of Paragraph 2.10 hereof.

i. "Declarant" shall mean U. S. HOME CORPORATION, a Delaware corporation, or its successors or assigns, who is developing the Property as a condominium.

j. "Declaration" shall mean this Condominium Declaration instrument as the same may be amended pursuant to Paragraph 2.10 hereof.

k. "General Common Elements" means a part of the Common Elements and includes:

(1) The real property described in Exhibit "A" attached hereto;

(2) All foundations, bearing walls and columns, roofs, halls, lobbies, stairways and entrances and exits or communicationways;

(3) All basements, roofs, yards and gardens, except as otherwise herein provided or stipulated;

(4) All premises for the lodging of janitors or persons in charge of the Buildings, except as otherwise herein provided or stipulated;

(5) All compartments or installations of central services, such as power, light, gas, cold and hot water, refrigeration, central air conditioning and central heating reservoirs, water tanks and pumps, swimming pool, cabana, storage space, and the like;

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(6) All elevators and shafts, garbage incinerators and, in general, all devices or installations existing for common use; and

(7) All other elements of the Buildings desirably or rationally of common use or necessary to the existence, upkeep and safety of the Condominium Regime established by this Declaration.

l. "Lienholder" and "First Mortgagee" shall mean the holder of a first mortgage lien on any Unit in the Condominium Project.

m. "Limited Common Elements" means and includes those Common Elements which are reserved for the exclusive use of an individual Owner of a Unit or a certain number of individual Owners of Units, for the exclusive use of those Owners, which may include:

(1) "Air handlers", pipes, ducts, electrical wiring and conduits located entirely within a Unit or adjoining Units and serving only such Unit or Units, and such portions of the perimeter walls, floors and ceilings, doors, vestibules, windows, entryways, and all associated fixtures and structures therein, as lie outside the Unit boundaries; and

(2) Garages designated as an appurtenance to a Unit; and

(3) Balcony or patio structures serving exclusively a single Unit or one (1) or more adjoining Units; and

(4) Separate storage area designated as an appurtenance to a Unit.

n. "Majority of Unit Owners" means those Owners with fifty-one percent (51%) of the votes entitled to be cast.

o. "Occupant" means a person or persons in possession of a Unit, regardless of whether said person is a Unit Owner.

p. "Owner" means a person, firm, corporation, partnership, association, trust or other legal entity or any combination thereof, who owns, of record, title to one (1) or more Condominium Units.

q. "Plat", "Survey Map", "Map" and "Plans" mean or include the engineering survey of the land, locating thereon all of the improvements, the floor and elevation plans and any other drawing or

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diagrammatic plan depicting a part of, or all of, the improvements, same being herewith filed, consisting of 10 sheets, labeled Exhibit "B" and incorporated herein. It is expressly agreed and each and every Purchaser of a Unit, his heirs, executors, administrators, assigns and grantees hereby agree that the square footage, size and dimensions of each Unit as set out or shown in this Declaration or in the survey Plats exhibited hereto are approximate and are shown for descriptive purposes only. The Developer does not warrant, guarantee or represent that any Unit actually contains the area, square footage or dimensions shown by the Plat thereof. Each Purchaser and Owner of a Unit or interest therein agrees that the Unit has been or will be purchased as actually and physically existing at the time such purchase is closed. Each Purchaser of a Unit expressly waives any claim or demand which he may have against the Developer or any person whosoever on account of any difference, shortage or discrepancy between the Unit as actually and physically existing and as it is shown on the respective Plat thereof exhibited hereto. It is specifically agreed that in interpreting deeds, mortgages, deeds of trust and other instruments for any purposes whatsoever or in connection with any matter, the existing physical boundaries of the Unit shall be conclusively presumed to be the boundaries regardless of settling, rising or lateral movements of the Building, and regardless of variances between boundaries as shown on the Plat and those of the Buildings.

r. "Premises", "Project" or "Property" means and includes the land, the Buildings and all improvements and structures thereon and all rights, easements and appurtenances belonging thereto.

s. "Special Assessments". In addition to the common assessments described above, the Association may levy, in any assessment year, a special assessment applicable to that year only for the purpose of deferring, in whole or in part:

(1) The cost of any construction, reconstruction, repair or replacement of a capital improvement upon the Common Area, including fixtures and personal property related thereto; or

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(2) The expense of any other contingencies or unbudgeted costs; provided that any such assessment shall have the assent of two-thirds (2/3) of the votes of the Members who are voting in person or by proxy at a meeting duly called for this purpose. Any amounts assessed pursuant hereto shall be assessed to Owners in proportion to the interest in the Common Elements owned by each. The Association, after due notice and hearing, shall also have the authority to establish and fix a special assessment upon any Unit to secure the liability of the Owner of such Unit to the Association for any breach by such Owner of any of the provisions of this Declaration, which breach shall require an expenditure by the Association for repair or remedy. Special assessments may be billed or collected on a monthly basis. The above mentioned liability of any Owner is to be established as set forth in this Declaration.

t. "Unit" shall mean the elements of an individual Condominium Unit, which are not owned in common with the Owners of the other Condominium Units in the Project as shown on the Maps, which are exhibits attached hereto, and each Unit shall include the air space assigned thereto. The boundaries of each such Unit shall be and are the interior surfaces of the perimeter wall, floors, ceilings, window frames, doors, and door frames and trim; and the space includes both the portions of the Building so described and the air space so encompassed, excepting the Common Elements. In interpreting deeds, mortgages, deeds of trust and other instruments, the existing physical boundaries of the Unit reconstructed in substantial accordance with the original plans thereof shall be conclusively presumed to be its boundaries, regardless of settling, rising or lateral movement of the Building and regardless of variances between boundaries shown on the Plat and those of the Building. The individual ownership of each Unit space herein defined shall further include the interior construction, partitions, appliances, fixtures and improvements which are intended to exclusively serve such Unit space, such as interior room walls, P. 52

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floor coverings or finish, closets, cabinets, shelving, individual bathroom and kitchen fixtures, plumbing and appliances, individual lighting and electrical fixtures and other separate items or chattels belonging exclusively to such Unit, any of which may be removed, replaced, disposed of or otherwise treated without affecting any other Unit space or ownership, use or enjoyment thereof. None of the land in this Project on which any Unit space or porch space is located shall be separately owned, as all land in this Project shall constitute part of the "Common Elements" of the Property as herein defined, and shall be owned in common by the Owners of the Units in this Condominium Project. It is intended the term "Unit", as used in this Declaration, shall have the same meaning as the term "Apartment" as used in the Act.

ARTICLE II

CONDOMINIUM UNIT DESIGNATIONS AND DESCRIPTIONS

2.1 RECORDATION OF PLAT. The Plat shall be filed for record simultaneously with the recording of this Declaration as a part hereof, and prior to the first conveyance of any Condominium Unit. Such Plat consists of and sets forth:

- a. The legal description of the surface of the land;
- b. The linear measurements and location, with reference to the exterior boundaries of the land, of the Buildings and all other improvements constructed, or to be constructed, on said land by Declarant;
- c. The exterior boundaries and number of each Unit, expressing its square footage, and any other data necessary for its identification, which information will be depicted by a Plat of such floor of each Building showing the letter of the Building, the number of the floor and the number of the Unit; and
- d. The location of the Limited Common Elements.

2.2 DESIGNATION OF UNITS. The Property is hereby divided into twenty-four (24) separately designated Units contained within the three (3) Buildings. Each Unit is identified by number and each Building is identified by letter on the Map. The remaining portion of the Premises, referred to as the Common Elements, shall be owned in common by the Owners. The Owners of

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each Unit shall own an undivided interest in said Common Elements, the percentage or fraction thereof for each Unit being as shown on the attached Exhibit "C".

2.3 LIMITED COMMON ELEMENTS. Portions of the Common Elements are set aside and reserved for the exclusive use of the individual Owners, such areas being Limited Common Elements. The Limited Common Elements reserved for the exclusive use of the individual Owners are the garages, patio and balcony structures, and separate storage spaces. Such spaces and structures are allocated and assigned by the Declarant to the respective Units, as indicated on the Plat. Such Limited Common Elements shall be used in connection with the particular Unit, to the exclusion of the use thereof by the other Owners, except by invitation.

2.4 REGULATION OF COMMON AREAS. Portions of the Common Areas are intended as recreation areas, and are improved with green areas, swimming pool, cabana, and other facilities. Reasonable regulations governing the use of such facilities by Owners and by their guests and invitees shall be promulgated by the Declarant, or by the Board of Directors of the Association after the same has been elected. Such regulations shall be permanently posted at the office and/or elsewhere in said recreational areas, and all Owners shall be furnished with a copy thereof. Each Owner shall be required to strictly comply with said Rules and Regulations, and shall be responsible to the Association for the compliance therewith by the members of their respective families, relatives, guests or invitees, both minor and adult.

2.5 INSEPARABLE UNITS. Each Unit and its corresponding pro-rata interest in and to the Common Elements appurtenant thereto shall be inseparable and may not be conveyed, leased or encumbered separately, and shall at all times remain indivisible.

2.6 DESCRIPTIONS. Every deed, lease, mortgage, trust deed or other instrument may legally describe a Condominium Unit by its identifying Building letter and Unit number, as shown on the Map, followed by the words SPRINGMONT CONDOMINIUMS and by reference to this recorded Declaration and Map. Every such description shall be deemed good and sufficient for all purposes to convey, transfer, encumber or otherwise affect the Common Elements.

2.7 ENCROACHMENTS. If any portion of the Common Elements encroaches upon a Unit or Units, a valid easement for the encroachment and for the maintenance of same, so long as it stands, shall and does exist. If any

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portion or portions of a Unit or Units encroach upon the Common Elements, a valid easement for the encroachment and for the maintenance of same, so long as it stands, shall and does exist. A valid easement also exists to that portion of the General Common Elements and of the Limited Common Elements occupied by any part of an Owner's Unit not contained within the physical boundaries of such Unit, including, but not limited to, space occupied by heating and air conditioning equipment, utility lines and similar equipment which serves only one (1) Unit. For title or other purposes, such encroachments and easements shall not be considered or determined to be encumbrances either on the Common Elements or the individual Units.

2.8 GOVERNMENTAL ASSESSMENT. Declarant shall give written notice to the Assessor's Office of the creation of Condominium Ownership of this Property, as is provided by law, so that each Unit and its percentage or fraction of undivided interest in the Common Elements shall be deemed a separate parcel and subject to separate assessment and taxation.

2.9 USE AND OCCUPANCY RESTRICTIONS.

a. Subject to the provisions of this Declaration and By-Laws, no part of the Property may be used for purposes other than housing and the related common purposes for which the Property was designed. Each Unit or any two (2) or more adjoining Units used together shall be used for residential purposes or such other uses permitted by this Declaration, and for no other purposes. The foregoing restrictions as to residence shall not, however, be construed in such manner as to prohibit a Unit Owner from:

(1) Maintaining his personal professional library;

(2) Keeping his personal business or professional records or accounts; or

(3) Handling his personal business or professional telephone calls or correspondence, which uses are expressly declared customarily incidental to the principal residential use and not in violation of said restrictions.

b. That part of the Common Elements separating and located between and exclusively serving two (2) or more adjacent Units used together (including, without limitation, portions of any hallway and any walls) may be altered with written consent of the Board, as provided in Paragraph 3.8 herein, to afford ingress to and egress

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from such Units and to afford privacy to the Occupants of such Units when using such Common Elements, and that part of the Common Elements so altered may be used by the Unit Owner or Owners of such Units as a licensee pursuant to a license agreement with the Association, provided:

(1) The expense of making such alterations shall be paid in full by the Unit Owner or Owners making such alterations;

(2) Such Unit Owner or Owners shall pay in full the expense of restoring such Common Elements to their condition prior to such alteration in the event such Units shall cease to be used together, as aforesaid; and

(3) Such alteration shall not interfere with use and enjoyment of the Common Elements (other than the aforesaid part of the Common Elements separating such adjacent Units), including, without limitation, reasonable access and ingress to and egress from the other Units in the hallway affected by such alteration.

c. The Common Elements shall be used only by the Unit Owners and their agents, servants, tenants, family members, customers, invitees and licensees for access, ingress to and egress from the respective Units and for other purposes incidental to use of the Units; provided, however, receiving rooms, storage space, cabana, swimming pool, and any other areas designed for specific use shall be used for the purposes approved by the Board.

d. The use, maintenance and operations of the Common Elements shall not be obstructed, damaged or unreasonably interfered with by any Unit Owner, and may be subject to lease, concession or easement, presently in existence or entered into by the Board at some future time.

e. Without limiting the generality of the foregoing provisions of this Paragraph 2.9, use of the Property by the Unit Owners shall be subject to the following restrictions:

(1) Nothing shall be stored in the Common Elements without prior consent of the Board, except in storage areas or as otherwise herein expressly provided;

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(2) Nothing shall be done or kept in any Unit or in the Common Elements which will increase the rate of insurance for the Property without the prior written consent of the Board. No Unit Owner shall permit anything to be done or kept in his Unit or the Common Elements which will result in the cancellation of insurance on any Unit, or any part of the Common Elements, or which will be in violation of any law;

(3) No waste shall be committed in or on the Common Elements;

(4) Subject to Declarant's rights under Paragraph 2.9e(14)(d) of this Declaration, no sign of any kind shall be displayed to the public view on or from any Unit or Common Elements without the prior written consent of the Board or the written consent of the Managing Agent acting in accord with the Board's direction;

(5) No noxious or offensive activity shall be carried on, in or upon the Common Elements, nor shall anything be done therein which may be or become an unreasonable annoyance or a nuisance to any other Unit Owner. No loud noises or noxious odors shall be permitted on the Property, and the Board shall have the right to determine in accordance with the By-Laws if any such noise, odor or activity constitutes a nuisance. Without limiting the generality of any of the foregoing provisions, no exterior speakers, horns, whistles, bells or other sound devices (other than security devices used exclusively for security purposes), noisy or smoky vehicles, large power equipment or large power tools, unlicensed off-road motor vehicles or other items which may unreasonably interfere with television or radio reception of any Unit Owner in the Property, shall be located, used or placed on any portion of the Property or exposed to the view of other Unit Owners without the prior written approval of the Board;

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(6) Except as expressly provided hereinabove, nothing shall be altered or constructed in or removed from the Common Elements, except upon the written consent of the Board;

(7) No structure of a temporary character, trailer, tent, shack, garage, barn or other outbuildings shall be permitted on the Property at any time temporarily or permanently, except with the prior written consent of the Board; provided, however, that temporary structures may be erected for use in connection with the repair or rebuilding of the Buildings or any portion thereof;

(8) No rubbish, trash or garbage or other waste material shall be kept or permitted upon any Unit or the Common Elements, except in sanitary containers located in appropriate areas screened and concealed from view, and no odor shall be permitted to arise therefrom so as to render the Property or any portion thereof unsanitary, unsightly, offensive or detrimental to any other Property in the vicinity thereof or to its Occupants. There shall be no exterior fires whatsoever except barbecue fires contained within receptacles designed in such a manner that no fire hazard is created. No clothing or household fabrics shall be hung, dried or aired in such a way in the Property as to be visible to other Property and no lumber, grass, shrub or tree clippings, plant waste, metals, bulk material, scrap, refuse or trash shall be kept, stored or allowed to accumulate on any portion of the Property, except within an enclosed structure or if appropriately screened from view;

(9) No Unit Owner shall park, store or keep any vehicle, except wholly within the parking space designated therefor, and any inoperable vehicle shall not be stored in a parking space or within the Common Elements in general. No Unit Owner shall park, store or keep within or adjoining the Property any large commercial-type vehicle (dump truck, cement-mixer truck, oil or gas truck, etc.).

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delivery truck and any other vehicle equipment, mobile or otherwise, deemed to be a nuisance by the Board), or any recreational vehicle (camper unit, motor home, truck, trailer, boat, mobile home or other similar vehicle deemed to be a nuisance by the Board). No Unit Owner shall conduct major repairs or major restorations of any motor vehicle, boat, trailer, aircraft or other vehicle upon any portion of the Common Elements. Parking spaces shall be used for parking purposes only;

(10) Except within individual Units, no planting, transplanting or gardening shall be done, and no fences, hedges or walls shall be erected or maintained upon the Property, except as approved by the Board;

(11) Motorcycles, motorbikes, motor scooters or other similar vehicles shall not be operated within the Property except for the purpose of transportation directly from a parking space to a point outside the Property, or from a point outside the Property directly to a parking space;

(12) No animals, livestock, reptiles, or poultry of any kind shall be raised, bred or kept in any Unit or the Common Elements. Dogs, cats, fish, birds and other household pets may be kept in Units subject to rules and regulations adopted by the Association, provided they are not kept, bred or maintained for commercial purposes or in unreasonable quantities. As used in this Declaration, "unreasonable quantities" shall ordinarily mean more than two (2) pets per household; provided, however, the Association may determine a reasonable number in any instance to be more or less, and the Association may limit the size and weight of any household pets allowed. The Association, acting through the Board, shall have the right to prohibit maintenance of any animal which constitutes, in the opinion of the Board, a nuisance to any other Unit Owner. Animals belonging to Unit Owners, Occupants or their licensees, tenants or invitees within the Property must be kept either within an enclosure, an

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enclosed patio or on a leash being held by a person capable of controlling the animal. The enclosure must be so maintained that the animal cannot escape therefrom and shall be subject to the approval of the Board. Should any animal belonging to a Unit Owner be found unattended out of the enclosure and not being held on a leash by a person capable of controlling the animal, such animal may be removed by Declarant (for so long as it has control over the Association) or a person designated by Declarant to do so, and subsequent thereto by the Association or its Managing Agent, to a pound under the jurisdiction of the local municipality in which the Property is situated and subject to the laws and rules governing said pound, or to a comparable animal shelter. Furthermore, any Unit Owner shall be absolutely liable to each and all remaining Unit Owners, their families, guests, tenants and invitees, for any unreasonable noise or damage to person or property caused by any animals brought or kept upon the Property by a Unit Owner or members of his family, his tenants or his guests; and it shall be the absolute duty and responsibility of each such Unit Owner to clean up after such animals which have used any portion of the Common Elements;

(13) No Unit Owner shall be permitted to lease his Unit for hotel or transient purposes, which, for purposes of this paragraph is defined as a period less than thirty (30) days. No Unit Owner shall be permitted to lease less than the entire Unit. Every such lease shall be in writing. Every such lease shall provide that the lessee shall be bound by and subject to all of the obligations under the Declaration and By-Laws, of the Unit Owner making such lease and failure to do so shall be a default thereunder. The Unit Owner making such lease shall not be relieved thereby from any of said obligations; and

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(14) In order that Declarant may establish the Property as a fully occupied Condominium, no Unit Owner nor the Association shall do anything to interfere with, and nothing in the Declaration shall be understood or construed to:

(a) Prevent Declarant, its successors or assigns, or its or their contractors or subcontractors, from doing in any Unit owned by them whatever they determine to be necessary or advisable in connection with the completion of any work thereon;

(b) Prevent Declarant, its successors or assigns, or its or their representatives, from erecting, constructing and maintaining on the Common Elements or any Unit owned or controlled by Declarant, its successors or assigns, or its or their contractors or subcontractors, such structures as may be reasonably necessary for the conduct of its or their business of completing any work and establishing the Property as a Condominium and disposing of the same by sale, lease or otherwise;

(c) Prevent Declarant, its successors or assigns, or its or their representatives, from maintaining a Sales Office and maintaining and showing model Units to aid in the marketing of the Units during the Construction Period; or

(d) Prevent Declarant, its successors or assigns, or its or their contractors or subcontractors, from maintaining such sign or signs for marketing of Units in the Property.

2.10 RESERVATION OF RIGHT OF MERGER AND ANNEXATION.

a. For a period of five (5) years from the date of recordation of this Declaration, the Declarant reserves the right, authority and power to annex tracts out of the adjoining land described in the attached Exhibit "D" for the purpose of

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establishing, annexing and merging additional Condominium Regimes. It is contemplated that Declarant will annex fifty-four (54) additional Units to the Project, but nothing contained herein shall restrict Declarant to this number of Units or obligate Declarant to annex this number of Units. The respective Regimes may be created simultaneously or staggered and, shall conform in basic respects to the general restrictions, limitations and benefits contained in this Declaration. The intended improvements in the future annexation tracts must be substantially completed prior to annexation. Upon the recordation of Condominium Declaration Supplements or Declarations of Annexation and Merger in compliance with Paragraph 2.10, this Declaration shall further apply to and affect all of the Property described in this Declaration and the Property described in such Declaration Supplements or Declarations of Annexation and Merger, and shall also bind all Owners of any part of the subsequent Regimes with the same effect as if the Regimes were originally subject to and described in this Declaration. Thereafter, the powers and responsibilities of the Board and Association shall be coextensive with regard to all Property included within the expanded Condominium and the Board and Association shall, pursuant to the provisions of this Declaration, constitute the Board and Association for the entire Condominium, as expanded. The rights, obligations and duties of each Owner shall be the same and identical to the rights, obligations and duties of the Owners prior to recordation of such Declaration Supplements or Declarations of Annexation and Merger, except as each Owner's percentage or fraction of ownership interest may be modified as herein provided.

b. The Association shall continue to maintain one (1) Common Expense Fund for the collection and disbursement of monies as required and permitted hereby for the maintenance, repair, replacement and operation of the expanded Condominium and in all respects and meanings, the Condominium, as expanded, shall be deemed to be a single Condominium Project for the purposes of and in accordance with the provisions of this Declaration and the Act.

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c. Any annexation and merger shall entail Buildings, amenities and Units of comparable design, size and quality and shall be accomplished by the filing of appropriate Declaration Supplements or Condominium Declarations of Annexation and Merger. Said documents shall be recorded in the Condominium Records of Dallas County, Texas, which will, inter alia:

(1) Be executed by only the Declarant or its successors or assigns;

(2) Contain a legal description of the land to be annexed to the Condominium;

(3) Contain a sufficient description of the Units built or to be built on the annexed land;

(4) Contain a reallocation of percentage or fraction of ownership interest in the Common Areas (as expanded by annexation) among all Units in the Condominium. Such reallocation will be calculated by determining the square footage of the individual Units in proportion to the new total square footage of all the Units; and

(5) Any other information required by law or necessary to effectuate the intent of this Article.

d. This Declaration, including, but not limited to this Paragraph 2.10, does not presently create any interest in or with respect to the Property shown as Exhibit "D" which may be annexed, and this Declaration shall not affect in any manner all or any part of such Property unless and until a Supplemental Declaration or Declaration of Annexation and Merger is filed thereto in accordance with this Paragraph 2.10.

e. Notwithstanding any other provision of this Declaration to the contrary, the Declarant shall obtain the approval of the Veterans Administration for any annexation or merger should Declarant elect to get the approval of the Veterans Administration for the Project. However, failure to obtain the approval of the Veterans Administration shall not render any Supplemental Declaration or Declaration of Annexation and Merger void or otherwise affect the legal standing of the annexed Property.

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ARTICLE III

RIGHTS AND OBLIGATIONS OF OWNERSHIP

3.1 OWNERSHIP. A Condominium Unit will be a fee simple estate and may be held and owned by any person, firm, corporation or other entity singularly, as joint tenants, as tenants in common, or in any real property tenancy relationship recognized under the laws of the State of Texas.

3.2 PARTITION. The Common Elements (both General and Limited) shall be owned in common by all of the Owners of the Condominium Units and shall remain undivided, and no Owner shall bring any action for partition or division of the Common Elements other than that as specifically provided for hereinafter in Paragraph 6.2, "Judicial Partition". Nothing contained herein shall be construed as limitation of the right of partition of a Condominium Unit between the Owners thereof, but such partition shall not affect any other Condominium Unit.

3.3 EXCLUSIVENESS OF OWNERSHIP. Each Owner shall be entitled to exclusive ownership and possession of his Unit. Each Owner may use the Common Elements in accordance with the purposes for which they are intended, without hindering or encroaching upon the lawful rights of the other Owners.

3.4 ONE-FAMILY RESIDENTIAL DWELLING. Each Condominium Unit shall be occupied and used or leased by the Owner only as and for a residential dwelling for the Owner, his family, his social guests or his tenants.

3.5 MECHANIC'S AND MATERIALMAN'S LIENS. No labor performed or materials furnished and incorporated in a Unit, notwithstanding the consent or request of the Owner, his agent, contractor or subcontractor, shall be the basis for filing of a lien against the Common Elements owned by such other Owners. Each Owner shall indemnify and hold harmless each of the other Owners from and against all liability arising from the claim of any lien against the Unit of any other Owner or against the Common Elements for construction performed or for labor, materials, services or other products incorporated in the Owner's Unit at such Owner's request.

3.6 RIGHT OF ENTRY. The Association shall have the irrevocable right to have access to each Unit from time to time during reasonable hours as may be necessary for the maintenance, repair or replacement of any of the Common Elements therein or accessible therefrom, or at any time for making emergency repairs therein necessary to prevent damage to the Common Elements or to another Unit or Units.

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3.7 OWNER MAINTENANCE. An Owner shall maintain and keep in repair the interior, patio and/or balcony space, garage, and storage space of his own Unit, including the fixtures thereof. All fixtures and equipment installed with the Unit, commencing at a point where the utility lines, pipes, wires, conduits or systems (which for brevity are hereafter referred to as "utilities") enter the Unit, shall be maintained and kept in repair by the Owner thereof; and an Owner shall be obliged to promptly repair and replace any broken or cracked glass in windows and doors. An Owner shall be totally responsible for his own heating and cooling system.

3.8 ALTERATION. An Owner shall do no act nor any work that will impair the structural soundness and integrity of the Building or impair any easement or hereditament. No Owner shall in any way alter, modify, add to or otherwise perform any work whatever upon any of the Common Elements, Limited or General, without the prior written consent and approval in writing by the Board of Directors. Any such alteration or modification shall be in harmony with the external design and location of the surrounding structures and topography, and shall not be considered until submission to the Association of complete plans and specifications showing the nature, kind, shape, size, materials, color and location for all proposed work. The Board shall have the obligation to answer within thirty (30) days after receipt of notice of the proposed alterations. Failure to so answer within the stipulated time shall mean that there is no objection to the proposed alteration or modification. During the Construction Period, Declarant shall have the sole right to approve or reject any plans and specifications submitted for consideration by an Owner.

3.9 RESTRICTION OF OWNERSHIP. As a restriction of the ownership provisions set forth in Paragraph 1.1c, "Unit", an Owner shall not be deemed to own the unfinished surfaces of the perimeter walls, floors ceilings and roofs surrounding his Unit, nor shall such Owner be deemed to own the utilities running through his Unit which are utilized for, or serve, more than one (1) Unit, except as a tenant in common with the other Owners. An Owner shall be deemed to own and shall maintain the inner, finished surfaces of the perimeter and interior walls, floors and ceilings, doors, windows and other such elements consisting of paint, wallpaper and other such finishing material.

3.10 LIABILITY FOR NEGLIGENT ACTS. In the event the need for maintenance or repair is caused through the willful or negligent act of an Owner, his family, guests or invitees, and is not covered or paid for by insurance either

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on such Unit or the Common Elements, the cost of such maintenance or repairs shall be added to and become a part of the assessment to which such Unit is subject, pursuant to Article IV hereof. Such liability is limited to the liability Owner has under Texas law.

3.11 SUBJECT TO DECLARATION AND BY-LAWS. Each Owner and the Association shall comply strictly with the provisions of this Declaration, the By-Laws and the decisions and resolutions of the Association adopted pursuant thereto, as the same may be lawfully amended from time to time. Failure to comply with any of the same shall be grounds for an action to recover sums due for damages or for injunctive relief, or both, maintainable by the Association on behalf of the Owners or, in proper case, by an aggrieved Owner against another Owner or against the Association.

ARTICLE IV

MANAGEMENT AND ADMINISTRATION

4.1 BY-LAWS. The administration of this Condominium Property shall be governed by the By-Laws of SPRINGMONT OWNERS ASSOCIATION, INC., a non-profit corporation, referred to herein as the "Association". An Owner of a Condominium Unit, upon becoming an Owner, shall be a Member of the Association and shall remain a Member for the period of his ownership. The Association shall be managed by a Board of Directors, duly appointed or elected, pursuant to the terms and conditions of the By-Laws. In addition, the Association may enter into a management agreement upon the terms and conditions established in the By-Laws, and said management agreement shall be consistent with this Declaration.

4.2 DECLARANT CONTROL. Paragraph 4.1 notwithstanding, and for the benefit and protection of the Unit Owners and any First Mortgagees of record for the sole purpose of insuring a complete and orderly buildout as well as a timely sellout of the Condominium Project, including any annexations as provided in Paragraph 2.10, the Declarant will retain control of and over the Association for a maximum period not to exceed January 1, 1987, or upon the sale of seventy-five percent (75%) of the Units, including any annexations, or when in the sole opinion of the Declarant, the Project becomes viable, self-supporting and operational, whichever occurs first (1st). It is expressly understood, the Declarant will not use said control for any advantage over the Unit Owners by way of retention of any residual rights or

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interests in the Association or through the creation of any management agreement with a term longer than three (3) years without majority Association approval upon relinquishment of Declarant control. Should Declarant elect not to annex any of the adjoining tracts, then its control shall extend no longer than three (3) years from the recordation of this Condominium Declaration. Thereafter, Declarant control shall extend no longer than one (1) year from the date of the recordation of the first (1st) sale in the subsequent phases on the aforesaid and respective adjoining tracts. In no event shall control extend beyond January 1, 1987, if all proposed phases are annexed and incorporated hereinto by merger. At the end of the Declarant Control Period, the Declarant, through the Board of Directors, shall call the first (1st) annual meeting of the Association.

4.3 TEMPORARY MANAGING AGENT. During the period of administration of this Condominium Regime by Declarant, the Declarant may employ or designate a temporary manager or managing agent, who shall have and possess all of the rights, powers, authority, functions and duties as may be specified in the contract of employment or as may be delegated by Declarant to him, except for the right to effect improvements or repairs. The Declarant may pay such temporary manager or managing agent such compensation as it may deem reasonable for the services to be rendered, which compensation shall constitute a part of the Common Expenses of this Condominium Regime and shall be paid out of the Association budget.

4.4 SPECIFIC POWER TO RESTRICT USE AND ENJOYMENT. Every Owner and the Declarant shall have a beneficial interest of use and enjoyment in the Common Elements subject to the following limitations, restrictions and provisions:

a. The right of the Association to publish rules and regulations governing use of the Common Areas and the improvements and facilities located thereon, and to establish and enforce penalties for infractions thereof;

b. The right of the Association to charge reasonable fees for the use of facilities within the Common Area, if such facilities are not used by all Members equally;

c. The right of the Association, subsequent to the Declarant Control Period, to borrow money and mortgage the Common Area and improvements for the purpose of improving the Common Area and facilities and in aid thereof to mortgage said property; providing,

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however, that the rights of any such Mortgagee in such property shall be subordinate to the rights of the Owners hereunder, and in no event shall any such Mortgagee have the right to terminate the Condominium Regime established by this Declaration;

d. The right and duty of the Association to suspend the voting rights and the right to the use of the recreational facilities by an Owner for any period during which any assessment against the Owner's Condominium Unit remains unpaid;

e. The right of Declarant or the Association after the Declarant Control Period to dedicate or transfer all or any part of the Common Area for utility easements to any public agency, authority or utility for the purposes, and subject to the conditions, of such agency, authority or utility. No such dedication or transfer shall be effective unless approved by all First Mortgagees and two-thirds (2/3) vote of the quorum of Owners present at a meeting of the Association specifically called for the purpose of approving any such dedication or transfer, and unless an instrument signed by the Board of Directors reflecting such vote of the Owners agreeing to such dedication or transfer and First Mortgagee approval has been duly recorded in the Condominium Records of Dallas County, Texas;

f. The right of the Association to adopt, implement and maintain a private security system for the Premises consistent with applicable laws;

g. The right of the Association to establish rules and regulations governing traffic within the Common Area, and to establish sanctions for any violation or violations of such rules and regulations;

h. The right of the Association to regulate noise within the Premises, including, without limitation, the right of the Association to require mufflers on engines and to prohibit the use of devices producing excessive noise; and

i. The right of the Association to control the visual attractiveness of the property, including, without limitation, the right to require Owners to eliminate objects which are visible from the Common Area and which, in the Association's judgment, detract from the visual attractiveness of the Property.

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4.5 MEMBERSHIP, VOTING, QUORUM, PROXIES.

a. Membership. Any person on becoming an Owner of a Condominium Unit shall automatically become a Member of the Association. Such membership shall terminate without any formal Association action whenever such person ceases to own a Condominium Unit, but such termination shall not relieve or release any such former Owner from any liability or obligation incurred under or in any way connected with SPRINGMONT CONDOMINIUMS during the period of such ownership and membership of the Association, or impair any rights or remedies which the Board of Directors of the Association or others may have against such former Owner and Member arising out of or in any way connected with such ownership and membership and the covenants and obligations incident thereto. No certificates of stock shall be issued by the Association, but the Board of Directors may, if it so elects, issue one (1) membership card to the Owner(s) of a Condominium Unit. Such membership card shall be surrendered to the Secretary whenever ownership of the Condominium Unit designated thereon shall terminate.

b. Voting. Unit ownership shall entitle the Owner(s) to cast one (1) vote per Unit in the affairs of the Association, which vote will be weighted to equal the proportionate share of ownership of the Unit Owner in the Common Elements. Voting shall not be split among more than one (1) Unit Owner. The present number of votes that can be cast by the Unit Owners is twenty-four (24). Should additional property be annexed in accordance with Paragraph 2.10 hereof, the total number of votes shall be increased accordingly, and the weighted average adjusted to total one hundred percent (100%).

c. Quorum. The majority of the Unit Owners as defined in Article I shall constitute a quorum.

d. Proxies. Votes may be cast in person or by proxy. Proxies may be filed with the Secretary before the appointed time of each meeting.

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4.6 INSURANCE.

a. The Association shall obtain and maintain at all times insurance of the type and kind provided hereinafter, including such other risks, of a similar or dissimilar nature, as are or shall hereafter customarily be covered with respect to any Condominium Buildings, fixtures, equipment and personal property, similar in construction, design and use, issued by responsible insurance companies authorized to do business in the State of Texas. The insurance shall be carried in blanket policy form naming the Association and all Mortgagees as the insured. In addition, each policy or policies shall identify the interest of each Condominium Unit Owner and shall provide for a standard, noncontributory mortgage clause in favor of each First Mortgagee. Further, the policy shall insure against loss or damage by fire, vandalism, malicious mischief or such other hazards as are covered under standard extended coverage provisions for the full insurable replacement cost of the Common Elements and the Units, and against such other hazards and for such amounts as the Board may deem advisable. Each Owner irrevocably designates the Owners Association, as Attorney In Fact, to administer and distribute such proceeds as is elsewhere provided in this Declaration. Such insurance policy shall also provide that it cannot be cancelled by either the insured or the insurance company until after thirty (30) days prior written notice to each First Mortgagee. The Board of Directors shall, upon request of any First Mortgagee, furnish a certified copy of each blanket policy and a separate certificate identifying the interest of the Mortgagor.

b. The Association shall keep a comprehensive policy or policies of public liability insurance covering the Common Elements of the Project and such policy or policies shall include a "Severability of Interest Endorsement" or equivalent coverage which will preclude the insurer from denying the claim of a Unit Owner because of negligent acts by the Association, its Board of Directors or a Unit Owner. Such policy or policies shall be in amounts of not less than One Hundred Thousand Dollars (\$100,000.00) per person, Three Hundred Thousand Dollars (\$300,000.00) per accident and Fifty

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Thousand Dollars (\$50,000.00) property damage, plus an umbrella policy for not less than One Million Dollars (\$1,000,000.00) for all claims for personal injury, including death, and/or property damage arising out of a single occurrence; and the policy shall include water damage liability, liability for non-owned and hired automobiles, liability for property of others and such other coverage as is customarily deemed necessary with respect to projects similar in nature.

c. The Association shall keep a policy or policies of (i) liability insurance insuring the Board of Directors, officers and employees of the Association against any claims, losses, liabilities, damages or causes of action arising out of, or in connection with, or resulting from any act done or omission to act by any such person or entities, (ii) workmen's compensation as required under the laws of the State of Texas, and (iii) such other insurance as deemed reasonable and necessary in order to protect the Project, the Unit Owners and the Association.

d. The Association shall be responsible for obtaining insurance upon the Units, including all fixtures, installations or additions thereto contained within the unfinished interior surfaces of the perimeter walls, floors and ceilings of such Unit, as initially installed or replacements thereof. The Association shall not be responsible for procurement or maintenance of any insurance covering the liability of any Unit Owner not caused by or connected with the Association's operation or maintenance of the Project. Each Unit Owner may obtain additional insurance at his own expense for his own benefit. Insurance coverage on the furnishings and other items of personal property belonging to a Unit Owner and casualty and public liability insurance coverage within each Unit are specifically made the responsibility of each Unit Owner, and each Unit Owner must furnish a copy of his insurance policy to the Association.

e. Any insurance obtained by the Association or a Unit Owner shall contain appropriate provisions whereby the insurer waives its right of subrogation as to any claims against the Unit Owners, Association or their respective servants, agents or guests.

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ARTICLE V

MAINTENANCE ASSESSMENTS

5.1 ASSESSMENTS FOR COMMON EXPENSES. All Owners shall be obligated to pay the estimated assessments imposed by the Association to meet the Common Expenses. Assessments for the estimated Common Expenses shall be due monthly in advance on or before the first (1st) day of each month. Failure to pay by the fifteenth (15th) day of each month shall require the imposition and assessment of a late charge of Five Dollars (\$5.00). Contribution for monthly assessments shall be prorated if the ownership of a Condominium Unit commences on a day other than the first (1st) day of a month.

5.2 PURPOSE OF ASSESSMENTS. The assessments levied by the Association shall be used exclusively for the purposes of promoting the health, safety, welfare and recreation of the residents in the Property, and in particular for the improvement, maintenance and preservation of the Property, the services and the facilities devoted to said purposes that are related to the use and enjoyment of both the Common Elements and the Units situated upon the Property. Such uses may include, but are not limited to, the cost to the Association of the following: all insurance, repair, replacement and maintenance of the Common Elements; fire, extended coverage, vandalism, malicious mischief and liability insurance for the Condominium Units; management costs, taxes, legal and accounting fees as may from time to time be authorized by the Association; construction of other facilities; maintenance of easements upon, constituting a part of, appurtenant to or for the benefit of the Property; mowing grass, caring for the grounds and landscaping; caring for the swimming pool and equipment, cabana, and storage space; roofs and exterior surfaces of all Buildings and garages; garbage pickup; pest control; street maintenance; outdoor lighting; security service for the Property; water and sewer service furnished to the Property by or through the Association; discharge of any liens on the Common Elements; and other charges required by this Condominium Declaration, or other charges that the Association is authorized to incur. In addition, the Association shall establish a reserve for repair, maintenance and other charges as specified herein.

5.3 DETERMINATION OF ASSESSMENTS. The assessments shall be determined by the Board of Directors based upon the cash requirements necessary to provide for the payment of all estimated expenses growing out of or connected

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5.5 SPECIAL ASSESSMENTS FOR IMPROVEMENTS. Subsequent to the Declarant Control Period and in addition to the annual assessments authorized above, at any time the Association may levy in any calendar year a special assessment applicable to that year only, for the purpose of defraying, in whole or in part, the cost of any construction or reconstruction, repair or replacement of improvements upon the Common Area, including the necessary fixtures and personal property related thereto, provided that any such assessment shall be approved by a two-thirds (2/3) vote of the quorum of Owners voting in person or by proxy at a meeting duly called for this purpose. The Declarant will be treated as all other Unit Owners for purposes of special assessments.

5.6 COMMENCEMENT OF ASSESSMENTS. The monthly assessments provided for herein shall be due on the first (1st) day of the month. The assessments shall be prorated if the ownership of a Unit commences on a day other than the first (1st) day of the month. On Units owned by the Declarant, the assessment shall commence on the first (1st) day of the month after the Declarant Control Period is terminated, or the first (1st) day of the month following the transfer to the Association of the responsibility for maintenance of the Building in which the Unit is located in accordance with Paragraph 5.11 herein. The Board shall fix the amount of the monthly assessments against such Unit at least thirty (30) days prior to January 1st of each year; provided, however, that the Board shall have a right to adjust the monthly assessments, as long as any such adjustment does not exceed the maximum permitted hereunder, with thirty (30) days' written notice given to each Owner. Written notice of the monthly assessment adjustment shall be sent to every Owner subject thereto. The due date shall be established by the Board, and unless otherwise provided or unless otherwise agreed by the Association, the Board shall collect the assessments monthly in accordance with Paragraph 5.1 hereof.

5.7 NO EXEMPTION. No Owner may exempt himself from liability for his contribution towards the Common Expenses by waiver of the use or enjoyment of any of the General or Limited Common Elements or by abandonment of his Unit.

5.8 LIEN FOR ASSESSMENTS.

a. All sums assessed but unpaid by a Unit Owner for its share of Common Expenses chargeable to its respective Condominium Unit, including interest thereon at ten percent (10%) per annum, shall constitute a lien on such Unit superior (prior) to all other liens and encumbrances, except only for:

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(1) All taxes and special assessments levied by governmental and taxing authorities; and

(2) All liens securing sums due or to become due under any duly recorded first mortgage vendor's lien or first mortgage deed of trust.

b. To evidence such lien the Association may, but shall not be required to, prepare written notice setting forth the amount of such unpaid indebtedness, the name of the Owner of the Condominium Unit and a description of the Condominium Unit. Such notice shall be signed by one (1) of the Board of Directors and may be recorded in the Office of the Clerk and Recorder of Dallas County, Texas. Such lien for the Common Expenses shall attach from the date of the failure of payment of the assessment. Such lien may be enforced by foreclosure of the defaulting Owner's Condominium Unit by the Association. Any such foreclosure sale is to be conducted in accordance with the provisions applicable to the exercise of powers of sale in mortgages and deeds of trust, as set forth in Article 3810 of the Revised Civil Statutes of the State of Texas, or in any manner permitted by law. Each Owner, by accepting a deed to his Unit, expressly grants to the Association a power of sale, as set forth in said Article 3810, in connection with the assessment lien. In any such foreclosure, the Owner shall be required to pay the costs and expenses of such proceedings, the costs and expenses for filing the notice or claim of lien and all reasonable attorney's fees. The Owner shall also be required to pay to the Association a reasonable rental for the Condominium Unit during the period of foreclosure, and the Association shall be entitled to a receiver to collect same. The Association shall have the power to bid in the Condominium Unit at foreclosure sale and to acquire and hold, lease, mortgage and convey same.

c. The amount of the Common Expenses assessed against each Condominium Unit shall also be a debt of the Owner thereof at the time the assessment is made. Suit to recover a money judgment for unpaid Common Expenses shall be maintainable without foreclosing or waiving the lien securing same.

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d. In addition, to the extent permitted by law, Declarant reserves and assigns to the Association, without recourse, a vendor's lien against each Unit to secure payment of a common assessment or special assessment which is levied pursuant to the terms hereof. Said liens may be enforced by appropriate judicial proceedings and the expenses incurred in connection therewith, including, but not limited to, interest, costs and reasonable attorney's fees, shall be chargeable to the Owner in default. Such lien shall be subordinated and inferior to those liens listed in Subparagraphs 5.8a(1) and (2).

e. Any encumbrancer holding a lien on a Condominium Unit may pay any unpaid Common Expense payable with respect to such Unit, and upon such payment, such encumbrancer shall have a lien on such Unit for the amount paid of the same rank as the lien of his encumbrance.

5.9 SUBORDINATION OF THE LIEN TO MORTGAGES. The lien of the assessments provided for herein shall be subordinate to the lien of any recorded mortgage or mortgages granted or created by the Owner of any Condominium Unit to secure the payment of monies advanced and used for the purpose of purchasing and/or improving such Unit. Sale or transfer of any Unit shall not affect the assessment lien; provided, however, that the sale or transfer of any Condominium Unit pursuant to a foreclosure, a deed in lieu of foreclosure, assignment in lieu of foreclosure under such purchase money or improvement mortgages or deeds of trust shall extinguish the lien of such assessments as to payments thereof coming due prior to such sale or transfer, except for claims for its pro-rata share of such assessments resulting from a reallocation among all Units, which reallocation, if necessary, will require a readjustment of the common assessment as provided in Paragraph 5.4b. No sale or transfer shall relieve such Condominium Unit, or the Owners thereof, from liability for any assessments thereafter becoming due or from the lien thereof.

5.10 STATEMENT OF ASSESSMENTS. Upon the written request of any Owner or any encumbrancer or prospective encumbrancer of a Condominium Unit, the Association, by its Board of Directors, shall issue a written statement setting forth the unpaid assessments, if any, with respect to the subject Unit, the amount of the current monthly assessments, the date of such assessment and the due date, credit for advance payments or for prepaid items, including, but not limited to, insurance premiums, which shall be conclusive

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upon the Association in favor of all persons who rely thereon in good faith. Unless such request for a statement of indebtedness shall be complied with within ten (10) days, all unpaid assessments which become due prior to the date of making of such request shall be subordinate to the lien of the person requesting such statement.

The Purchaser, Donee or other transferee of a Unit, by deed or other writing (herein called "Grantee"), shall be jointly and severally liable with the transferor of such Unit (herein called "Grantor") for all unpaid assessments against the latter for his proportionate share of the Common Expenses up to the time of the grant or conveyance, without prejudice to the Grantee's right to recover from Grantor the amounts paid by the Grantee, but such transferee shall be personally liable only if he expressly assumes such liability. The Grantee shall be entitled to a statement from the Board of Directors, setting forth the amount of the unpaid assessments, if any, with respect to the subject Unit, the amount of the current monthly assessment and the date such assessment becomes due, as well as any credit for advanced payments or for prepaid items, including, but not limited to, insurance premiums. This statement shall be conclusive upon the Association. Unless such request for a statement of indebtedness shall be complied with within ten (10) days of such request, such Grantee shall not be liable for, nor shall the Unit conveyed be subject to a lien for, any unpaid assessments against the subject Condominium Unit accruing prior to such ten (10)-day period.

5.11 OBLIGATION OF DECLARANT FOR ASSESSMENTS AND MAINTENANCE. During the Declarant Control Period, as provided in Paragraph 4.2 hereof, the Declarant shall be responsible for the difference between the cost of maintenance and assessments received from the Unit Owners of each Building until all Units in said Building have been completed, as defined herein, or until the estimated operating expenses are accurately determined, or until Declarant transfers responsibility for said maintenance to the Association, as provided in Paragraph 4.2 hereof, whichever first (1st) occurs. So long as Declarant is responsible for the maintenance of a Building, as provided herein, Declarant shall not be limited to the regular monthly assessment for any Units owned by Declarant in said Building. With respect to the Buildings which Declarant is responsible for maintaining, as provided herein, said maintenance shall be at the level of maintenance established in accordance with Paragraph 5.3 hereof. During the Declarant Control Period, Declarant shall provide any additional

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funds necessary to pay actual cash outlays required to fund current operating expenses of the Association. After the Declarant Control Period is terminated, Declarant shall pay the regular monthly assessment for each Unit or Units it owns. In no event shall Declarant's liability for assessments be less than required by the Act.

ARTICLE VI

DESTRUCTION OR OBSOLESCENCE OF IMPROVEMENTS

6.1 DESTRUCTION OR OBSOLESCENCE.

a. This Declaration hereby makes mandatory the irrevocable appointment of an Attorney In Fact to deal with the Property upon its destruction, obsolescence or condemnation. Title to any Condominium Unit is declared and expressly made subject to the terms and conditions hereof, and acceptance by any Grantee of a deed from the Declarant or from any Owner shall constitute appointment of the Attorney In Fact herein provided. All of the Owners irrevocably constitute and appoint SPRINGMONT OWNERS ASSOCIATION, INC., or its successor non-profit corporation, if same be hereafter organized, their true and lawful Attorney in their name, place and stead, for the purpose of dealing with the Property upon its destruction, obsolescence or condemnation, as hereinafter provided. As Attorney In Fact, the Association, by its authorized officers shall have full and complete authorization, right and power to make, execute and deliver any contract, deed or any other instrument with respect to the interest of a Condominium Unit Owner which is necessary and appropriate to exercise the powers herein granted.

b. Repair and reconstruction of the improvement(s), as used in the succeeding subparagraphs, means restoring the improvement(s) to substantially the same condition in existence prior to the damage, with each Unit and Common Elements having the same vertical and horizontal boundaries as before. The proceeds of any insurance collected shall be made available to the Association for the purpose of repair, restoration or replacements, unless all of the Owners and all of the First Mortgagees agree not to rebuild in accordance with the provisions set forth hereinafter:

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(2) If the insurance proceeds are insufficient to repair and reconstruct the improvement(s), and if such damage is not more than sixty-six and two-thirds percent (66-2/3%) of all the Common Elements, not including land, such damage or destruction shall be promptly repaired and reconstructed by the Association, as Attorney In Fact, using the proceeds of insurance and the proceeds of an assessment to be made against all of the Owners and their Condominium Units. Such deficiency assessment shall be a special assessment made pro rata according to each Owner's proportionate interest in and to the Common Elements and shall be due and payable within thirty (30) days after written notice thereof. The Association shall have the authority to cause the repair or restoration of the improvements using all of the insurance proceeds for such purpose notwithstanding the failure of an Owner to pay the assessment. The assessment provided for herein shall be a debt of each Owner and a lien on his Condominium Unit and may be enforced and collected as is provided in Article V hereof. The lien provided for herein shall be subordinate to any recorded first mortgage lien, as provided in Paragraph 5.9 of this Declaration. Should the Association choose to foreclose said lien, as provided in Article V, the proceeds derived from the sale of such Condominium Unit shall be used and disbursed by the Association, as Attorney In Fact, in the following order:

(b) For payment of the balance of the lien of any first mortgage;

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(c) For payment of unpaid Common Expenses;

(d) For payment of junior liens and encumbrances in the order and extent of their priority; and

(e) The balance remaining, if any, shall be paid to the Condominium Unit Owner.

(3) If more than sixty-six and two-thirds percent (66-2/3%) of all of the Common Elements, not including land, are destroyed or damaged, and if the Owners representing the aggregate ownership of one hundred percent (100%) of the Common Elements, do not voluntarily, within one hundred (100) days thereafter, make provision for reconstruction, the Association shall forthwith record a notice setting forth such fact or facts, and upon the recording of such notice by the Association's President and Secretary, the entire remaining Premises shall be sold by the Association, as Attorney In Fact for all of the Owners, free and clear of the provisions contained in this Declaration, the Plat and the By-Laws. The insurance settlement proceeds shall be collected by the Association, and such proceeds shall be divided by the Association according to each Unit Owner's interest (as such interests appear on the policy or policies), and such divided proceeds shall be paid into twenty-four (24) separate accounts, plus any annexed Units, each such account representing one (1) of the Condominium Units in the total Project. Each such account shall be in the name of the Association, and shall be further identified by the number of the Unit and the name of the Owner. From each separate account, the Association, as Attorney In Fact, shall use and disburse the total amount (of each) of such accounts, without contribution from any one (1) account to another, toward the full payment of the lien of any first mortgage against the Condominium Unit represented by such separate account. There shall be added to each such account, the apportioned amount of the proceeds derived from the sale

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of the entire Property. Such apportionment shall be based upon each Condominium Unit Owner's proportionate interest in the Common Elements. The total funds of each account shall be used and disbursed, without contribution from one (1) account to another, by the Association, as Attorney In Fact, for the same purposes and in the same order as is provided in Subparagraphs b(2)(a) through (e) of Paragraph 6.1 hereof. Any decision to terminate the condominium status as herein provided must have the approval of First Mortgagees holding mortgages on Units which have at least fifty-one percent (51%) of the votes of the Association.

(4) If the Owners representing a total ownership interest of one hundred percent (100%) of the Common Elements adopt a plan for reconstruction, then all of the Owners shall be bound by the terms and provisions of such plan. Any assessment made in connection with such plan shall be a Common Expense and made pro rata according to each Owner's proportionate interest in the Common Elements and shall be due and payable as provided by the terms of the plan. The Association shall have the authority to cause the repair and restoration of the improvements using all of the insurance proceeds for such purpose notwithstanding the failure of an Owner to pay the assessment. The assessment provided for herein shall be a debt of each Owner and a lien on his Condominium Unit and may be enforced and collected as is provided in Paragraph 5.8 hereof, but will be subordinate to any prior recorded first mortgage lien, as provided in Paragraph 5.9 hereof. Should the Association foreclose said assessment lien, as provided in said Paragraph 5.8, the proceeds derived from sale of such Condominium Unit shall be used and disbursed by the Association, as Attorney In Fact, for the same purposes and in the same order as is provided in Subparagraphs b(2)(a) through (e) of Paragraph 6.1 hereof.

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(5) The Owners representing an aggregate ownership interest of sixty-six and two-thirds percent (66-2/3%) of the Common Elements or more, may agree that the Common Elements of the Property are obsolete and that the same should be renewed or reconstructed. In such instance, the expenses thereof shall be payable by all of the Owners as Common Expenses.

(6) Any restoration, reconstruction or repair of the Project shall be performed substantially in accordance with this Declaration and the original Plans and specifications, unless other action is approved by the holders of mortgages on Units which have at least fifty-one percent (51%) of the votes of the Association.

(7) The Owners representing an aggregate ownership interest of one hundred percent (100%) of the Common Elements and all holders of first mortgages may agree that the Common Elements of the Property are obsolete and that the same should be sold. In such instance, the Association shall record a notice setting forth such fact or facts, and upon the recording of such notice by the Association's authorized officers, the entire Premises shall be sold by the Association, as Attorney In Fact, for all of the Owners, free and clear of the provisions contained in this Declaration, the Plat and the By-Laws. The sales proceeds shall be apportioned between the Owners and First Mortgagees as their interests may appear on the basis of each Owner's percentage or fraction of interest in the Common Elements, and such apportioned proceeds shall be paid into twenty-four (24) separate accounts, plus any annexed Units, each such account representing one (1) Condominium Unit. Each such account shall be in the name of the Association, and shall be further identified by the number of the Unit and the name of the Owner. From each separate account, the Association, as Attorney In Fact, shall use and disburse the total amount of each of

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such funds, without contribution from (1) fund to another, for the same purposes and in the same order as is provided in Subparagraphs b(2)(a) through (e) of Paragraph 6.1 hereof.

6.2 JUDICIAL PARTITION. There shall be no judicial partition of the Common Elements, nor shall Declarant or any person acquiring any interest in the Project or any part thereof seek any such judicial partition, until the happening of the conditions set forth in Paragraph 6.1 hereof in the case of damage or destruction or unless the Property has been removed from the provisions of the Texas Condominium Act; provided, however, that if any Condominium Unit shall be owned by two (2) or more co-tenants, as tenants in common or as joint tenants, nothing herein contained shall be deemed to prevent a judicial partition between such co-tenants, but such partition shall not affect any other Condominium Unit.

6.3 CONDEMNATION.

a. If all or any part of the Property is taken or threatened to be taken by eminent domain or by power in the nature of eminent domain (whether permanent or temporary), the Association, as Attorney In Fact, and each Owner shall be entitled to participate in proceedings incident thereto at their respective expense. The Association shall give timely written notice of the existence of such proceedings to all Owners and to all First Mortgagees known to the Association to have an interest in any Condominium Unit. The expense of participation in such proceedings by the Association shall be borne by the Common Fund. The Association, as Attorney In Fact, is specifically authorized to obtain and pay for such assistance from attorneys, appraisers, architects, engineers, expert witnesses and other persons as the Association in its discretion deems necessary or advisable to aid or advise it in matters relating to such proceedings. All damages or awards for any such taking shall be deposited with the Association, as Attorney In Fact, and such damages or awards shall be applied as provided herein. In the event that an action in eminent domain is brought to condemn a portion of the Common Elements (together with or apart from any Condominium Unit), the Association, as Attorney In Fact, in addition

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to the general powers set out herein, shall have the sole authority to determine whether to defend or resist any such proceeding, to make any settlement with respect thereto, or to convey such Property to the condemning authority in lieu of such condemnation proceeding.

b. With respect to any such taking, all damages and awards shall be determined for the taking of the individual Units and for the taking of the Common Elements and for each Owner's interest therein. After the damages or awards for such taking are determined, such damages or awards shall be paid to the account of each Owner for the loss of the individual Unit plus an amount in proportion to his percentage or fractional ownership interest in the Common Elements to be applied or paid as set forth in Subparagraphs 6.1b(2)(a) through (e) hereof, unless restoration takes place as herein provided. The Association, if it deems advisable, may call a meeting of the Owners, at which meeting the Owners, by a majority vote, shall decide whether to replace or restore, as far as possible, the Common Elements so taken or damaged. In the event it is determined that such Common Elements should be replaced or restored by obtaining other land or building additional structures, this Declaration and the Map attached hereto shall be duly amended by instrument executed by the Association, as Attorney In Fact, on behalf of the Owners. In the event that such eminent domain proceeding results in the taking of or damage to one (1) or more, but less than sixty-six and two-thirds percent (66-2/3%) of the total number of Condominium Units, then the damages and awards for such taking shall be determined for each Condominium Unit and the following shall apply:

(1) The Association shall determine which of the Condominium Units damaged by such taking may be made tenantable for the purposes set forth in this Declaration, taking into account the nature of this Condominium Project and the reduced size of each Condominium Unit so damaged.

(2) The Association shall determine whether it is reasonably practicable to operate the remaining Condominium Units of the Project, including those damaged Units which may be made tenantable, as a Condominium in the manner provided in this Declaration.

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(3) In the event that the Association determines that it is not reasonably practicable to operate the undamaged Condominium Units and the damaged Units which can be made tenantable, then the Condominium Project shall be deemed to be regrouped and merged into a single estate owned jointly in undivided interest by all Owners, as tenants in common, in the proportionate ownership interest previously owned by each Owner in the Common Elements. Any decision to terminate the condominium status of the Project must have the approval of First Mortgagees holding the mortgages on Units which have at least fifty-one percent (51%) of the votes in the Association.

(4) In the event that the Association determines it will be reasonably practicable to operate the undamaged Condominium Units and the damaged Units which can be made tenantable as a Condominium Unit, then the damages and awards made with respect to each Unit which has been determined to be capable of being made tenantable shall be applied to repair and to reconstruct such Condominium Unit so that it is made tenantable. The restoration shall be performed in accordance with this Declaration and the original Plans and specifications, unless other action is approved by holders of mortgages on the remaining Units which have at least fifty-one percent (51%) of the votes in the Association. If the cost of such work exceeds the amount of the award, the additional funds required shall be assessed against those Condominium Units which are tenantable. With respect to those Units which may not be tenantable, the award made shall be paid as set forth in Subparagraphs 6.1b(2)(a) through (e) hereof; and the remaining portion of such Units, if any, shall become part of the Common Elements. Upon the payment of such award for the account of such Owner as provided herein, such Condominium Unit shall no longer be a part of the Condominium Project, and the proportionate ownership interest in the Common Elements appurtenant to each

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remaining Condominium Unit which shall continue as part of the Condominium Project shall be equitably adjusted to distribute the ownership of the undivided interest in the Common Elements among the reduced number of Owners based upon the square footage of the individual remaining Units in proportion to the total square footage of all the remaining Units. If sixty-six and two-thirds percent (66-2/3%) or more of the Condominium Units are taken or damaged by such taking, all damages and awards shall be paid to the accounts of the Owners of Units, as provided herein; and this Condominium Regime shall terminate upon such payment. Upon such termination, the Condominium Units and Common Elements shall be deemed to be regrouped and merged into a single estate owned in undivided interest by all Owners as tenants in common in the proportionate ownership interest previously owned by each Owner in the Common Elements. The Owners representing an aggregate ownership interest of sixty-seven percent (67%) of the Common Elements and holders of first mortgages on Units which have at least fifty-one percent (51%) of the votes on Units subject to first mortgages may agree that the Property should be sold. In such instance, the Association shall record a notice setting forth such fact or facts, and upon the recording of such notice by the Association's authorized officers, the entire Premises shall be sold by the Association, as Attorney in Fact, for all of the Owners, free and clear of the provisions contained in the Declaration, the Plat and the By-Laws. The sales proceeds shall be apportioned between the Owners and First Mortgagees as their interests may appear on the basis of each Owner's proportionate ownership interest in the regrouped estate. Any damages, awards, or sales proceeds provided in this paragraph to be paid to or for the account of any Owner by the Association shall be applied as set forth in Subparagraphs 6.1b(2)(a) through (e) hereof.

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ARTICLE VII

PROTECTION OF MORTGAGEE

7.1 NOTICE TO ASSOCIATION. An Owner who mortgages his Unit shall notify the Association, giving the name and address of his Mortgagee. Each Mortgagee shall be permitted to notify the Association of the fact that such Mortgagee holds a deed of trust or mortgage on a Condominium Unit. The Board shall maintain such information in a book entitled "Mortgagees of Condominium Units".

7.2 NOTICE OF DEFAULT; LAPSE IN INSURANCE. The Association shall notify a First Mortgagee in writing, upon written request of such Mortgagee identifying the name and address of the Mortgagee and the Unit number, of any default by the Mortgagor in the performance of such Mortgagor's obligations, as set forth in this Declaration, which is not cured within sixty (60) days. The Association, upon written request, shall notify a First Mortgagee of any lapse, cancellation or material modification of any insurance policy or fidelity bond maintained by the Association.

7.3 EXAMINATION OF BOOKS. The Association shall permit First Mortgagees and the Veterans Administration to examine the books and records of the Association upon request.

7.4 RESERVE FUND. The Association shall establish adequate reserve funds for replacement of Common Element components and fund the same by regular monthly payments rather than by extraordinary special assessments. In addition, there shall be established a working capital fund for the initial operation of the Condominium Project equal to at least three (3) months' estimated Common Assessments charge for each Unit, said deposit to be collected at closing of Unit sale.

7.5 ANNUAL AUDITS. Upon written request the Association shall furnish each First Mortgagee an annual audited financial statement of the Association within ninety (90) days following the end of each fiscal year of the Association.

7.6 NOTICE OF MEETINGS. The Association shall furnish each First Mortgagee upon request of such Mortgagee, prior written notice of all meetings of the Association and permit the designation of a representative of such Mortgagee to attend such meetings, one (1) such request to be deemed to be a request for prior written notice of all subsequent meetings of the Association.

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7.7 NOTICE OF DAMAGE OR DESTRUCTION. The Association shall furnish the First Mortgagees timely written notice of any substantial damage or partial destruction of any Unit on which the First Mortgagee holds the mortgage if such loss exceeds One Thousand Dollars (\$1,000.00) and of any part of the Common Elements if such loss exceeds Ten Thousand Dollars (\$10,000.00).

7.8 MANAGEMENT AGREEMENTS. Any management agreement and/or service contract entered into by the Association will be terminable by the Association without cause and without payment of a termination fee upon ninety (90) days' or less written notice, and the term of such management agreement will not exceed the period of one (1) year, renewable by agreement of the parties to such agreement for successive one (1)-year periods. In the event of the termination of the management agreement, as provided herein, the Association shall enter into a new management agreement with a new management agent prior to the effective date of the termination of old management agreement. Any decision to establish self-management by the Owners Association shall require the prior consent of Owners of Units to which at least sixty-seven percent (67%) of the votes are allocated and the approval of first mortgage holders holding mortgages on Units which have at least fifty-one percent (51%) of the votes of the Association.

7.9 TAXES, ASSESSMENTS AND CHARGES. All taxes, assessments and charges which may become liens prior to the First Mortgage under local law shall relate only to the individual Condominium Units and not to the Condominium Project as a whole.

ARTICLE VIII

MISCELLANEOUS PROVISIONS

8.1 AMENDMENTS TO DECLARATION; APPROVAL OF OWNERS AND MORTGAGEES.

a. The consent of the Owners of Units to which at least sixty-seven percent (67%) of the votes in the Association are allocated, the approval of First Mortgagees holding mortgages on Units which have at least fifty-one percent (51%) of the votes of Units subject to mortgages and, upon written request, notice to all First Mortgagees holding mortgages on Units, shall be required to add or amend any material provisions to this Declaration or to the By-Laws which establish, provide for, govern or regulate any of the following:

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- (1) Voting;
- (2) Assessments, assessment liens or subordination of such liens;
- (3) Reserves for maintenance, repair and replacement of the Common Elements;
- (4) Insurance or fidelity bonds;
- (5) Rights to use of the Common Areas;
- (6) Responsibility for maintenance and repair of the Units and Common Elements;
- (7) Expansion of the Project;
- (8) Boundaries of any Unit
- (9) Convertibility of Units into Common Elements, or Common Elements into Units;
- (10) Leasing of Units;
- (11) Imposition of any right of first refusal or similar restriction on the right of a Unit Owner to sell, transfer, or otherwise convey his Unit; or
- (12) Any provisions which are for the express benefit of first mortgage holders, insurers, or guarantors of first mortgages.

b. The consent of Owners of Units to which at least sixty-seven percent (67%) of the votes in the Association are allocated and the approval of First Mortgagees holding mortgages on Units which have at least sixty-seven percent (67%) of the votes of Units subject to Mortgages, shall be required to:

- (1) partition or subdivide any Unit. In addition to the approval of the Owner any mortgage holder, if any, must be obtained;
- (2) by act or omission, seek to abandon, partition, subdivide, encumber, or transfer the Common Elements, other than the granting of easements for public utilities or other public uses; or
- (3) use hazard insurance proceeds for losses to any condominium property for other than the repair, replacement or reconstruction of such property, except as provided by statute in the case of substantial loss, and as provided in Paragraph 6.1b(3).

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c. The consent of Owners of Units to which at least one hundred percent (100%) of the votes of the Association are allocated and the approval of First Mortgagees holding mortgages on Units which have at least sixty seven percent (67%) of the votes of Units subject to mortgages shall be required to terminate or abandon the condominium status of the project by act or omission, except for a termination due to destruction or condemnation.

d. Any amendment which would change the percentage or fraction of interest of the Unit Owners in the Common Elements, except as provided in Paragraph 2.10 herein, will require the consent of Owners of sixty-seven percent (67%) of the votes allocated in the Association and the approval of First Mortgagees holding mortgages on Units which have at least fifty-one percent (51%) of the votes of Units subject to mortgages.

e. Any First Mortgagee who receives a written request to approve additions or amendments to the Declaration or By-Laws, and who does not deliver or post to the requesting party a negative response within thirty (30) days, shall be deemed to have approved such request.

f. Unless otherwise provided in this Paragraph 8.1 or elsewhere in this Declaration, any of the provisions herein may be amended by the consent of Owners of Units to which at least sixty-seven percent (67%) of the votes in the Association are allocated, but no amendment shall affect the rights given to the Declarant, herein, without the consent of the Declarant.

8.2 CORRECTION OF ERROR. Declarant reserves, and shall have the continuing right, until the end of the Construction Period, without the consent of the other Owners or any Mortgagee to amend this Declaration or the By-Laws for the purpose of resolving or clarifying any ambiguities or conflicts herein, or correcting any inadvertent misstatements, errors or omissions herein, or to comply with the requirements of Federal Home Loan Mortgage Corporation, Federal National Mortgage Association, Veterans Administration or Federal Housing Administration.

8.3 OWNERSHIP OF COMMON PERSONAL PROPERTY. Upon termination of the Construction Period, as defined herein, Declarant shall execute and deliver a bill of sale to the Association transferring all items of personal property

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located on the Premises, furnished by Declarant, and intended for the common use and enjoyment of the Condominium Unit Owners and occupants. No Owner shall have any other interest and right thereto, and all such right and interest shall absolutely terminate upon the Owner's termination of possession of his Condominium Unit.

8.4 CHANGE IN DOCUMENTS. Upon written request, the holder of any mortgage covering any of the Condominium Units shall be entitled to written notification from the Association thirty (30) days prior to the effective date of any change in the Condominium documents. Any change in said documents during the time Declarant has control of the Association shall require the additional approval of the Veterans Administration.

8.5 NOTICE. All notices, demands or other notices intended to be served upon an Owner shall be sent by ordinary or certified mail, postage prepaid, addressed in the name of such Owner in care of the Unit number and Building address of such Owner. All notices, demands or other notices intended to be served upon the Board of Directors of the Association or the Association, shall be sent by ordinary or certified mail, postage prepaid, to 5590 Spring Valley Road, Dallas, Texas, until such address is changed by a notice of address change duly recorded in the Dallas County Condominium Records.

8.6 CONFLICT BETWEEN DECLARATION AND BY-LAWS. Whenever the application of the provisions of this Declaration conflict with the application of any provision of the By-Laws adopted by the Association, the provisions or application of this Declaration shall prevail.

8.7 INVALIDATION OF PARTS. If any of the provisions of this Declaration or any paragraph, sentence, clause, phrase or word or the application thereof in any circumstance be invalidated, such invalidity shall not affect the validity of the remainder of this Declaration and the application of any provision, paragraph, sentence, clause, phrase or word in any other circumstance shall not be affected thereby.

8.8 OMISSIONS. In the event of the omission from this Declaration of any word, sentence, clause, provision or stipulation which shall be necessary for the accomplishment of the intent and purposes hereof, or any part hereof, then such omitted matter shall be supplied by inference and/or by reference to the Act.

8.9 TEXAS CONDOMINIUM ACT. The provisions of this Declaration shall be in addition and supplemental to the Condominium Ownership Act of the State of Texas and to all other provisions of law.

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8.10 GENDER. That whenever used herein, unless the context shall otherwise provide, the singular number shall include the plural, the plural the singular, and the use of any gender shall include all genders.

IN WITNESS WHEREOF, the Declarant has caused this instrument to be signed, sealed and delivered by its proper corporate officers and its corporate seal to be affixed, this 16th day of July, 1982.

U.S. HOME CORPORATION

By: J. Richard Cooper
J. Richard Cooper, Region Vice President

ATTEST:

Mark H. Murphy
Mark H. Murphy, Region President
Division Secretary

THE STATE OF TEXAS §

COUNTY OF DALLAS §

BEFORE ME, the undersigned, a Notary Public in and for said County and State, on this day personally appeared J. Richard Cooper, known to me to be the person and officer whose name is subscribed to the foregoing instrument and acknowledged to me that the same was the act of such corporation for the purposes and consideration therein expressed, and in the capacity therein stated.

GIVEN UNDER MY HAND AND SEAL OF OFFICE this the 16th day of July

 , A.D., 1982.

Patricia L. Meares
Notary Public in and for
Dallas County, Texas

My Commission Expires:

October 17, 1985

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SPRINGMONT CONDOMINIUMS
PHASE ONE
LEGAL DESCRIPTION

BEING a lot, tract or parcel of land situated in the John Witt Survey, Abstract No. 1584 and in City Block No. E/7011, City of Dallas, Dallas County, Texas, and being part of Lot 1 of the Spring Valley Condos Addition, an addition to the City of Dallas, as recorded in Volume 82003 Page 281 of the plat records of Dallas County, Texas, and being more particularly described as follows:

COMMENCING at an iron rod at the intersection of the South line of Spring Valley Road (a 75' R.O.W.) with the East line of Montfort Road (a variable width R.O.W.);

THENCE: North 88° 39' 49" East, with the South line of said Spring Valley Road, 208.03 feet to an iron rod;

THENCE: South 06° 03' 37" East, 24.83 feet to an iron rod for a corner;

THENCE: North 88° 45' 00" East, with the South line of said Spring Valley Road, 333.50 feet to an iron pin for the point of curvature of a circular curve to the right, with a radius of 850.00 feet, and a central angle of 2° 13' 13", a tangent length of 16.47 feet and an arc distance of 32.94 feet for POINT OF BEGINNING at the Northwest corner of said addition;

THENCE: Southeasterly with the South line of Spring Valley Road (a 100' R.O.W.) along a circular curve to the right, with a radius of 850.00 feet, and a central angle of 16° 30' 53", a tangent of 123.36 feet, a chord bearing of South 80° 46' 20" East, a chord of 244.15 feet, and an arc of 245.00 feet to a point for a corner;

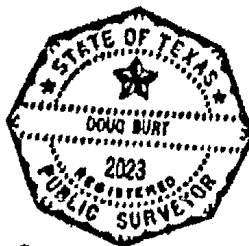
THENCE: South 16° 37' 10" West, a distance of 263.00 feet to a point for a corner;

THENCE: South 88° 52' 40" West, a distance of 72.30 feet to a point for a corner;

THENCE: North 0° 40' 51" West, a distance of 87.00 feet to a point for a corner;

THENCE: South 88° 52' 40" West, a distance of 90.00 feet a point for a corner on the West line of the said Spring Valley Condos Addition;

THENCE: North 0° 40' 51" West, along said West line a distance of 207.37 feet to the POINT OF BEGINNING and containing 49,334 square feet or 1.1326 acres of land.



Doug Burt
25 / JUNE / 82

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SPRINGMONT CONDOMINIUMS

CITY OF DALLAS DALLAS COUNTY, TEXAS

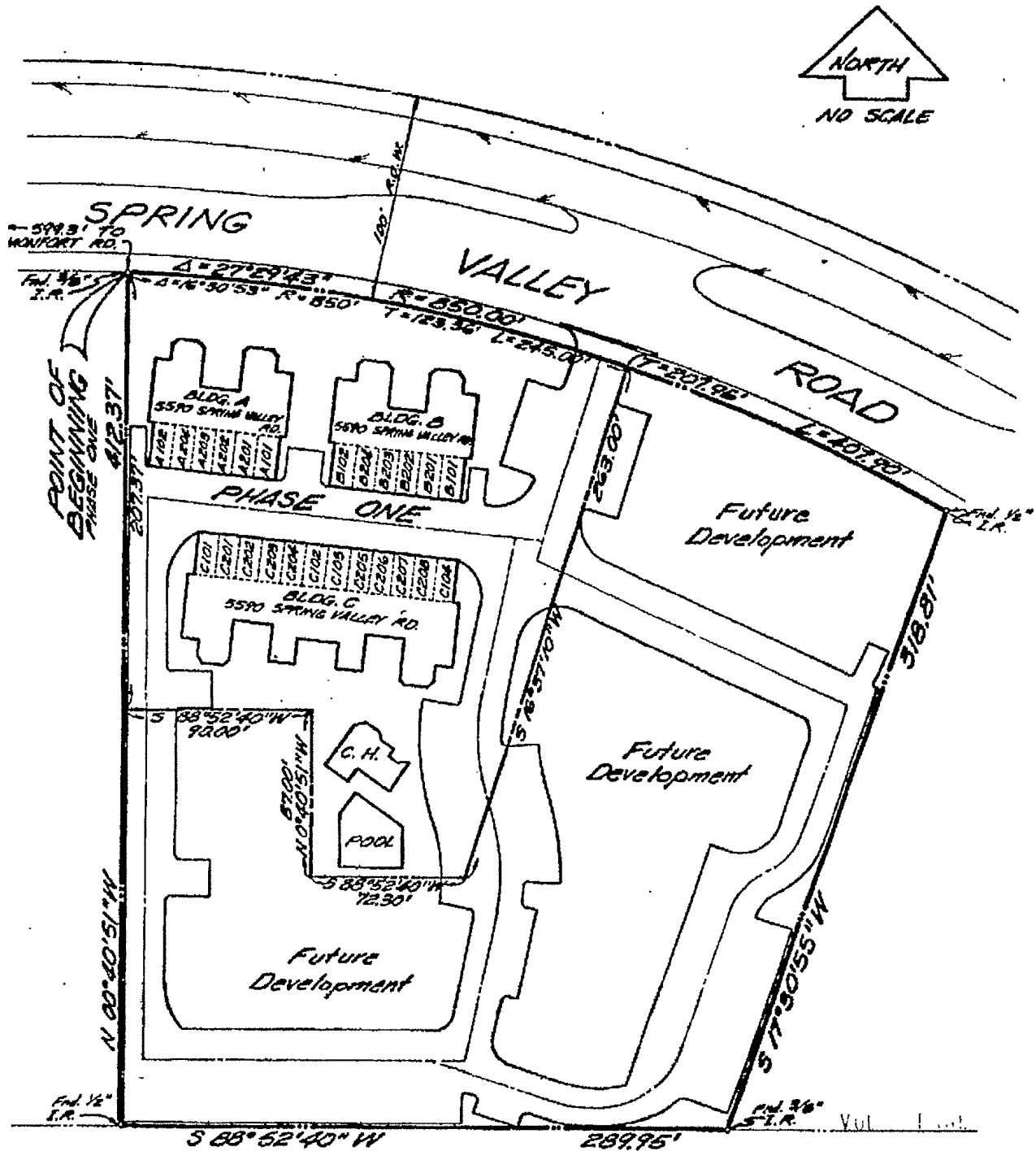
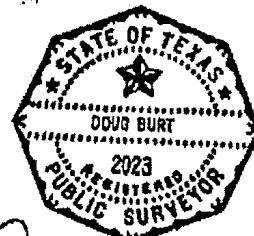


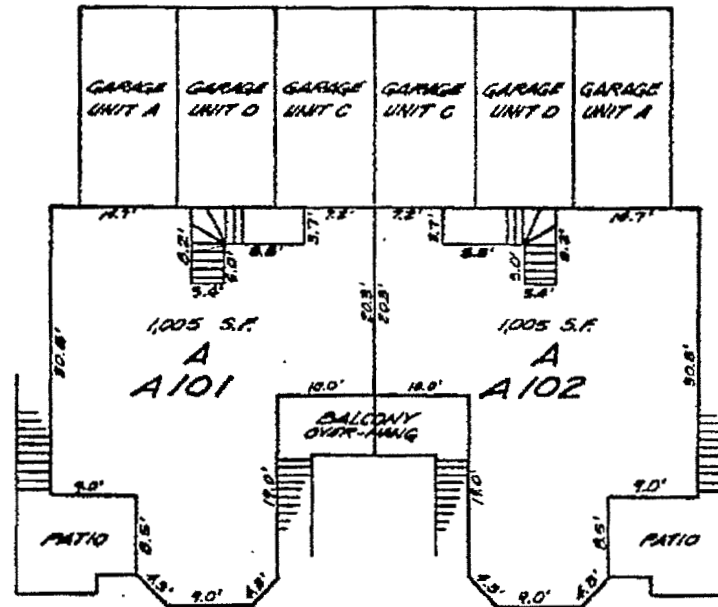
EXHIBIT "B" PHASE ONE

OWEN AYRES & ASSOCIATES, INC.
CONSULTING ENGINEERS
8220 ELMBROOK DR., SUITE 138
DALLAS, TEXAS 75247
(214) 831-7227



Doug Burt
25 JUNE 82

TYPE 1 BUILDING
BUILDING A
FIRST FLOOR PLAN
5590 SPRING VALLEY ROAD



GENERAL NOTES

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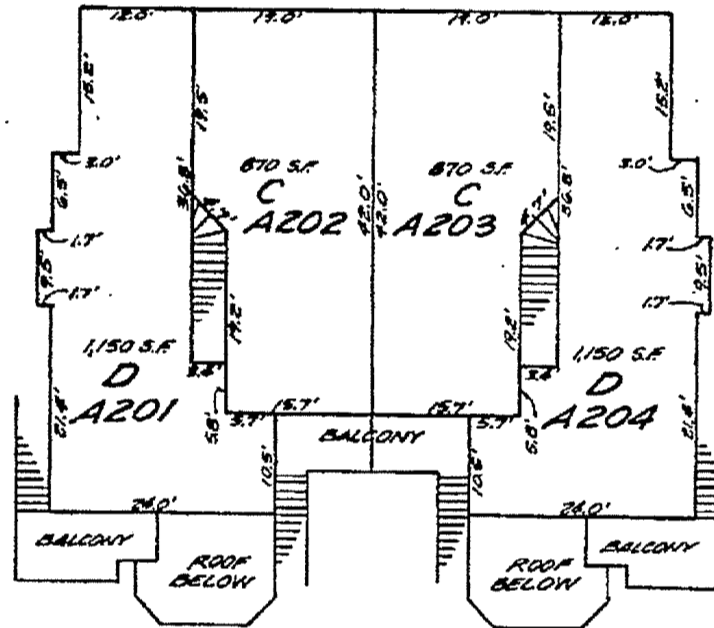
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2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.



Doug Burt
 25 June 82

OWEN AYRES & ASSOCIATES, INC.
CONSULTING ENGINEERS
8800 ELMEROCK DR., SUITE 138
DALLAS, TEXAS 75247
(214) 831-7227

TYPE 1 BUILDING
BUILDING A
SECOND FLOOR PLAN
5590 SPRING VALLEY ROAD

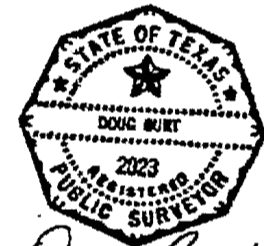


GENERAL NOTES

1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.

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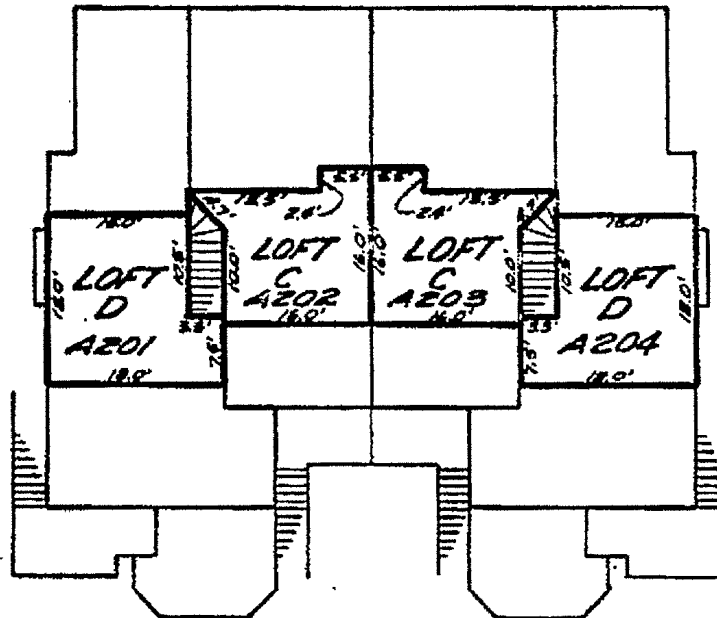
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Doug Burt
 25 JUNE 82

OWEN AYRES & ASSOCIATES, INC.
CONSULTING ENGINEERS
 2220 ELMBROOK DR., SUITE 132
 DALLAS, TEXAS 75247
 (214) 331-7222

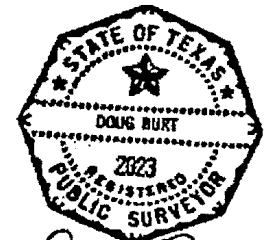
TYPE I BUILDING
BUILDING A
THIRD FLOOR PLAN
5590 SPRING VALLEY ROAD



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GENERAL NOTES

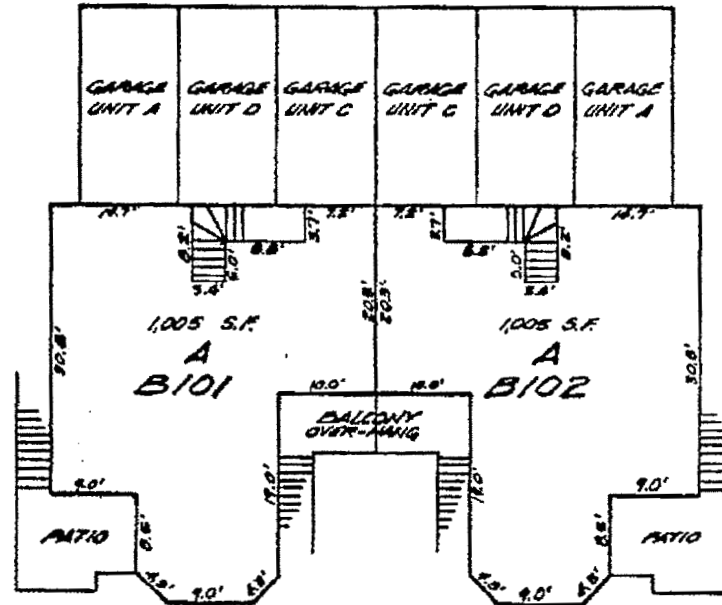
1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.



Doug Hurt
 25 / JUN 1982

OWEN AYRES & ASSOCIATES, INC.
CONSULTING ENGINEERS
 2220 ELMBROOK DR., SUITE 138
 DALLAS, TEXAS 75247
 (214) 831-7100

TYPE 1 BUILDING
BUILDING B
FIRST FLOOR PLAN
5590 SPRING VALLEY ROAD



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 VOL 101
 1001

GENERAL NOTES

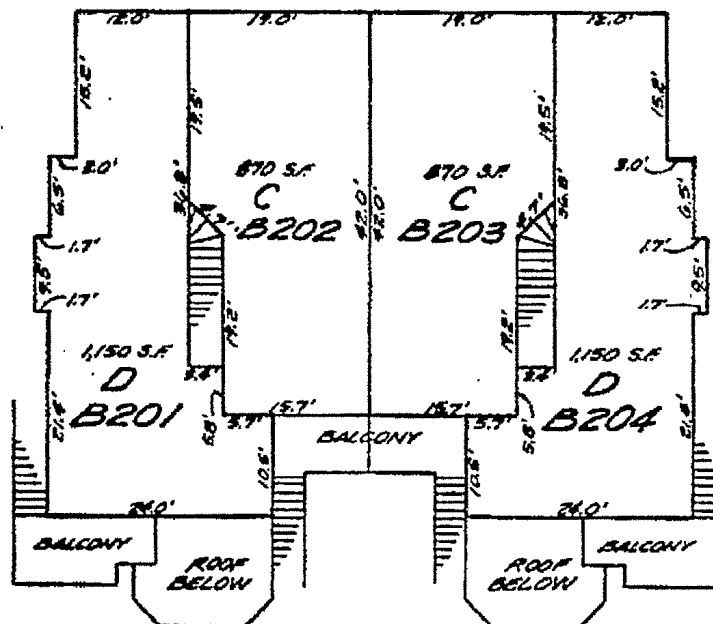
1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.



Doug Burt
 28 JUNE 10

OWEN AYRES & ASSOCIATES, INC.
CONSULTING ENGINEERS
8800 ELMBROOK DR., SUITE 138
DALLAS, TEXAS 75247
(214) 331-7827

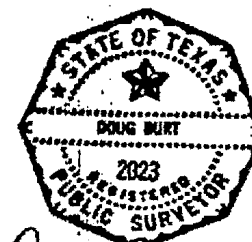
TYPE I BUILDING
BUILDING B
SECOND FLOOR PLAN
5590 SPRING VALLEY ROAD



82139 2770

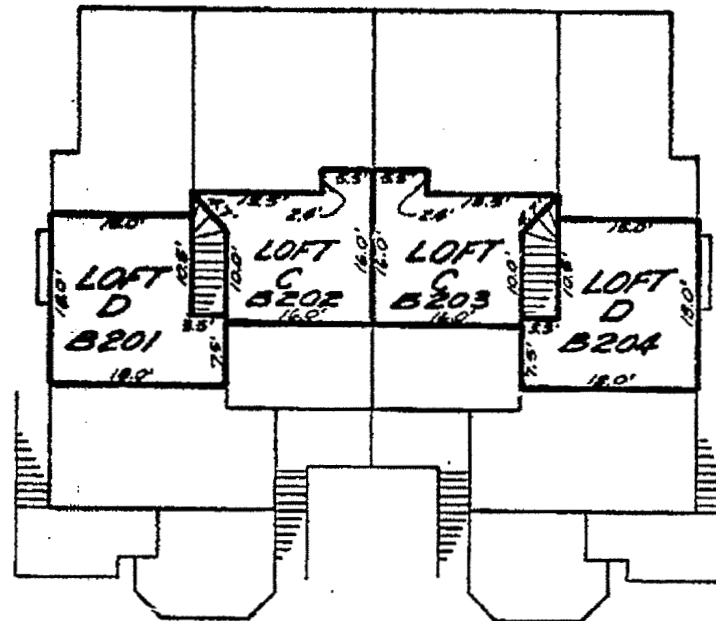
GENERAL NOTES

1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.



Doug Burt
 25 JUNE 82
OWEN AYRES & ASSOCIATES, INC.
 CONSULTING ENGINEERS
 8820 ELMBROOK DR., SUITE 138
 DALLAS, TEXAS 75247
 (214) 631-7227

TYPE I BUILDING
BUILDING B
THIRD FLOOR PLAN
5590 SPRING VALLEY ROAD



02139 2771

GENERAL NOTES

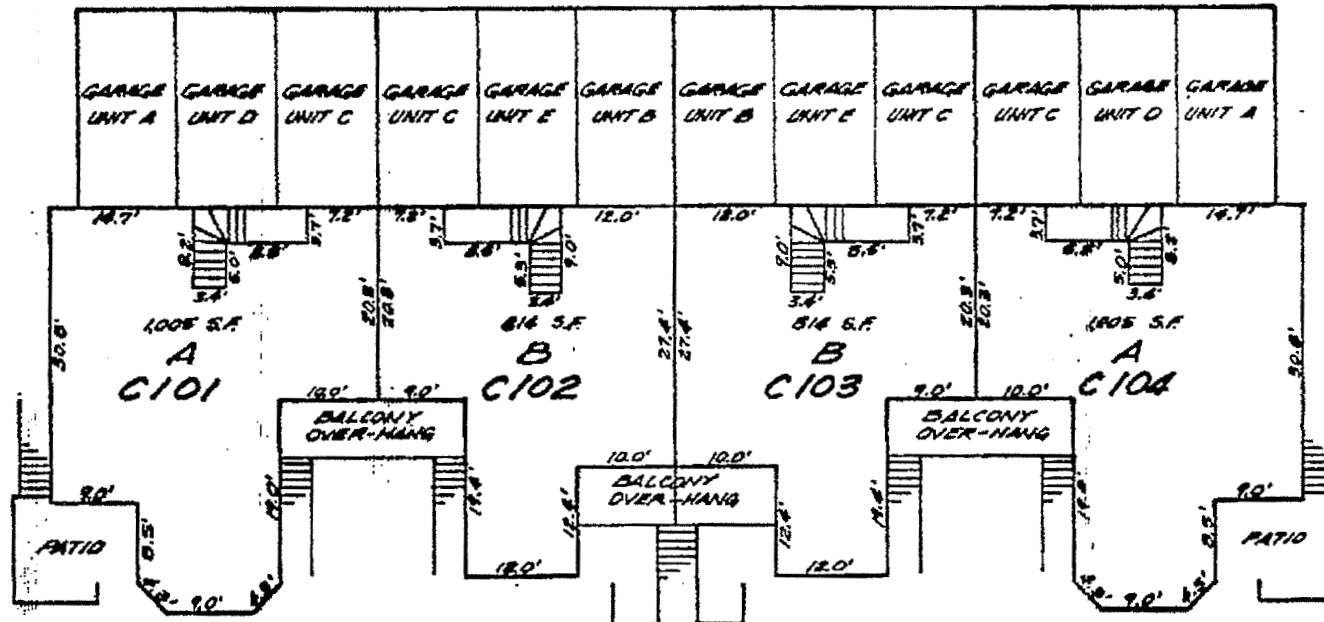
1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.



Doug Burt
 25 June 82

OWEN AYRES & ASSOCIATES, INC.
CONSULTING ENGINEERS
 8800 ELMSBROOK DR., SUITE 138
 DALLAS, TEXAS 75247
 (214) 631-7222

TYPE 2 BUILDING
BUILDING C
FIRST FLOOR PLAN
5590 SPRING VALLEY ROAD



82139 2772

GENERAL NOTES

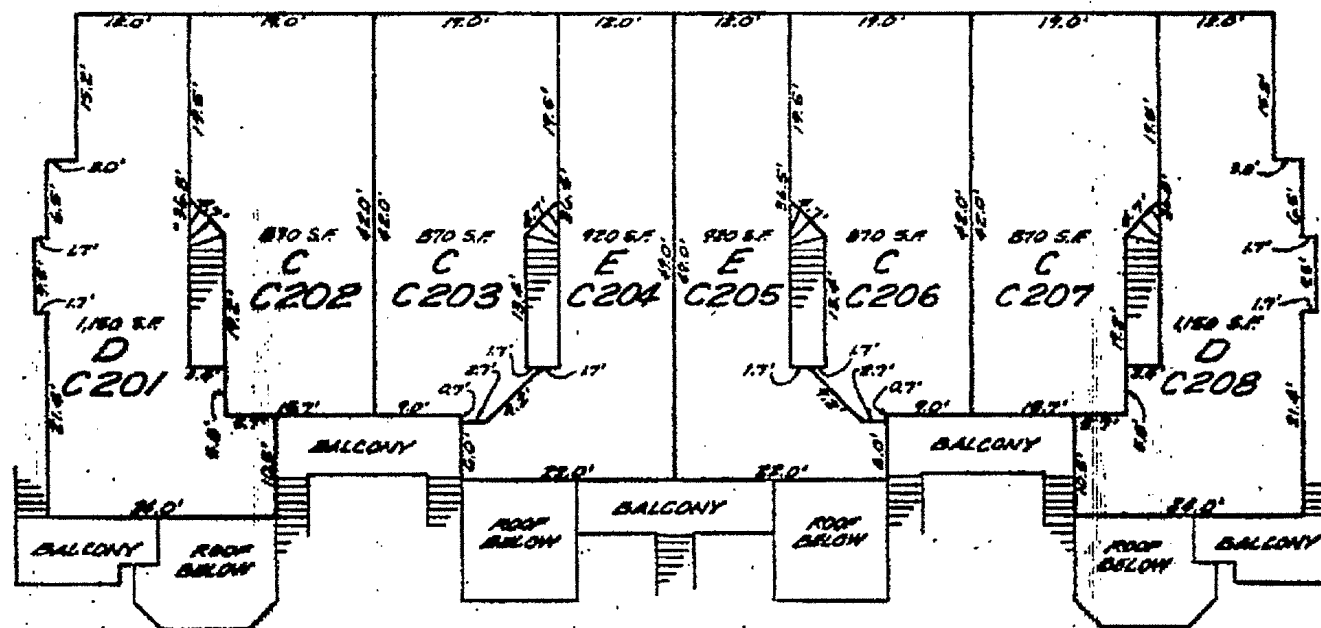
1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for the units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.



Doug Burt
 25 JUNE 1982

OWEN AYRES & ASSOCIATES, INC.
CONSULTING ENGINEERS
2220 ELMBROOK DR., SUITE 138
DALLAS, TEXAS 75247
(817) 531-7200

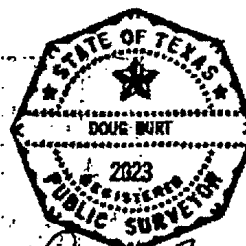
TYPE 2 BUILDING
BUILDING C
SECOND FLOOR PLAN
5590 SPRING VALLEY ROAD



82139 2773

GENERAL NOTES

1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.

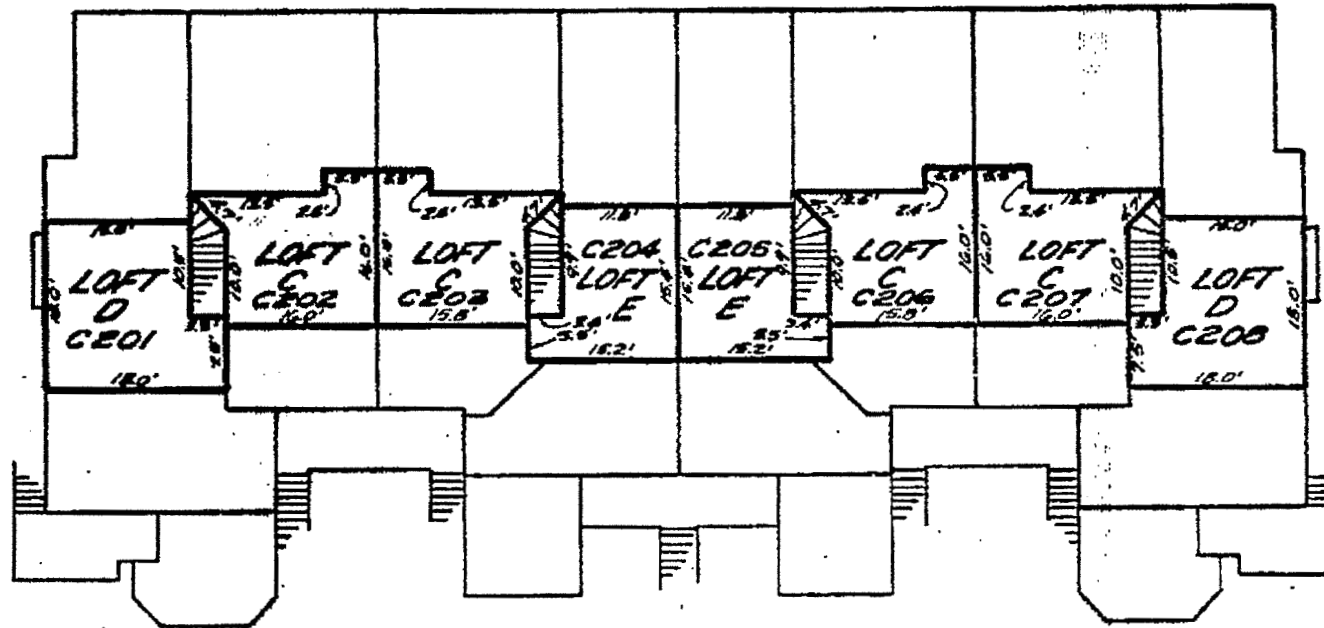


Doug Burt
 25 June 82

OWEN AYRES & ASSOCIATES, INC.
CONSULTING ENGINEERS
 6620 ELMERBROOK DR., SUITE 138
 DALLAS, TEXAS 75247
 (214) 351-7227

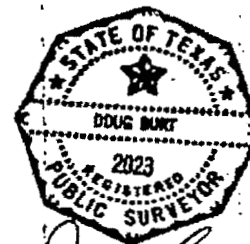
TYPE 2 BUILDING
BUILDING C
THIRD FLOOR PLAN
5590 SPRING VALLEY ROAD

02139 2774



GENERAL NOTES

1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.



Doug Bunt
 25 JUNE 82

OWEN AYRES & ASSOCIATES, INC.
CONSULTING ENGINEERS
 2220 ELMBROOK DR., SUITE 138
 DALLAS, TEXAS 75247



SPRINGMONT
PERCENTAGE OWNERSHIP INTEREST

<u>UNIT</u>	<u>TYPE</u>	<u>PERCENTAGE OWNERSHIP INTEREST</u>
A101	A	4.3026
A102	A	4.3026
A201	D	4.9234
A202	C	3.7246
A203	C	3.7246
A204	D	4.9234
B101	A	4.3026
B102	A	4.3026
B201	D	4.9234
B202	C	3.7246
B203	C	3.7246
B204	D	4.9234
C101	A	4.3026
C102	B	3.4849
C103	B	3.4849
C104	A	4.3026
C201	D	4.9234
C202	C	3.7246
C203	C	3.7246
C204	E	3.9387
C205	E	3.9387
C206	C	3.7246
C207	C	3.7246
C208	D	4.9234
		100.0000

VOLUME
82139 2775

4
SPRINGMONT CONDOMINIUMS
FUTURE DEVELOPMENT
LEGAL DESCRIPTION

BEING a lot, tract or parcel of land situated in the John Witt Survey, Abstract No. 1584, and in City Block No. E/7011, City of Dallas, Dallas County, Texas, and being all of Lot 1 of the Spring Valley Condos Addition, an addition to the City of Dallas as recorded in Volume 82003, Page 281 of the plat records of Dallas County, Texas, and being more particularly described as follows:

COMMENCING at an iron rod at the intersection of the South line of Spring Valley Road (a 75' R.O.W.) with the East line of Montfort Road (a variable width R.O.W.);

THENCE: North 88° 39' 49" East, with the South line of said Spring Valley Road, 208.03 feet to an iron rod;

THENCE: South 06° 03' 37" East, 24.83 feet to an iron rod;

THENCE: North 88° 45' 00" East, with the South line of said Spring Valley Road, 333.50 feet to an iron pin for the point of curvature of a circular curve to the right, with a radius of 850.00 feet, and a central angle of 2° 13' 13", a tangent length of 16.47 feet, thence along said curve an arc distance of 32.94 feet to a 3/8" iron rod found at the Northwest corner of the Spring Valley Condos Addition;

THENCE: South 0° 40' 51" East along the West line of said addition a distance of 207.37 feet to the POINT OF BEGINNING;

THENCE: North 88° 52' 40" East, a distance of 90.00 feet to a point for a corner;

THENCE: South 0° 40' 51" East, a distance of 87.00 feet to a point for a corner;

THENCE: North 88° 52' 40" East, a distance of 72.30 feet to a point for a corner;

THENCE: North 16° 37' 10" East, a distance of 263.00 feet to a point for a corner on the South line of Spring Valley Road (a 100' R.O.W.); said point being on a circular curve to the right having a central angle of 10° 58' 50", a radius of 850.00 feet, a chord that bears South 67° 01' 29" East, 162.65 feet;

THENCE: Around said curve in a Southeasterly direction along the South line of Spring Valley Road an arc distance of 162.90 feet to a 1/2" iron rod found for a corner at the Northeast corner of the Spring Valley Condos Addition;

THENCE: South 17° 30' 55" West, along the Easterly line of said addition a distance of 318.81 feet to a 3/8" iron rod found for a corner at the Southeast corner of said addition;

THENCE: South 88° 52' 40" West, along the South line of Spring Valley Condos Addition a distance of 289.95 feet to a 1/2" iron rod found for a corner at the Southwest corner of said addition;

THENCE: North 0° 40' 51" West, along the West line of said addition a distance of 205.00 feet to the Point of Beginning and containing 81,348 sq. ft. or 1.867 acres of land.

EXHIBIT "D"

VOL. PAGE

82139 2776

82139 2777

PAGE 7

COUNTY CLERK, DALLAS COUNTY, TEXAS
JUL 19 1982
I hereby certify that the foregoing is a true and correct copy of the original as the same appears in the records of the County Clerk of Dallas County, Texas.
COUNTY CLERK, DALLAS COUNTY, TEXAS

RICHARD COX
COUNTY CLERK
RECORDING
DALLAS COUNTY, TEXAS
JUL 16 PM 3:54

Return to:

 **COMMONWEALTH LAND**
TITLE COMPANY OF DALLAS
2875 PROMENADE CENTER
RICHARDSON, TEXAS 75080

THE STATE OF TEXAS
COUNTY OF DALLAS

I hereby certify that the above and foregoing is a full, true, and correct photographic copy of the original record now in my lawful custody and possession, filed on the date stamped thereon and as the same is recorded in the Recorder's Records in my office under the volume and page or instrument # stamped thereon.

I hereby certify on

DEC 29 2016



COUNTY CLERK, Dallas County, Texas

By _____

Deputy

**CONDOMINIUM
RECORDS**

**SUPPLEMENTAL DECLARATION
OF MERGER AND ANNEXATION
FOR
SPRINGMONT CONDOMINIUMS
PHASE II**

25.00 DEED
1 08/25/82

STATE OF TEXAS §
COUNTY OF DALLAS §

KNOW ALL MEN BY THESE PRESENTS:

THIS DECLARATION is made on the date set forth below by U. S. HOME CORPORATION, a Delaware Corporation, hereinafter called "Declarant",

W I T N E S S E T H:

WHEREAS, Declarant is the Owner of certain property in the County of Dallas, State of Texas, which is more particularly described on the attached Exhibit "A", and

WHEREAS, by a Condominium Declaration, hereinafter called "Declaration", recorded on July 16, 1982, in Volume 82139, Page 2714 of the Condominium Records of Dallas County, Texas, the Declarant therein restricted SPRINGMONT CONDOMINIUMS, PHASE I, consisting of twenty-four (24) Units, to Condominium ownership;
and

WHEREAS, the above referenced Declaration provides in Paragraph 2.10 that the Declarant may annex additional property to SPRINGMONT CONDOMINIUMS, PHASE I, as defined therein; and

WHEREAS, the Declarant is desirous of annexing and merging the adjoining tract described as PHASE II in the Declaration on which exist eighteen (18) Units;

NOW THEREFORE, Declarant hereby declares that all of the Property described above as PHASE II in the Declaration shall be held, sold and conveyed subject to the easements, restrictions, covenants and conditions set forth in the Declaration for SPRINGMONT CONDOMINIUMS, PHASE I, all of which are for the purpose of enhancing and protecting the value, desirability and attractiveness of the real property described above. The said easements, restrictions, covenants and conditions shall run with the above described Property and shall be binding on all parties having or acquiring any right,

PAGE

82166 0003

title or interest in the said Property or any part thereof, their heirs, successors and assigns, and shall inure to the benefit of each Owner and lessee thereof.

The Property described in the Plat of SPRINGMONT CONDOMINIUMS, as PHASE II, which Plat is attached hereto as Exhibit "B", shall become a part of the regime, as defined in the Declaration, and the eighteen (18) Units shown on the Plat of PHASE II, shall become Units, as defined in the Declaration, and from and after the filing hereof, SPRINGMONT CONDOMINIUMS, PHASE II shall be a part of the regime as if it had been originally described in the Declaration and the percentage or fraction of ownership interest in the Common Areas is hereby reallocated and established among the total of forty-two (42) Units as set out in Exhibit "C", attached hereto.

This Supplemental Declaration of Merger and Annexation may be amended by Declarant without joinder of any Unit Owner or Mortgagee in order to correct errors and discrepancies in said document or to comply with the requirements of the Veterans Administration, Federal Home Loan Mortgage Corporation, Federal National Mortgage Association or any other permanent lender approved by the Declarant; provided, however, that no vested property rights of any Unit Owner shall be materially affected.

IN WITNESS WHEREOF, the undersigned, being the Declarant herein, has hereto set his hand and seal this 18th day of August, 1982.

U. S. HOME CORPORATION

By:

J. Richard Cooper
Vice President, Controller
J. Richard Cooper

ATTEST:


Mark H. Murphy
Secretary/Region President
Mark H. Murphy

VERIFIED
82166 0004

THE STATE OF TEXAS §
COUNTY OF DALLAS §

BEFORE ME, the undersigned, a Notary Public in and for said County and State, on this day personally appeared J. Richard Cooper, known to me to be the person and officer whose name is subscribed to the foregoing instrument and acknowledged to me that the same was the act of such corporation for the purposes and consideration therein expressed, and in the capacity therein stated.

GIVEN UNDER MY HAND AND SEAL OF OFFICE THIS THE 18th day of August, A.D., 1982.

Patricia H. Morris
Notary Public in and for
Dallas County, Texas

My Commission expires:

October 17, 1985

82166 0005

**SPRINGMONT CONDOMINIUMS
PHASE TWO
LEGAL DESCRIPTION**

Being a tract or parcel of land situated in the City of Dallas, Dallas County, Texas; and being part of the John Witt Survey, Abstract 1584; and being part of Lot 1 Block E/7011 of Spring Valley Condos Addition, an Addition to the City of Dallas as recorded in Volume 82003 Page 281, of the Deed Records of Dallas County, Texas; and being more particularly described as follows:

COMMENCING at a 3/8 inch diameter iron rod for corner at the northwest corner of said Lot 1, said point being in the south line of Spring Valley Road (100 feet wide);

THENCE South 00 degrees 40 minutes 51 seconds East, along the west line of said Lot 1, a distance of 207.37 feet to the POINT OF BEGINNING;

THENCE North 88 degrees 52 minutes 40 seconds East a distance of 90.00 feet to a point for corner;

THENCE South 00 degrees 40 minutes 51 seconds East a distance of 87.00 feet to a point for corner;

THENCE North 88 degrees 52 minutes 40 seconds East a distance of 72.30 feet to a point for corner;

THENCE South 08 degrees 14 minutes 27 seconds East a distance of 118.92 feet to a point for corner in the south line of said Lot 1;

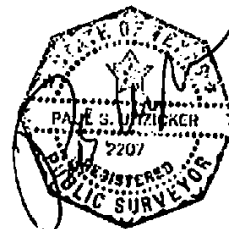
THENCE South 88 degrees 52 minutes 40 seconds West, along the south line of said Lot 1, a distance of 177.95 feet to a 1/2 inch diameter iron rod for corner at the southwest corner of said Lot 1;

THENCE North 00 degrees 40 minutes 51 seconds West, along the west line of said Lot 1, a distance of 205.00 feet to the POINT OF BEGINNING, and containing 27906 square feet or 0.6406 acres of land, more or less.

V E Page

82166 0006

EXHIBIT "A"



7-19-82

CONDOMINIUMS

DALLAS COUNTY, TEXAS

DALLAS COUNTY, TEXAS

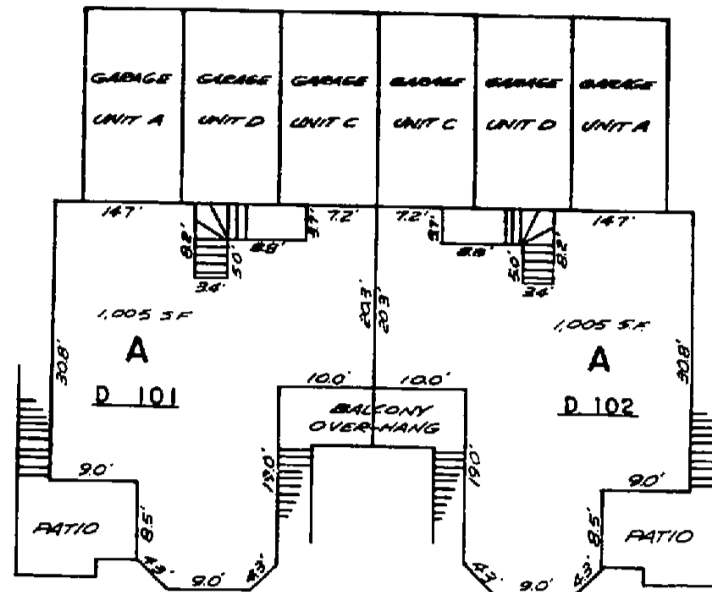


VOL. PAGE
82166 0007

STATE OF TEXAS
PAUL L. DUZICKER
2207
REGISTERED
PUBLIC SURVEYOR

7-19-82

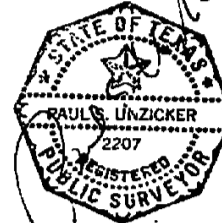
TYPE I BUILDING BUILDING D FIRST FLOOR PLAN 3590 SPRING VALLEY ROAD



82166 0008

GENERAL NOTES

1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.



7-12-82

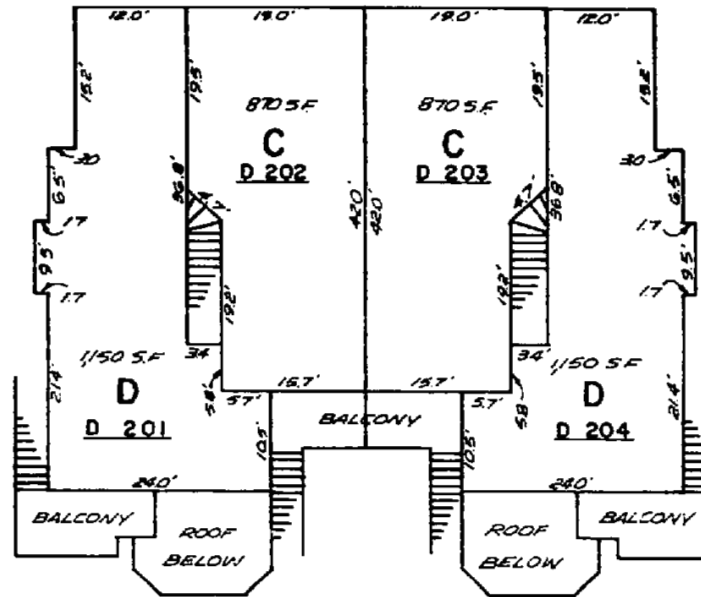
PAUL S. UNZICKER, INC.
Engineering, Planning, and Surveying
323 Arado Dr., P.O. Box 381809
Duncanville, Texas 75138
(214) 296-6555

TYPE I BUILDING

BUILDING D

SECOND FLOOR PLAN

5590 SPRING VALLEY ROAD



82166 0009

PAGE

GENERAL NOTES

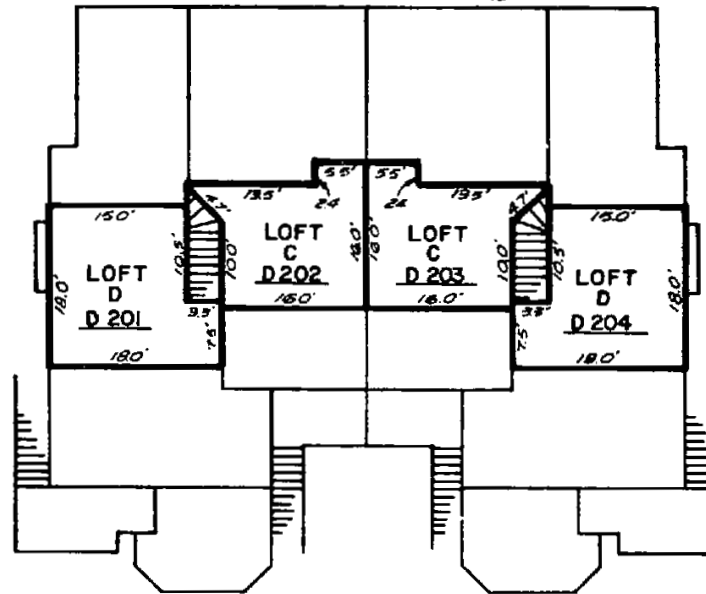
1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.



7-19-82

PAUL S. UNZICKER, INC.
Engineering, Planning, and Surveying
323 Anzio Dr., P.O. Box 381808
Duncanville, Texas 75128
(214) 296-6555

TYPE I BUILDING
BUILDING D
THIRD FLOOR PLAN
 5590 SPRING VALLEY ROAD



82166 0010

PAUL

GENERAL NOTES

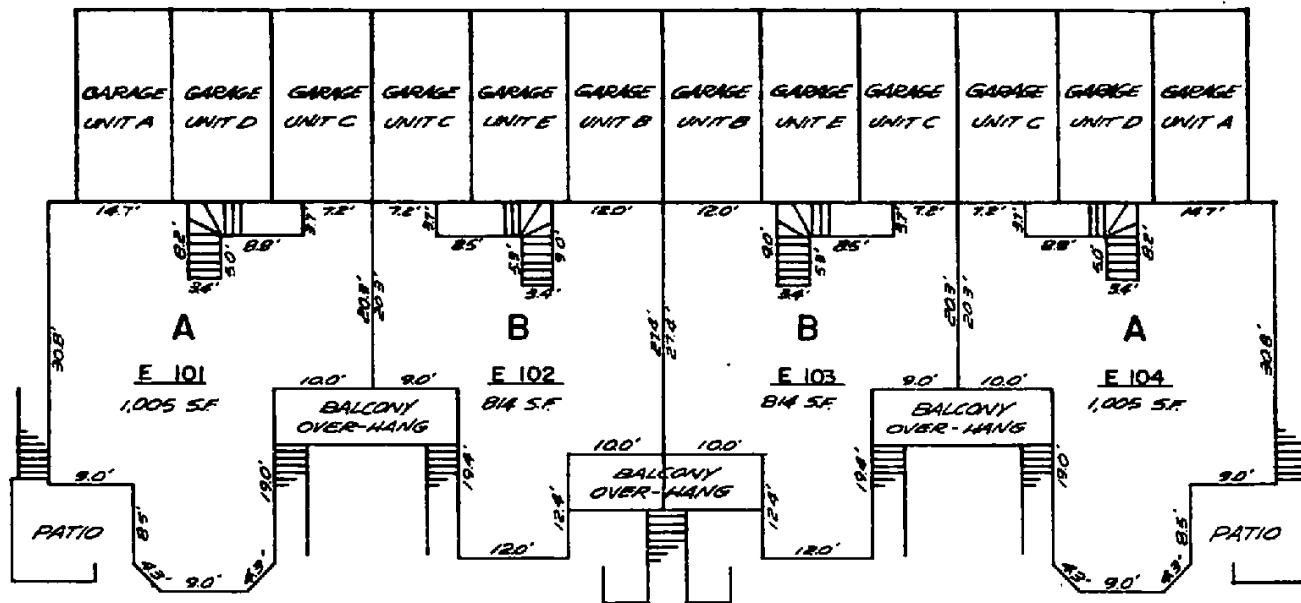
1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.



7-15-82

PAUL S. UNZICKER, INC.
 Engineering, Planning, and Surveying
 323 Anzio Dr., P.O. Box 381808
 Duncanville, Texas 75138
 (214) 296-6555

TYPE 2 BUILDING **BUILDING E** **FIRST FLOOR PLAN** 5590 SPRING VALLEY ROAD

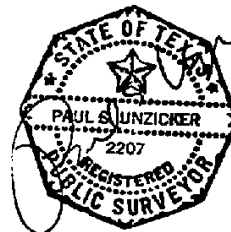


82166 0011

V. 11 P. 65

GENERAL NOTES

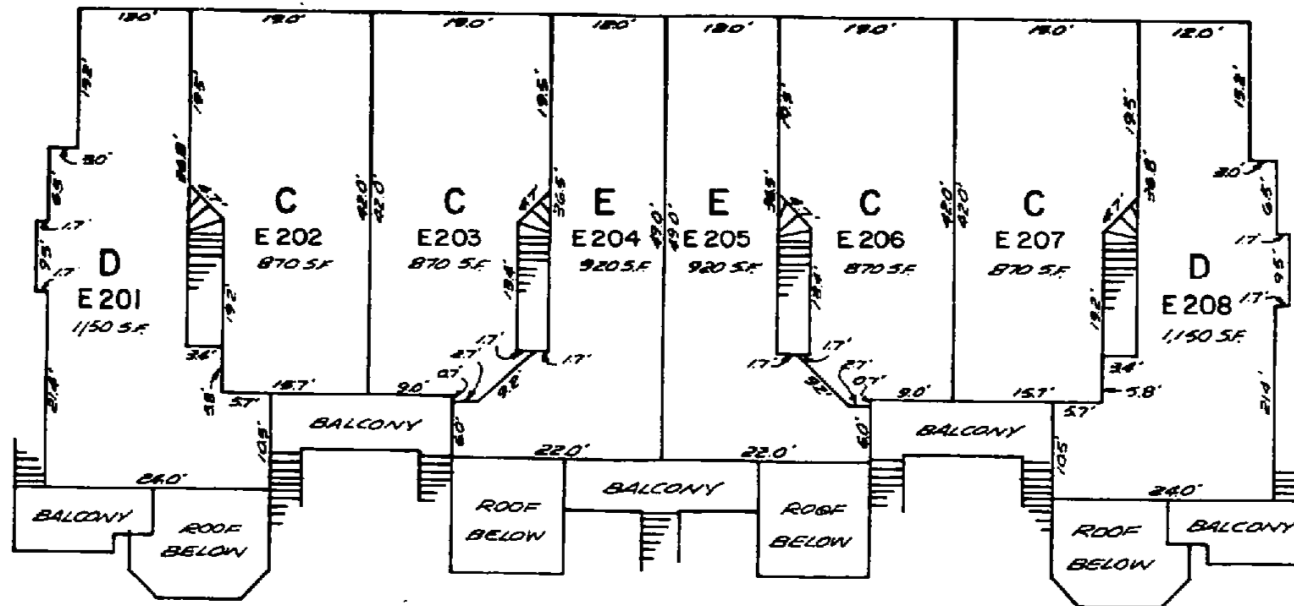
1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.



7-19-82

PAUL S. UNZICKER, INC.
 Engineering, Planning, and Surveying
 323 Anzio Dr., P.O. Box 381609
 Duncanville, Texas 75138
 (214) 296-6555

TYPE 2 BUILDING
BUILDING E
SECOND FLOOR PLAN
 5590 SPRING VALLEY ROAD



82166 0012

PAGE

GENERAL NOTES

1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.

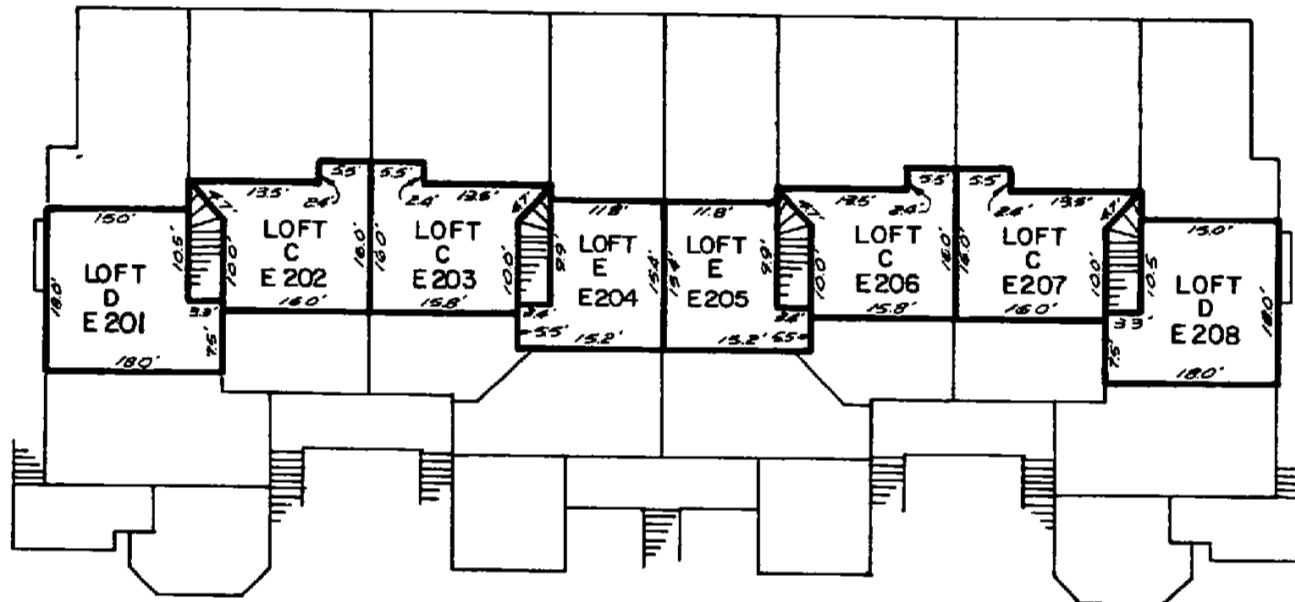


7-19-82

PAUL S. UNZICKER, INC.
 Engineering, Planning, and Surveying
 323 Anzio Dr., P.O. Box 381609
 Duncanville, Texas 75138
 (214) 296-6555

TYPE 2 BUILDING

BUILDING E
THIRD FLOOR PLAN
5590 SPRING VALLEY ROAD



82166 0013

PAGE

GENERAL NOTES

1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.



7-19-82

PAUL S. UNZICKER, INC.
Engineering, Planning, and Surveying
323 Anzio Dr., P.O. Box 381808
Duncanville, Texas 75138
(214) 296-6555

Exhibit "C"

SPRINGMONT CONDOMINIUMS
PERCENTAGE OWNERSHIP INTEREST

Phases I and II Combined

<u>UNIT</u>	<u>TYPE</u>	<u>PERCENTAGE OWNERSHIP INTEREST</u>
A101	A	2.471352
A102	A	2.471352
A201	D	2.827915
A202	C	2.139379
A203	C	2.139379
A204	D	2.827915
B101	A	2.471352
B102	A	2.471352
B201	D	2.827915
B202	C	2.139379
B203	C	2.139379
B204	D	2.827915
C101	A	2.471352
C102	B	2.001673
C103	B	2.001673
C104	A	2.471352
C201	D	2.827915
C202	C	2.139379
C203	C	2.139379
C204	E	2.262333
C205	E	2.262333
C206	C	2.139379
C207	C	2.139379
C208	D	2.827915
D101	A	2.471352
D102	A	2.471352
D201	D	2.827915
D202	C	2.139379
D203	C	2.139379
D204	D	2.827915
E101	A	2.471352
E102	B	2.001673
E103	B	2.001673
E104	A	2.471352
E201	D	2.827915
E202	C	2.139379
E203	C	2.139379
E204	E	2.262333
E205	E	2.262333
E206	C	2.139379
E207	C	2.139379
E208	D	2.827915
		100.000000

FILED

[Signature]
COUNTY CLERK
DALLAS COUNTY

82166 0015

1982 AUG 24 AM 8:13

Page 1

COUNTY CLERK, DALLAS COUNTY, TEXAS

AUG 25 1982



STATE OF TEXAS
COUNTY OF DALLAS
I hereby certify that this instrument was filed on the
date and time stamped hereon by me and was duly re-
corded in the volume and page of the named records
of Dallas County, Texas as stamped hereon by me.

Return to:



COMMONWEALTH LAND
TITLE COMPANY OF DALLAS

2875 PROMENADE CENTER
RICHARDSON, TEXAS 75080

**CONDOMINIUM
RECORDS**

**SUPPLEMENTAL DECLARATION
OF MERGER AND ANNEXATION
FOR
SPRINGMONT CONDOMINIUMS
PHASE III**

A

8748

0

19.00 DEED
1 08/26/83

STATE OF TEXAS §
COUNTY OF DALLAS §

KNOW ALL MEN BY THESE PRESENTS:

THIS DECLARATION is made on the date set forth below by U. S. HOME CORPORATION, a Delaware Corporation, hereinafter called "Declarant",

W I T N E S S E T H :

WHEREAS, Declarant is the Owner of certain property in the County of Dallas, State of Texas, which is more particularly described on the attached Exhibit "A", and

WHEREAS, by a Condominium Declaration, hereinafter called "Declaration", recorded on July 16, 1982, in Volume 82139, Page 2714, of the Condominium Records of Dallas County, Texas, the Declarant therein restricted SPRINGMONT CONDOMINIUMS, PHASE I, consisting of twenty-four (24) Units, to Condominium ownership; and

WHEREAS, by a Supplemental Declaration of Merger and Annexation for SPRINGMONT CONDOMINIUMS, PHASE II, filed August 24, 1982, and recorded in Volume 82166, Page 0003, of the Condominium Records of Dallas County, Texas, the Declarant therein restricted an additional eighteen (18) Units to Condominium ownership; and

WHEREAS, the above referenced Declaration provides in Paragraph 2.10 that the Declarant may annex additional property to SPRINGMONT CONDOMINIUMS, PHASE I, as defined therein; and

WHEREAS, the Declarant is desirous of annexing and merging the adjoining tract described as PHASE III in the Declaration on which exist twelve (12) Units;

NOW THEREFORE, Declarant hereby declares that all of the Property described above as PHASE III shall be held, sold and conveyed subject to the easements, restrictions, covenants and conditions set forth in the Declaration for SPRINGMONT CONDOMINIUMS, PHASE I, all of which are for the purpose of enhancing and protecting the value, desirability and attractiveness of the real property described above. The said easements, restrictions, covenants

83268 0629

83268 0629

and conditions shall run with the above described Property and shall be binding on all parties having or acquiring any right, title or interest in the said Property or any part thereof, their heirs, successors and assigns, and shall inure to the benefit of each Owner and lessee thereof.

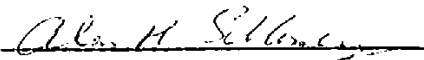
The Property described in the Plat of SPRINGMONT CONDOMINIUMS, as PHASE III, which Plat is attached hereto as Exhibit "B", shall become a part of the regime, as defined in the Declaration, and the twelve (12) Units shown on the Plat of PHASE III, shall become Units, as defined in the Declaration, and from and after the filing hereof, SPRINGMONT CONDOMINIUMS, PHASE III shall be a part of the regime as if it had been originally described in the Declaration and the percentage or fraction of ownership interest in the Common Areas is hereby reallocated and established among the total of fifty-four (54) Units as set out in Exhibit "C", attached hereto.

This Supplemental Declaration of Merger and Annexation may be amended by Declarant without joinder of any Unit Owner or Mortgagee in order to correct errors and discrepancies in said document or to comply with the requirements of the Veterans Administration, Federal Home Loan Mortgage Corporation, Federal National Mortgage Association or any other permanent lender approved by the Declarant; provided, however, that no vested property rights of any Unit Owner shall be materially affected.

IN WITNESS WHEREOF, the undersigned, being the Declarant herein, has hereto set his hand and seal this 24th day of August, A.D., 1983.

U. S. HOME CORPORATION

By:


Vice President, Purchasing
Alan H. Schlossberg

ATTEST:


Secretary/Division President
Mark H. Murphy

VOL. PAGE
8316S 0630

THE STATE OF TEXAS §

COUNTY OF DALLAS §

BEFORE ME, the undersigned, a Notary Public in and for said County and State, on this day personally appeared Alan H. Schlossberg,
Vice President, Purchasing of U.S. Home Corporation, known to me to be the person and officer whose name is subscribed to the foregoing instrument and acknowledged to me that the same was the act of such corporation for the purposes and consideration therein expressed, and in the capacity therein stated.

GIVEN UNDER MY HAND AND SEAL OF OFFICE THIS THE 24th day
of August, A.D., 1983.

Patricia L. Morris
Notary Public in and for
The State of Texas
My Commission Expires: 10/17/85

VOL. PAGE
83168 0631

SPRINGMONT CONDOMINIUMS
PHASE THREE
LEGAL DESCRIPTION

Being a tract or parcel of land situated in the City of Dallas, Dallas County, Texas; and being part of the John Witt Survey, Abstract 1584; and being part of Lot 1 Block E/7011 of Spring Valley Condos Addition, an Addition to the City of Dallas as recorded in Volume 82003 Page 281, of the Deed Records of Dallas County, Texas; and being more particularly described as follows:

COMMENCING at a 3/8 inch diameter iron rod for corner at the northwest corner of said Lot 1, said point being in the south line of Spring Valley Road (100 feet wide);

THENCE South 00 degrees 40 minutes 51 seconds East, along the West line of said Lot 1, a distance of 412.37 feet to a 1/2 inch diameter iron rod for corner;

THENCE North 88 degrees 52 minutes 40 seconds East, along the South line of said Lot 1, a distance of 177.95 feet to the POINT OF BEGINNING;

THENCE North 08 degrees 14 minutes 27 seconds West a distance of 118.92 feet to a point for corner;

THENCE North 16 degrees 37 minutes 10 seconds East a distance of 63.11 feet to a point for corner;

THENCE South 72 degrees 29 minutes 05 seconds East a distance of 158.79 feet to a point for corner;

THENCE South 17 degrees 30 minutes 55 seconds West, along the East line of said Lot 1, a distance of 134.42 feet to a 3/8 inch diameter iron rod for corner;

THENCE South 88 degrees 52 minutes 40 seconds West, along the South line of said Lot 1, a distance of 112.00 feet to the POINT OF BEGINNING containing 22,224 square feet or 0.5102 acres of land more or less

EXHIBIT "A"

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83168 0632



SPRINGMONT CONDOMINIUMS

CITY OF DALLAS, DALLAS COUNTY, TEXAS

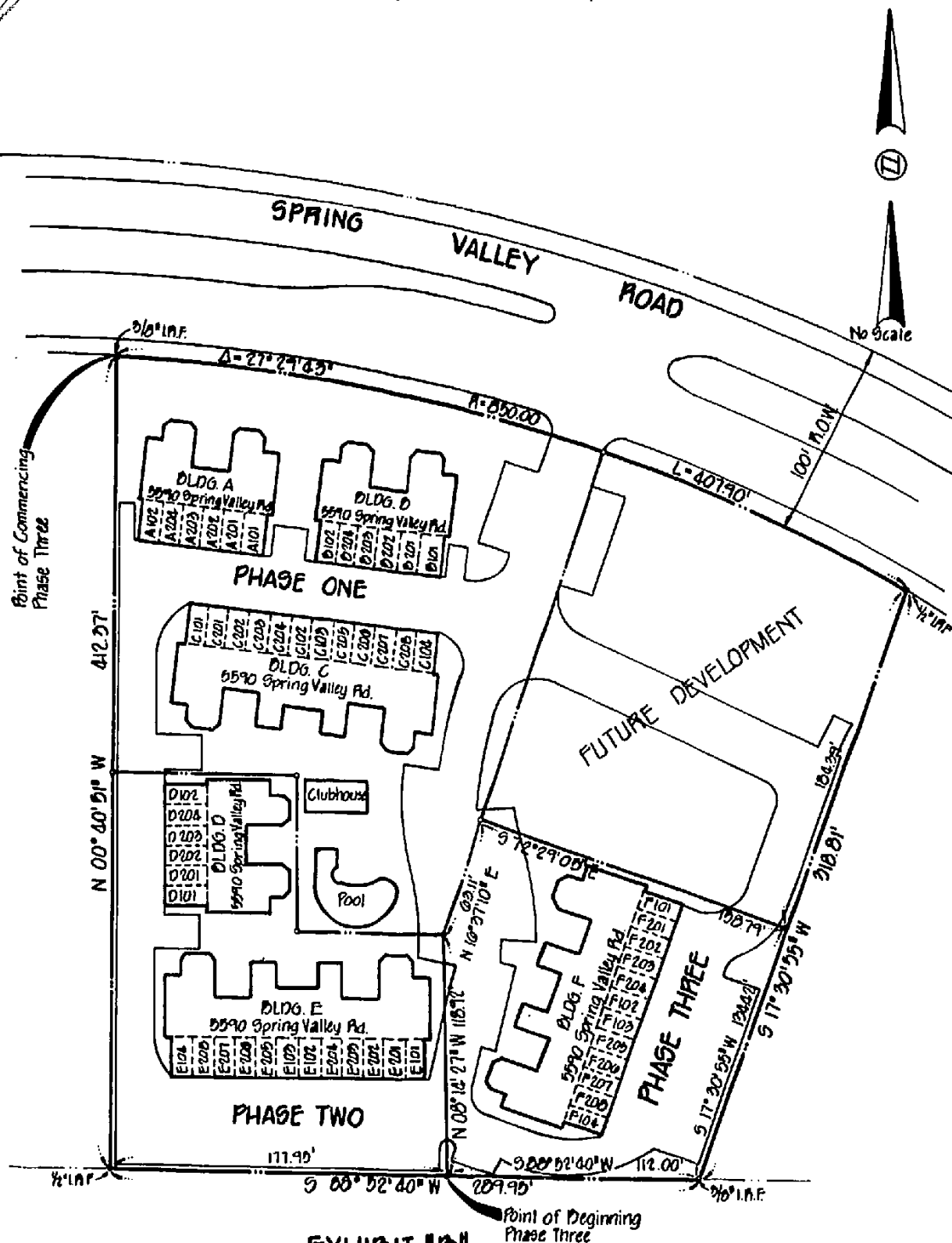
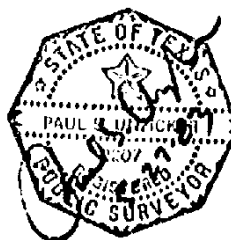


EXHIBIT "D"
PHASE THREE

VOL: PAGE
83168 0633

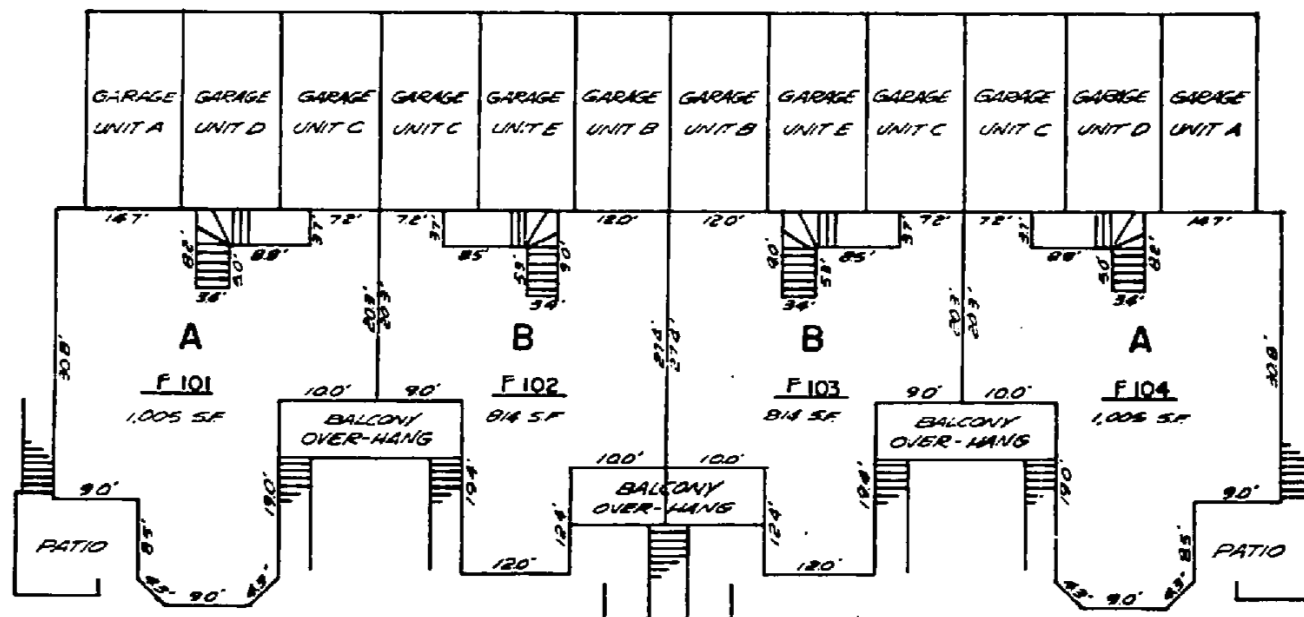


Paul S. Unzicker, Inc.
Consulting Engineers
1230 River Bend Drive, Suite 123
Dallas, Texas 75247
(214) 634-9300

TYPE 2 BUILDING

BUILDING F FIRST FLOOR PLAN

5590 SPRING VALLEY ROAD



VUL. LABEL
83169 0634

GENERAL NOTES

1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.

EXHIBIT "B"

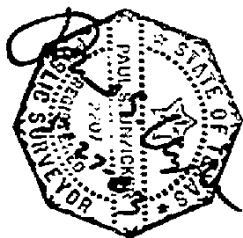
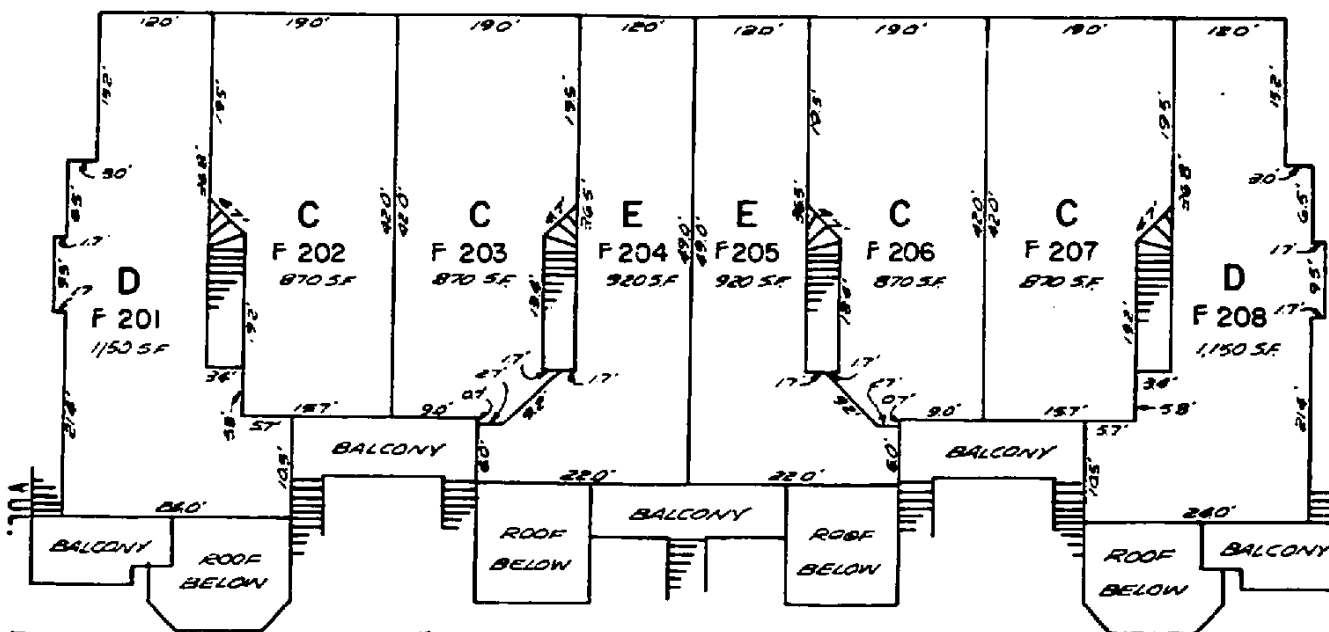
Paul S. Unzicker, Inc.
Consulting Engineers
1230 River Bend Drive, Suite 123
Dallas, Texas 75247
(214) 634-3300

TYPE 2 BUILDING

BUILDING F

SECOND FLOOR PLAN

5590 SPRING VALLEY ROAD



53169 0635
PAUL S. UNZICKER, INC.

GENERAL NOTES

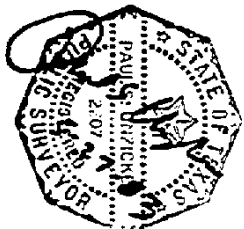
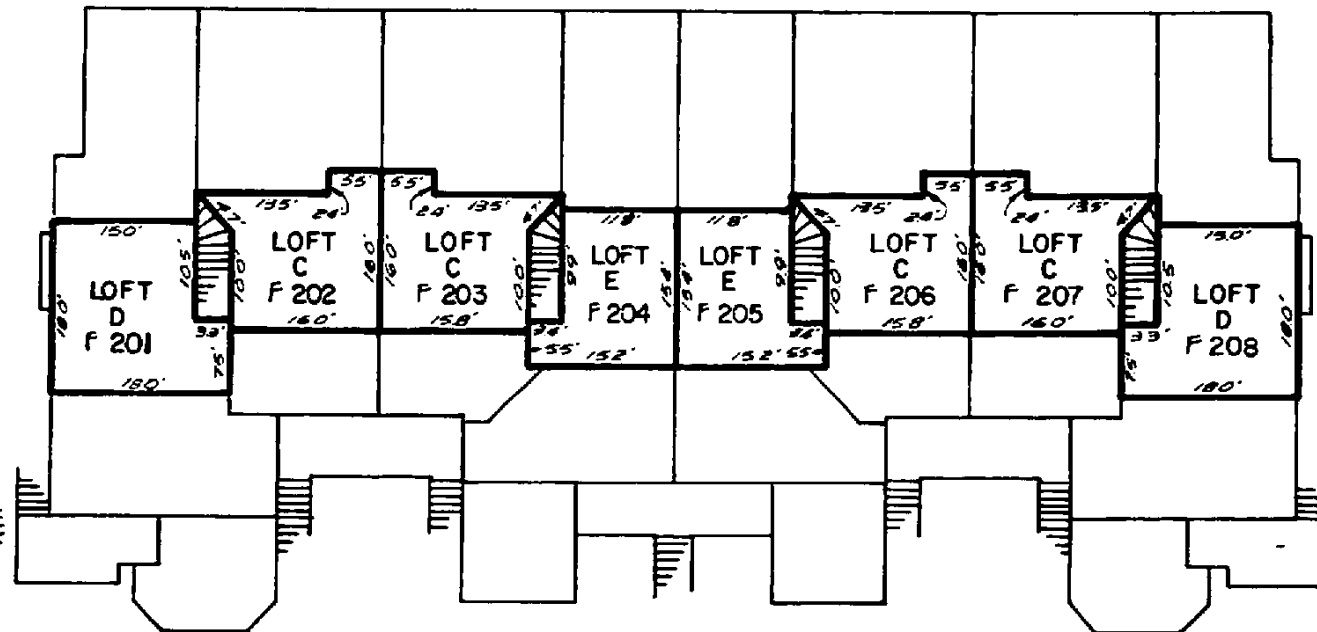
1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.

EXHIBIT "B"

Paul S. Unzicker, Inc.
Consulting Engineers
1230 River Bend Drive, Suite 123
Dallas, Texas 75247
(214) 634-3300

TYPE 2 BUILDING

BUILDING F
THIRD FLOOR PLAN
5590 SPRING VALLEY ROAD



83168 0636

VOL. KAUF

GENERAL NOTES

1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.

EXHIBIT "B"

Paul S. Unzicker, Inc.
Consulting Engineers
1230 River Bend Drive, Suite 123
Dallas, Texas 75247
(214) 634-3300

EXHIBIT "C"

SPRINGMONT CONDOMINIUMS

PHASES I, II and III COMBINED
PERCENTAGE OWNERSHIP INTEREST
IN AND TO THE COMMON ELEMENTS

<u>UNIT</u>	<u>TYPE</u>	<u>PERCENTAGE OWNERSHIP INTEREST</u>
A101	A	1.935521
A102	A	1.935521
A201	D	2.214775
A202	C	1.675526
A203	C	1.675526
A204	D	2.214775
B101	A	1.935521
B102	A	1.935521
B201	D	2.214775
B202	C	1.675526
B203	C	1.675526
B204	D	2.214775
C101	A	1.935521
C102	B	1.567676
C103	B	1.567676
C104	A	1.935521
C201	D	2.214775
C202	C	1.675526
C203	C	1.675526
C204	E	1.771821
C205	E	1.771821
C206	C	1.675526
C207	C	1.675526
C208	D	2.214775
D101	A	1.935521
D102	A	1.935521
D201	D	2.214775
D202	C	1.675526
D203	C	1.675526
D204	D	2.214775
E101	A	1.935521
E102	B	1.567676
E103	B	1.567676
E104	A	1.935521
E201	D	2.214775
E202	C	1.675526
E203	C	1.675526
E204	E	1.771821
E205	E	1.771821
E206	C	1.675526
E207	C	1.675526
E208	D	2.214775
F101	A	1.935521
F102	B	1.567676
F103	B	1.567676
F104	A	1.935521
F201	D	2.214775
F202	C	1.675526
F203	C	1.675526
F204	E	1.771820
F205	E	1.771820
F206	C	1.675526
F207	C	1.675526
F208	D	2.214775
		100.000000

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83168 0637

Return to:
Frank J. Murphy
U. S. Home Corporation
301 West Illinois
13931 W. Central Expressway, Suite 315
Dallas, TX 75243

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63168 0638

STATE OF TEXAS COUNTY OF DALLAS
I hereby certify that this instrument was filed on the
date and time stamped hereon by me and was duly re-
corded in the volume and page of the named records
of Dallas County, Texas as stamped hereon by me.

AUG 26 1983



Earl B. Burt
COUNTY CLERK, Dallas County, Texas

62 4 29 AUG 29 1983

Seal of the County Clerk of Dallas County, Texas

79
**CONDOMINIUM
RECORDS**

SUPPLEMENTAL DECLARATION
OF MERGER AND ANNEXATION
§
FOR
SPRINGMONT CONDOMINIUMS
PHASE IV

1992 0 29.00 DEED
2 08/29/83

THE STATE OF TEXAS §
COUNTY OF DALLAS § KNOW ALL MEN BY THESE PRESENTS:
§

THIS DECLARATION is made on the date set forth below by U.S. HOME CORPORATION, a Delaware corporation, and HOMECRAFT CAPITAL CORPORATION, a Texas corporation, hereinafter collectively called "Declarant,"

W I T N E S S E T H :

WHEREAS, one of the parties comprising Declarant is the Owner of certain property in the County of Dallas, State of Texas, which is more particularly described on the attached Exhibit "A", and

WHEREAS, by a Condominium Declaration, hereinafter called "Declaration", recorded on July 16, 1982, in Volume 82139, Page 2714, of the Condominium Records of Dallas County, Texas, the Declarant therein restricted SPRINGMONT CONDOMINIUMS, PHASE I, consisting of twenty-four (24) Units, to Condominium ownership; and

WHEREAS, by a Supplemental Declaration of Merger and Annexation for SPRINGMONT CONDOMINIUMS, PHASE II, filed on August 24, 1982, and recorded in Volume 82166, Page 0003, of the Condominium Records of Dallas County, Texas, the Declarant therein restricted an additional eighteen (18) Units to Condominium ownership; and

WHEREAS, by a Supplemental Declaration of Merger and Annexation for SPRINGMONT CONDOMINIUMS, PHASE III, filed on August 24, 1983, and recorded in Volume 83168, Page 0629, of the Condominium Records of Dallas County, Texas, the Declarant therein restricted an additional twelve (12) Units to Condominium ownership; and

WHEREAS, the above referenced Declaration provides in Paragraph 2.10 ~~that~~ ^{that} the Declarant may annex additional property to SPRINGMONT CONDOMINIUMS, PHASE I, as defined therein; and

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83168 4611

WHEREAS, the Declarant is desirous of annexing and merging the adjoining tract described as PHASE IV in the Declaration on which exist twenty-four (24) Units;

NOW, THEREFORE, Declarant hereby declares that all of the Property described above as PHASE IV shall be held, sold and conveyed subject to the easements, restrictions, covenants and conditions set forth in the Declaration for SPRINGMONT CONDOMINIUMS, PHASE I, all of which are for the purpose of enhancing and protecting the value, desirability and attractiveness of the real property described above. The said easements, restrictions, covenants and conditions shall run with the above described Property and shall be binding on all parties having or acquiring any right, title or interest in the said Property or any part thereof, their heirs, successors and assigns, and shall inure to the benefit of each Owner and lessee thereof.

The Property described in the Plat of SPRINGMONT CONDOMINIUMS, as PHASE IV, which Plat is attached hereto as Exhibit "B", shall become a part of the regime, as defined in the Declaration, and the twenty-four (24) Units shown on the Plat of PHASE IV, shall become Units, as defined in the Declaration, and from and after the filing hereof, SPRINGMONT CONDOMINIUMS, PHASE IV shall be a part of the regime as if it had been originally described in the Declaration and the percentage or fraction of ownership interest in the Common Areas is hereby reallocated and established among the total of seventy-eight (78) Units as set out in Exhibit "C", attached hereto.

This Supplemental Declaration of Merger and Annexation may be amended by Declarant without joinder of any Unit Owner or Mortgagee in order to correct errors and discrepancies in said document or to comply with the requirements of the Veterans Administration, Federal Home Loan Mortgage Corporation, Federal National Mortgage Association or any other permanent lender approved by the Declarant; provided, however, that no vested property rights of any Unit Owner shall be materially affected.

IN WITNESS WHEREOF, the undersigned, being the Declarant herein,
has hereto set its hand and seal this 26th day of August, A.D., 1983.

U.S. HOME CORPORATION

By: Alan H. Schlossberg
Alan H. Schlossberg
Vice President/Purchasing

ATTEST:

Mark H. Murphy
Secretary/Division President
Mark H. Murphy

HEMOCRAFT CAPITAL CORPORATION

By: George A. d'Hennin^{III}
George d'Hennin
Vice President

THE STATE OF TEXAS §
 §
COUNTY OF DALLAS §

BEFORE ME, the undersigned, a Notary Public in and for said State,
on this day personally appeared ALAN H. SCHLOSSBERG, Vice
President/Purchasing of U.S. HOME CORPORATION, known to be to be the
person and officer whose name is subscribed to the foregoing instrument and
acknowledged to me that the same was the act of said corporation for the
purposes and consideration therein expressed, and in the capacity therein
stated.

GIVEN UNDER MY HAND AND SEAL OF OFFICE THIS the 26th day of
August, A.D., 1983.

Patricia L. Morris
Name: Patricia L. Morris
(Type or Print Name)
NOTARY PUBLIC IN AND FOR
THE STATE OF TEXAS

My Commission Expires:

10/17/85

Vol. Page

THE STATE OF TEXAS §
 §
COUNTY OF DALLAS §

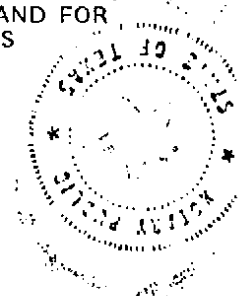
BEFORE ME, the undersigned, a Notary Public in and for said State, on this day personally appeared GEORGE d'HEMECOURT, Vice President of HOMECRAFT CAPITAL CORPORATION, known to be to be the person and officer whose name is subscribed to the foregoing instrument and acknowledged to me that the same was the act of said corporation for the purposes and consideration therein expressed, and in the capacity therein stated.

GIVEN UNDER MY HAND AND SEAL OF OFFICE THIS the 26th day of August, A.D., 1983.

Philip F. Barber
Name: Philip F. Barber
(Type or Print Name)
NOTARY PUBLIC IN AND FOR
THE STATE OF TEXAS

My Commission Expires:

5/19/87



VOL. PAGE

83169 4614

SPRINGMONT CONDOMINIUMS
PHASE FOUR
LEGAL DESCRIPTION

Being a tract or parcel of land situated in the City of Dallas, Dallas County, Texas; and being part of the John Witt Survey, Abstract 1584; and being part of Lot 1 Block E/7011 of Spring Valley Condos Addition, an Addition to the City of Dallas as recorded in Volume 82003 Page 281, of the Deed Records of Dallas County, Texas; and being more particularly described as follows:

BEGINNING at a 1/2 inch diameter iron rod for corner at the Northeast corner of said Lot 1, said point being in the South line of Spring Valley Road (100 feet wide);

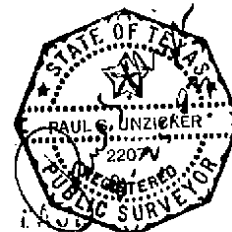
THENCE South 17 degrees 30 minutes 55 seconds West, along the East line of said Lot 1, a distance of 184.39 feet to a point for corner;

THENCE North 72 degrees 29 minutes 05 seconds West a distance of 158.79 feet to a point for corner;

THENCE North 16 degrees 37 minutes 10 seconds East a distance of 199.09 feet to a point on a curve to the right, said point also being on the South line of said Spring Valley Road;

THENCE along a curve to the right and along the South line of said Spring Valley Road, having a radius of 850.00 feet, a central angle of 010 degrees 58 minutes 50 seconds, an arc length of 162.90 feet, and a chord which bears South 67 degrees 01 minutes 29 seconds East to the POINT OF BEGINNING containing 31,218 square feet or 0.7167 acres of land more or less.

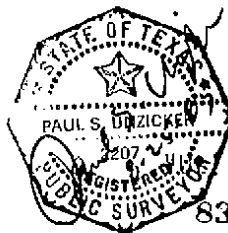
EXHIBIT "A"



VOL.

83169 4615

CITY OF DALLAS, DALLAS COUNTY, TEXAS

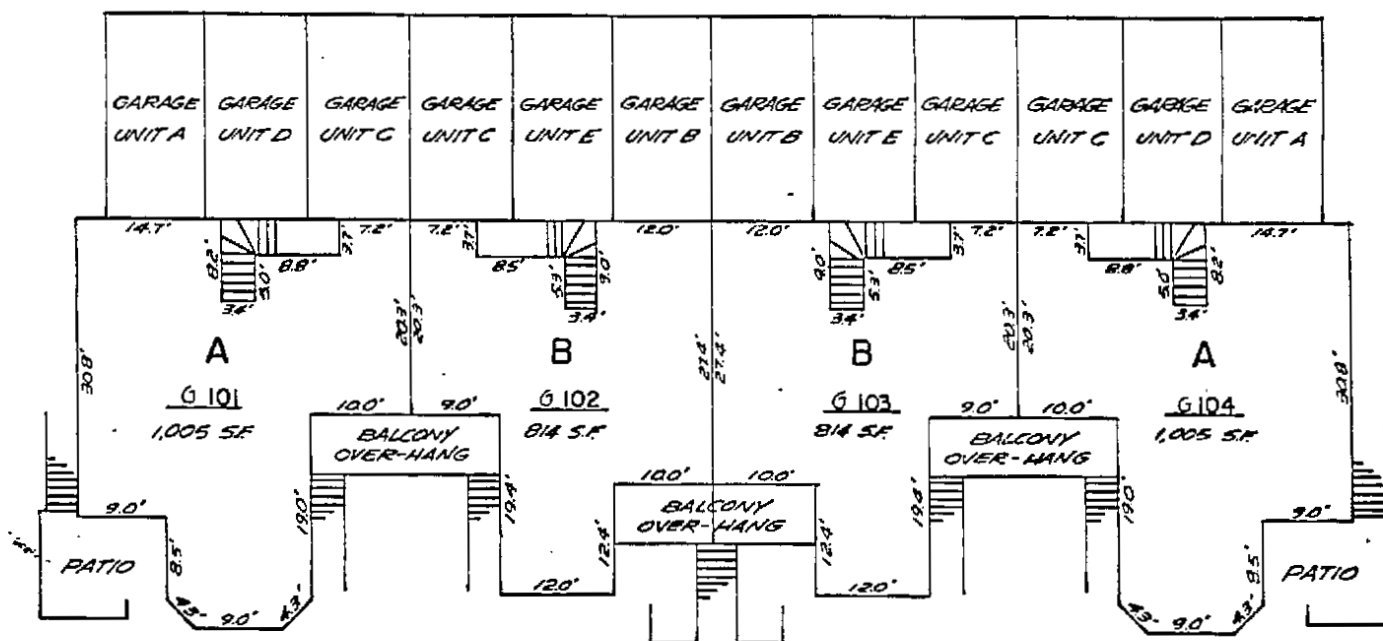


16 (214) 634-3300

83169 4616 (214) 634-3300

EXHIBIT "B"

5590 SPRING VALLEY ROAD



GENERAL NOTES

1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.

Paul S. Unzicker, Inc.
Consulting Engineers
1230 River Bend Drive, Suite 123
Dallas, Texas 75247
(214) 634-3300

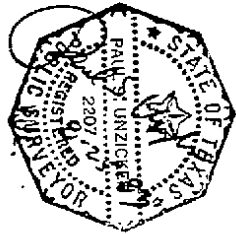
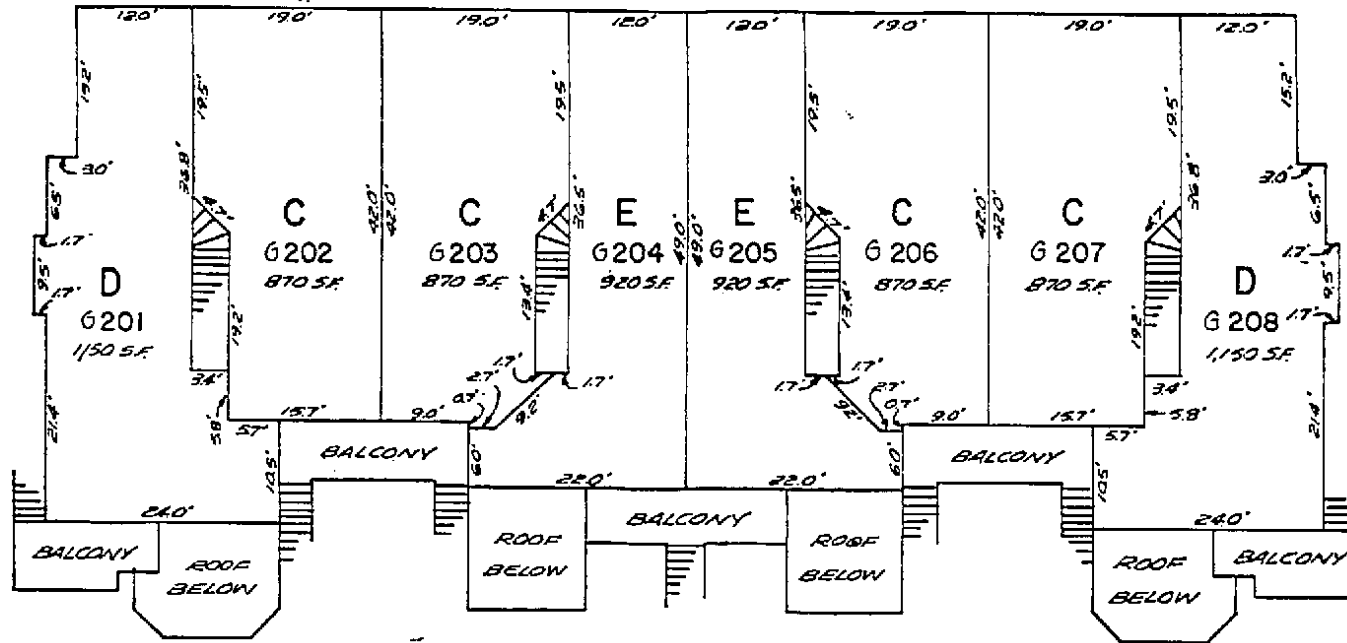
EXHIBIT "B"

TYPE 2 BUILDING

BUILDING 6

SECOND FLOOR PLAN

5590 SPRING VALLEY ROAD



63169 4618

GENERAL NOTES

1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.

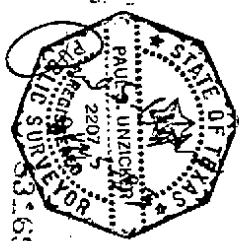
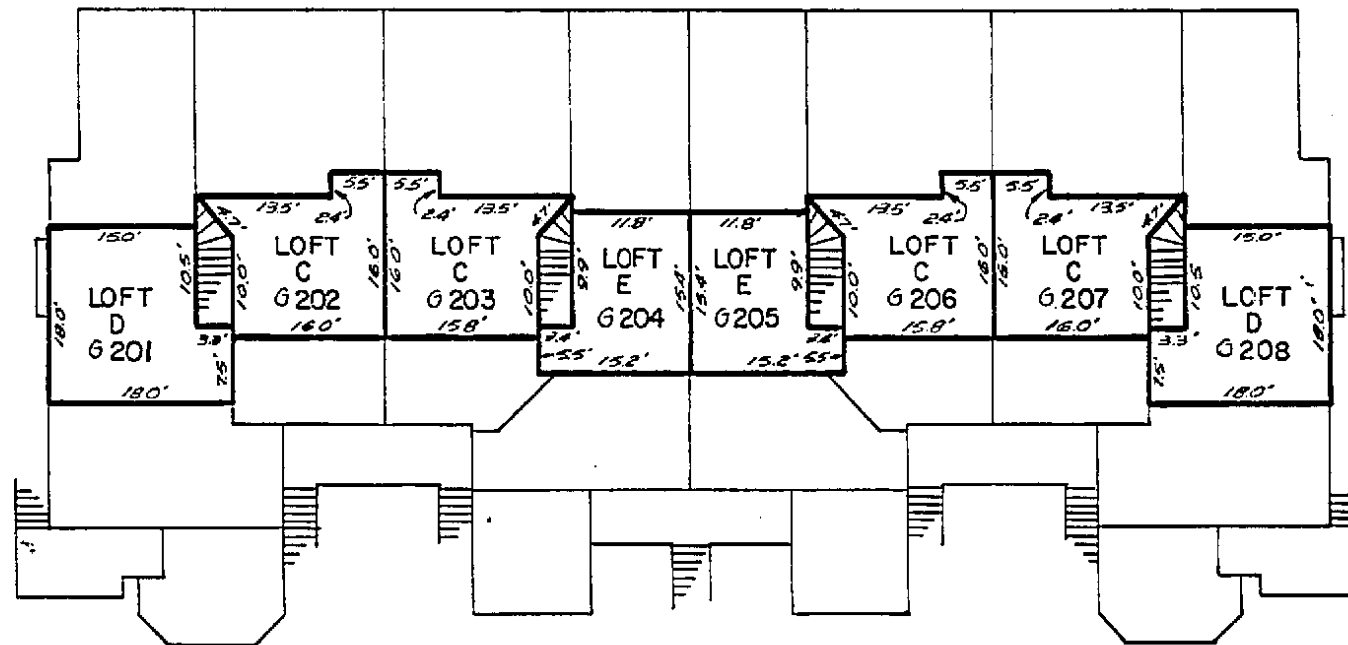
Paul S. Unzicker, Inc.
Consulting Engineers
1230 River Bend Drive, Suite 123
Dallas, Texas 75247
(214) 634-3300

EXHIBIT "B"

TYPE 2 BUILDING

BUILDING G
THIRD FLOOR PLAN

5590 SPRING VALLEY ROAD



GENERAL NOTES

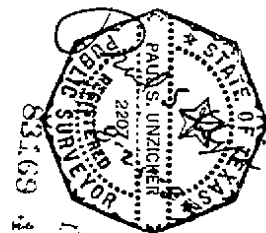
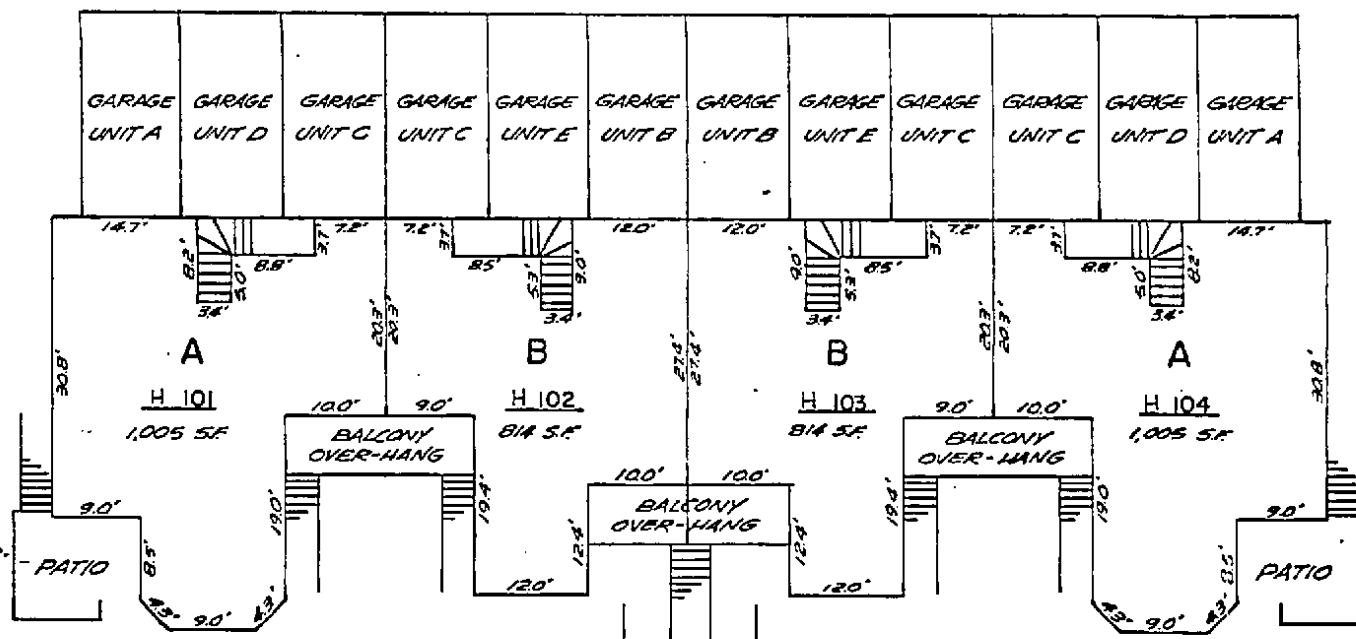
1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.

Paul S. Unzicker, Inc.
Consulting Engineers
1230 River Bend Drive, Suite 123
Dallas, Texas 75247
(214) 634-3300

EXHIBIT "B"

TYPE 2 BUILDING

BUILDING H
FIRST FLOOR PLAN
5590 SPRING VALLEY ROAD



GENERAL NOTES

1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.

Paul S. Unzicker, Inc.
Consulting Engineers
1230 River Bend Drive, Suite 123
Dallas, Texas 75247
(214) 634-3300

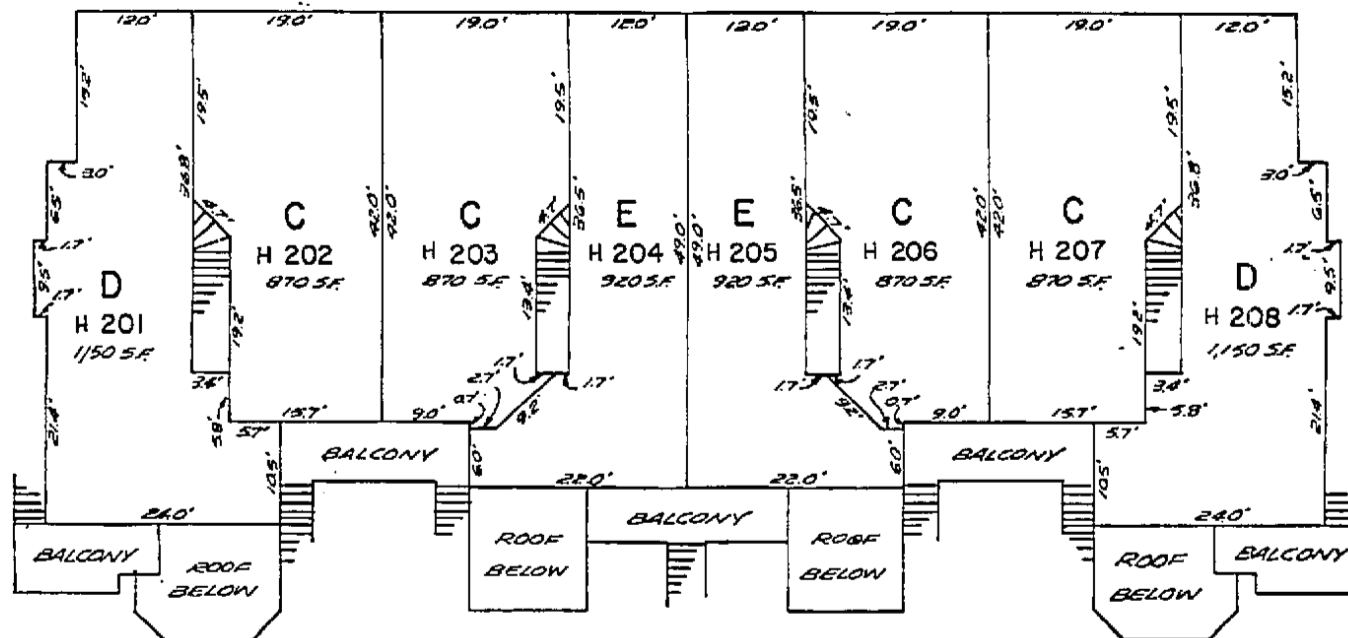
EXHIBIT "B"

TYPE 2 BUILDING

BUILDING H

SECOND FLOOR PLAN

5590 SPRING VALLEY ROAD



GENERAL NOTES.

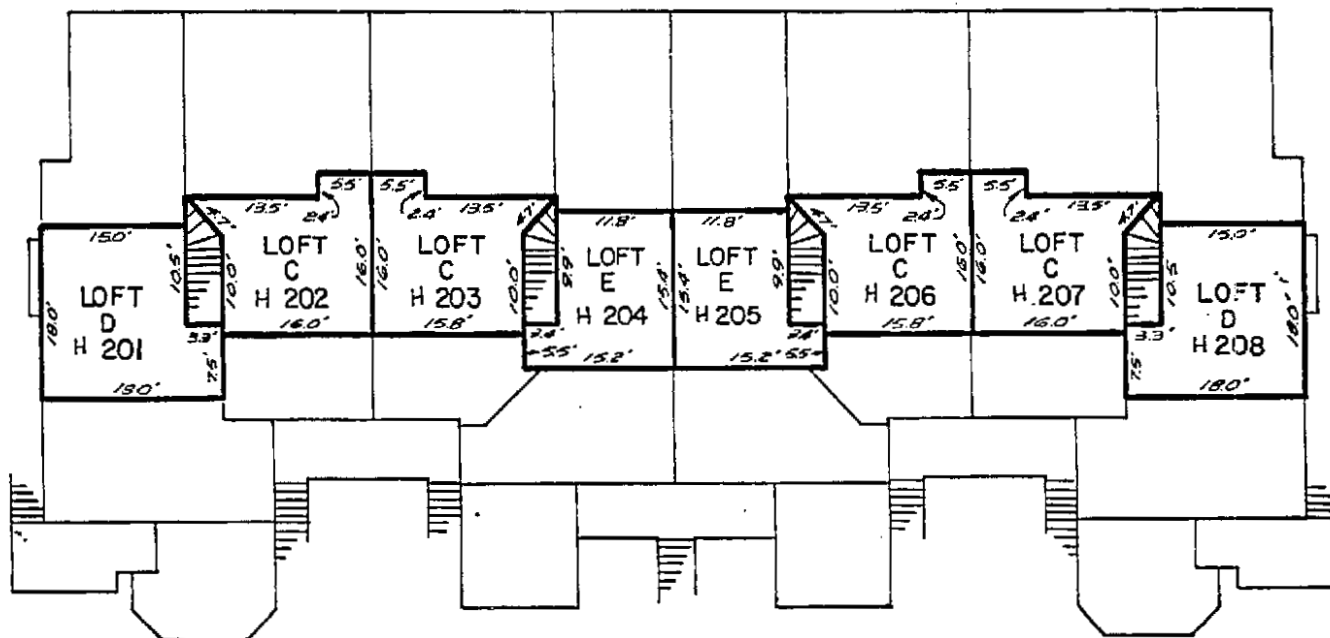
- The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
- All boundary walls are common elements.
- Style of unit is depicted as A, B, C, D, E.

Paul S. Unzicker, Inc.
Consulting Engineers
1230 River Bend Drive, Suite 123
Dallas, Texas 75247
(214) 634-3300

EXHIBIT "B"

TYPE 2 BUILDING

BUILDING H
THIRD FLOOR PLAN
5590 SPRING VALLEY ROAD



GENERAL NOTES

1. The dimensions, limits, and square footages of the individual units are based on drawings, plans, and data prepared by Kaufman Associates, Inc. and are typical for like units.
2. All boundary walls are common elements.
3. Style of unit is depicted as A, B, C, D, E.

Paul S. Unzicker, Inc.
Consulting Engineers
1230 River Bend Drive, Suite 123
Dallas, Texas 75247
(214) 634-3300

EXHIBIT "C"

SPRINGMONT CONDOMINIUMS
 PHASES I, II, III and IV COMBINED
 PERCENTAGE OWNERSHIP INTEREST
 IN AND TO THE COMMON ELEMENTS

<u>UNIT</u>	<u>TYPE</u>	<u>PERCENTAGE OWNERSHIP INTEREST</u>
A101	A	1.350080
A102	A	1.350080
A201	D	1.544868
A202	C	1.168727
A203	C	1.168727
A204	D	1.544868
B101	A	1.350080
B102	A	1.350080
B201	D	1.544868
B202	C	1.168727
B203	C	1.168727
B204	D	1.544868
C101	A	1.350080
C102	B	1.093498
C103	B	1.093498
C104	A	1.350080
C201	D	1.544868
C202	C	1.168727
C203	C	1.168727
C204	E	1.235895
C205	E	1.235895
C206	C	1.168727
C207	C	1.168727
C208	D	1.544868
D101	A	1.350080
D102	A	1.350080
D201	D	1.544868
D202	C	1.168727
D203	C	1.168727
D204	D	1.544868
E101	A	1.350080
E102	B	1.093498
E103	B	1.093498
E104	A	1.350080
E201	D	1.544868
E202	C	1.168727
E203	C	1.168727
E204	E	1.235895
E205	E	1.235895
E206	C	1.168727
E207	C	1.168727
E208	D	1.544868
F101	A	1.350080
F102	B	1.093498
F103	B	1.093498
F104	A	1.350080
F201	D	1.544868
F202	C	1.168727
F203	C	1.168727
F204	E	1.235895
F205	E	1.235895
F206	C	1.168727
F207	C	1.168727
F208	D	1.544868

<u>UNIT</u>	<u>TYPE</u>	<u>PERCENTAGE OWNERSHIP INTEREST</u>
G101	A	1.350080
G102	B	1.093498
G103	B	1.093498
G104	A	1.350080
G201	D	1.544868
G202	C	1.168727
G203	C	1.168727
G204	E	1.235895
G205	E	1.235895
G206	C	1.168727
G207	C	1.168727
G208	D	1.544868
H101	A	1.350080
H102	B	1.093498
H103	B	1.093498
H104	A	1.350080
H201	D	1.544868
H202	C	1.168727
H203	C	1.168727
H204	E	1.235895
H205	E	1.235895
H206	C	1.168727
H207	C	1.168727
H208	D	1.544868
		100.000000

VOL. PAGE

83169 4624

STATE OF TEXAS COUNTY OF DALLAS
I hereby certify that this instrument was filed on the
date and time stamped hereon by me and was duly re-
corded in the volume and page of the named records
of Dallas County, Texas as stamped hereon by me.

AUG 29 1983



Earl Burch
COUNTY CLERK, Dallas County, Texas

83 AUG 26 PM 4 18

FILED
Burch
COUNTY CLERK
DALLAS COUNTY

Return to:
MARK MURPHY
U.S. HOME CORPORATION
13931 NO. CENTRAL EXPRESSWAY
SUITE 315
DALLAS TX 75243

...VOL: ... PAGE
83163 4625



201400234912

EASEMENT 1/4

EASEMENT AND MEMORANDUM OF AGREEMENT

DOCUMENT PREPARED BY:
Time Warner Cable

AFTER RECORDING, RETURN TO:

Time Warner Cable
Attention: Courtney Reyes
1776 N. Greenville Ave
Richardson, TX 75081

1. **Grant of Easement**

In consideration of the covenants and agreements in the Agreement (defined below), for \$10, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Springmont Owners Association, Inc. ("**Grantor**") grants to Time Warner Cable Enterprises LLC ("**Grantee**") a non-exclusive easement on, over, under, across and through Grantor's property and all its improvements (as described in the attached Attachment 1) (the "Property"), together with all rights of access, ingress and egress for the purposes stated hereafter (the "**Easement**"). The Easement is for the purposes of permitting Grantee and its affiliates and contractors to (i) install, operate, maintain, upgrade, repair, replace, and/or remove a system (including wiring, poles, conduit, molding, pipes, antennas, servers, switch equipment, software, central processing units and other facilities and equipment ("**System**")) for the delivery of video, entertainment, high-speed data, phone and phone replacement, and other services ("**Services**") to the Property and any other properties that can be served by such System, and (ii) market, offer and provide such Services to residents of the Property, all as more fully provided in the System Installation and Service Agreement between Grantor and Grantee with respect to the Property (the "**Agreement**"). The location of the Easement shall be as set forth in the drawings attached to Attachment 1, or, in the absence of such drawings, five feet on either side of the System as actually built. Grantor will provide a mutually acceptable location to install a wireless access point(s), backhaul modem, and antennas with access to a standard electric power source.

Grantee will have and hold the Easement, together with every right and appurtenance connected to it, for an initial term of 36 months, and for so long thereafter as Grantee is providing services in the area where the Property is located (the "**Term**"). After the Term, this Easement automatically will terminate after an additional 90-day continuation period solely for the purpose of allowing Grantee to dispose of its System as permitted by the Agreement. This Easement and other rights granted to Grantee run with the title to the Property and are binding on Grantor, all subsequent owners of the Property, and others who may claim an interest in the Property. Grantor reserves the right to grant other easements on or rights of access to the Property, but will not allow such other grants to interfere with this Easement.

2. Memorandum of Agreement

In addition to the rights granted above, the Agreement grants to Grantee certain exclusive and/or non-exclusive rights to market and provide Services to residents of the Property. During the term of the Agreement, Grantor has agreed that it shall not enter into any bulk billed, bulk provision (regardless of whether for a fee), bulk or volume discount, Owner-guaranteed payment, Owner-subsidized (e.g., construction reimbursement or subsidy), or any other similar arrangement with any other provider for multi-channel video service, Internet access service, or voice service.

DATED EFFECTIVE AS OF: 4/14/2014

Grantor: Springmont Owners Association, Inc.

Sharon Botik

By:

Title: President

Date: 4-16-14

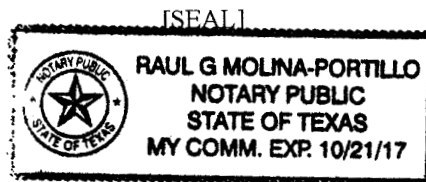
State of Texas)
County of DALLAS) ss:

This instrument was acknowledged before me by Sharon Botik as a witness
to the execution of this instrument by the above-named Grantor representative on April 16, 2014.

Witness my hand and official seal.

Raul G. Molina-Portillo
Notary Public

My commission expires: 10-21-17



**ATTACHMENT 1
TO
EASEMENT AND MEMORANDUM OF AGREEMENT**

5590 Spring Valley Rd

Property Legal Description

SPRINGMONT CONDOS PH I-IV
BLK E/7011 PT LT 1 ACS 3.00

Filed and Recorded
Official Public Records
John F. Warren, County Clerk
Dallas County, TEXAS
09/15/2014 10:49:54 AM
\$38.00



A handwritten signature in black ink, appearing to be "JF2", is written over the seal.

201400234912



200900262930

EASEMENT 1/4

EXHIBIT B
TO
DISCOUNTED SERVICES AND MARKETING AGREEMENT
(RESIDENTIAL MDU PROPERTIES)

EASEMENT AND
MEMORANDUM OF AGREEMENT

DOCUMENT PREPARED BY:

AFTER RECORDING, RETURN TO:

Return Recorded Documents To:
Time Warner Cable
1776 N Greenville Ave
Richardson, TX 75081
ATTN: Donna Gilbert

1. Grant of Easement

In consideration of the covenants and agreements in the Agreement (defined below), for \$10, and for other good and valuable consideration, the receipt and sufficiency of which are acknowledged Springmont Townhomes Home Owner's Association ("Grantor") grants to Time Warner NY Cable, d/b/a Time Warner Cable through its North Texas Division ("Grantee"), its successors, assigns and transferees, a non-exclusive easement on, over, under, across and through Grantor's property and all its improvements (as described in the attached Attachment 1) (the "Property"), together with all rights of access, ingress and egress for the purposes stated hereafter (the "Easement"). The Easement is for the purposes of permitting Grantee and its affiliates and contractors to (i) design, construct, install, operate, maintain, upgrade, repair, replace, and remove a system (including internal and external wiring, poles, conduit, molding, pipes, antennas, servers, switch equipment, software, central processing units and other facilities and equipment ("System")) for the delivery of video, entertainment, high-speed data (on-line (Internet) access), phone and phone replacement, and other services ("Services") to the Property and any other properties that can be served by such System, and (ii) market, offer and provide such Services to residents of the Property, all as more fully provided in the Discounted Services and Marketing Agreement between Grantor and Grantee with respect to the Property (the "Agreement"). The location of the Easement shall be as set forth in the drawings attached to Attachment 1, or, in the absence of such drawings, five feet on either side of the System as actually built. During the term of the Agreement and this Easement, Grantee shall own, and Grantee shall have the exclusive right to access, control, maintain, upgrade and operate, the System, regardless of whether any System components (including wiring) are in use at any given time. The System is not, and shall not be deemed to be, affixed to or a fixture of the Property. Ownership and removal of the System after the expiration or proper earlier termination of the Agreement and this Easement shall be pursuant to the Agreement. Grantor will also provide an internal Equipment Room as described in the Agreement.

Grantee will have and hold the Easement, together with every right and appurtenance connected to it, for an initial term of five (5) years, and for so long thereafter as Grantee is providing services in the area where the Property is located (the "Term"). After the Term, this Easement automatically will terminate after an additional 90-day continuation period solely for the purpose of allowing Grantee to dispose of its System as permitted by the Agreement. Grantor, its successors and assigns hereby agree to warrant and forever defend the Easement to Grantee and its successors and assigns against every person who claims any part of it.

This Easement and other rights granted to Grantee run with the title to the Property and are binding on Grantor, all subsequent owners of the Property, and others who may claim an interest in the Property. Grantor reserves the right to grant other easements on or rights of access to the Property, but will not allow such other grants to interfere with this Easement.

2. Memorandum of Agreement

In addition to the rights granted above, the Agreement grants to Grantee certain exclusive and/or non-exclusive rights to market and provide multi-channel video services, high-speed data (on-line (Internet) access) services, phone or phone replacement services, and other services to residents of the Property.

DATED EFFECTIVE AS OF: 4/23/2009

OWNER: Springmont Owners Association, Inc.

By: Isreal Miller

Print: Isreal Miller

Title: Treasurer

State of Texas)
) ss:
County of Dallas)

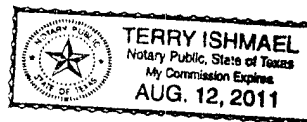
This instrument was acknowledged before me by Isreal Miller as the Treasurer of Springmont Owners Association, Inc. on April 23, 2009.

Witness my hand and official seal.

Terry Ishmael
Notary Public

[SEAL]

My commission expires Aug 12, 2011



ATTACHMENT I
TO
EASEMENT AND MEMORANDUM OF AGREEMENT

Property Legal Description

Springmont Townhomes
5590 Spring Valley Road
Dallas, Texas 75254

78 units

City of Dallas, Dallas County, Texas

BEING a lot, tract or parcel of land situated in the John Witt Survey, Abstract No. 1584 and in City Block No. E/7011, City of Dallas, Dallas County, Texas, and being part of Lot 1 of the Spring Valley Condos Addition, an addition to the City of Dallas, as recorded in Volume 82003 Page 281 of the plat records of Dallas County, Texas, and being more particularly described as follows:

COMMENCING at an iron rod at the intersection of the South line of Spring Valley Road (a 75' R.O.W.) with the East line of Montfort Road (a variable width R.O.W.);

THENCE: North 88° 39' 49" East, with the South line of said Spring Valley Road, 208.03 feet to an iron rod;

THENCE: South 06° 03' 37" East, 24.83 feet to an iron rod for a corner;

THENCE: North 88° 45' 00" East, with the South line of said Spring Valley Road, 333.50 feet to an iron pin for the point of curvature of a circular curve to the right, with a radius of 850.00 feet, and a central angle of 2° 13' 13", a tangent length of 16.47 feet and an arc distance of 32.94 feet for POINT OF BEGINNING at the Northwest corner of said addition;

THENCE: Southeasterly with the South line of Spring Valley Road (a 100' R.O.W.) along a circular curve to the right, with a radius of 850.00 feet, and a central angle of 16° 30' 53", a tangent of 123.36 feet, a chord bearing of South 80° 46' 20" East, a chord of 244.15 feet, and an arc of 245.00 feet to a point for a corner;

THENCE: South 16° 37' 10" West, a distance of 263.00 feet to a point for a corner;

THENCE: South 88° 52' 40" West, a distance of 72.30 feet to a point for a corner;

THENCE: North 0° 40' 51" West, a distance of 87.00 feet to a point for a corner;

THENCE: South 88° 52' 40" West, a distance of 90.00 feet a point for a corner on the West line of the said Spring Valley Condos Addition;

THENCE: North 0° 40' 51" West, along said West line a distance of 207.37 feet to the POINT OF BEGINNING and containing 49,334 square feet or 1.1326 acres of land.

Filed and Recorded
Official Public Records
John F. Warren, County Clerk
Dallas County, TEXAS
09/15/2009 11:04:34 AM
\$24.00



A handwritten signature in black ink, appearing to be "JF2" followed by a horizontal line.

200900262930



201400288174

DEDICATION 1/25

SPRINGMONT OWNERS ASSOCIATION, INC.**NOTICE OF FILING OF DEDICATORY INSTRUMENTS**

STATE OF TEXAS §
 §
COUNTY OF DALLAS §

KNOW ALL MEN BY THESE PRESENTS:

This NOTICE OF FILING OF DEDICATORY INSTRUMENTS (this "Notice") is filed by Springmont Owners Association, Inc. (the "Association").

W I T N E S S E T H:

WHEREAS, the Association is a "property owners' association" as defined in Section 202.001(2) of the Texas Property Code; and

WHEREAS, the Association is governed by a dedicatory instrument, which covers the property described therein entitled Condominium Declaration for Springmont Condominiums, filed for record on July 16, 1982, and recorded on July 19, 1982, at Instrument No. 198201399949, Volume 82139, Page 2714 *et seq.*, of the Condominium Records of Dallas County, Texas (the "Declaration") as such may be amended and/or supplemented from time to time; and

WHEREAS, Section 202.006 of the Texas Property Code, which became effective September 1, 1999, requires a "property owners' association" to file "the dedicatory instrument" in the real property records of each county in which the property to which the dedicatory instrument relates is located; and

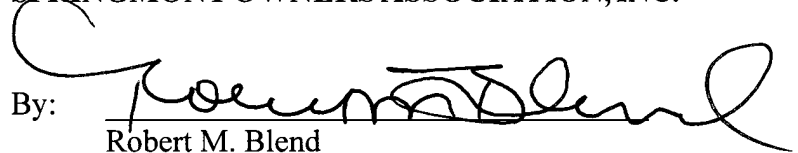
WHEREAS, the Association, with the sole intention of filing the following instruments which might be interpreted as being within the scope of Section 202.006, acting by and through the undersigned duly authorized agent, files true and correct copies of the instruments more specifically set forth hereinafter.

NOW, THEREFORE, the Association, files true and correct copies of the following instruments of the Association which are attached hereto:

1. **ARTICLES OF INCORPORATION OF SPRINGMONT OWNERS ASSOCIATION, INC. ;**
2. **AMENDED AND RESTATED BY-LAWS OF SPRINGMONT ASSOCIATION, INC.;**
3. **House Rules of SPRINGMONT OWNERS ASSOCIATION, INC.; and**
4. **SOLEMAR ASSOCIATES, LLC. JULY 6, 2013.**

IN WITNESS WHEREOF, the undersigned agent of Springmont Owners Association, Inc. Association, certifies that, to the best of his knowledge, as of the effective date of this Notice of Filing of Dedicatory Instruments that the foregoing instruments are true and correct copies of the current instruments of the Association.

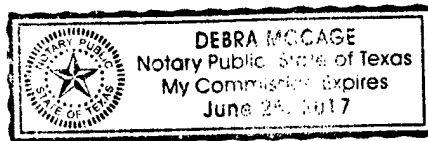
SPRINGMONT OWNERS ASSOCIATION, INC.

By: 
Robert M. Blend
Duly Authorized Agent

STATE OF TEXAS §
§
COUNTY OF DALLAS §

BEFORE ME, the undersigned authority, a Notary Public in and for said county and state, on this day personally appeared Robert M. Blend, a duly authorized agent for Springmont Owners Association, Inc., known to me to be the person whose name is subscribed to the foregoing instrument and acknowledged to me that he executed the same for the purposes and consideration therein expressed, in the capacity therein stated.

GIVEN UNDER MY HAND AND SEAL OF OFFICE this 6th day of Nov., 2014.




Notary Public in and for the State of Texas

AFTER RECORDING RETURN TO:

The Blend Law Firm, P.C.
14131 Midway Road, Suite 1240
Addison, Texas 75001

ARTICLES OF INCORPORATION
OF
SPRINGMONT OWNERS ASSOCIATION, INC.
(A Texas Non-Profit Corporation)
Dallas County, Texas

"ATTACHMENT 1"

ARTICLES OF INCORPORATION
OF
SPRINGMONT OWNERS ASSOCIATION, INC.
(A Texas Non-Profit Corporation)

FILED
In the Office of the
Secretary of State of Texas

JUL 09 1982

CLENNETT
Corporation Division

We, the undersigned natural persons of the age of eighteen (18) years or more, at least two (2) of whom are citizens of the State of Texas, acting as incorporators of a corporation (hereinafter called the "Corporation") under the Texas Non-Profit Corporation Act (hereinafter called the "Act") do hereby adopt the following Articles of Incorporation for such Corporation.

ARTICLE I

NAME

The name of the Corporation is SPRINGMONT OWNERS ASSOCIATION, INC.

ARTICLE II

NON-PROFIT CORPORATION

The Corporation is a non-profit corporation.

ARTICLE III

DURATION

The period of the duration of the Corporation is perpetual.

ARTICLE IV

PURPOSES AND POWERS

1. The Corporation does not contemplate pecuniary gain or profit to the Members thereof, and its specific and primary purpose is to provide for the preservation and maintenance of a Condominium Project, as provided in the Condominium Declaration of SPRINGMONT CONDOMINIUMS (hereinafter referred to as the "Declaration"), located in Dallas County, Texas.

2. The general purposes and powers are:

a. To promote the common good, health, safety and general welfare of the residents within the Property;

b. To exercise all of the powers and privileges and to perform all of the duties and obligations of the Corporation arising from the Declaration applicable to the Property, as amended from

time to time, and recorded or to be recorded in the Office of Public Records of Real Property in the Office of the County Clerk of Dallas County, Texas, the Declaration being incorporated herein by reference for all purposes;

c. To enforce applicable provisions of the Declaration, By-Laws, any rules and regulations of the Corporation and any other instrument for the management and control of the Property;

d. To fix, levy, collect and enforce payment by any lawful means, all charges or assessments pursuant to the terms of the Declaration; to contract for and pay all expenses in connection with the maintenance, gardening, utilities, materials, supplies and services relating to the Common Elements (as defined in the Declaration) and facilities; to employ personnel reasonably necessary for administration and control of the Common Elements, including lawyers and accountants where appropriate; and to pay all office and other expenses incident to the conduct of the business of the Corporation, including all licenses, taxes and special assessments which are or would become a lien on any portion of the Property;

e. To have and to exercise any and all powers, rights and privileges, including delegation of powers as permitted by law, which the Corporation under the Act may now or hereafter have or exercise;

f. To acquire (by purchase, grant or otherwise), annex and merge, own, hold, improve, build upon, operate, maintain, convey, sell, lease, transfer, dedicate for public use or otherwise dispose of real or personal property in connection with the affairs of the Corporation;

g. To borrow money, mortgage, pledge or hypothecate any or all of its real or personal property as security for money borrowed or debts incurred in accordance with the Declaration limitations; and

h. To act in the capacity of principal, agent, joint venturer, partner or otherwise.

The foregoing statement of purposes shall be construed as a statement both of purposes and of powers, and the purposes and powers in each clause shall not be limited or restricted by reference to or interference from the

terms or provisions of any other clause, but shall be broadly construed as independent purposes and powers. Notwithstanding any of the above statements of purposes and powers, the Corporation shall not, except to an insubstantial degree, engage in any activities or exercise any powers that are not in furtherance of the primary purposes of the Corporation.

ARTICLE V

REGISTERED OFFICE AND REGISTERED AGENT

The street address of the initial registered office of the Corporation is 13771 North Central Expressway, Suite 624, Dallas, Texas 75243, and the name of its initial registered agent at such address is Mark Murphy.

ARTICLE VI

INITIAL BOARD OF DIRECTORS

The number of Directors constituting the initial Board of Directors of the Corporation is three (3), and the names and addresses of the persons are:

<u>NAME</u>	<u>ADDRESS</u>
Mark Murphy	13771 North Central Expressway Suite 624 Dallas, Texas 75243
Johnny Zellmer	13771 North Central Expressway Suite 624 Dallas, Texas 75243
Richard Cooper	13771 North Central Expressway Suite 624 Dallas, Texas 75243

At the first (1st) annual meeting of the Members of the Association, or any annual meeting thereafter, or special meeting of the Association called for that purpose, the number of Directors may be increased to five (5).

ARTICLE VII

INCORPORATORS

The name and street address of each incorporator is:

<u>NAME</u>	<u>ADDRESS</u>
Mark Murphy	13771 North Central Expressway Suite 624 Dallas, Texas 75243
Johnny Zellmer	13771 North Central Expressway Suite 624 Dallas, Texas 75243
Richard Cooper	13771 North Central Expressway Suite 624 Dallas, Texas 75243

ARTICLE VIII

MEMBERSHIP

The authorized number of and qualifications for membership in the Corporation along with the appurtenant voting rights and other privileges due Unit Owners in the Condominium Project shall be as set out in the Declaration. Every person or entity who is a record Owner of a fee or undivided fee interest in any Unit which is subject to the Declaration, including contract sellers, shall be a Member of the Corporation. The foregoing is not intended to include persons or entities who hold an interest merely as security for the performance of an obligation. Membership shall be appurtenant to and may not be separated from ownership of any Unit which is subject to assessment by the Corporation.

ARTICLE IX

DISSOLUTION

The Corporation may be dissolved in accordance with the limitations set out in the Declaration. The Corporation is one which does not contemplate pecuniary gain or profit to the Members thereof, and it is organized solely for non-profit purposes. In the event of liquidation, dissolution or winding up of the Corporation, whether voluntarily or involuntarily, the Directors shall dispose of the Property and assets of the Corporation in such manner as they, in the exercise of their discretion (as set out in the Declaration), deem appropriate; provided, however, that such disposition shall be exclusively in the furtherance of the object and purposes for which the Corporation is formed, and shall not accrue to the benefit of any Director of the Corporation or any individual having a personal or private interest in the affairs of the Corporation or any organization which engages in any activity in which the Corporation is precluded from engaging.

AMENDED AND RESTATED BY-LAWS
OF
SPRINGMONT OWNERS ASSOCIATION, INC.

(A Texas Non-Profit Corporation)

ARTICLE I

NAME

1.1 **Name.** The name of the organization shall be SPRINGMONT OWNERS ASSOCIATION, INC., hereinafter called "Association".

ARTICLE II

PURPOSE AND OWNER OBLIGATION

2.1 **PURPOSE.** The purpose for which this non-profit Association is formed is to govern the Condominium and the Property set forth in that certain Amended and Restated Condominium Declaration for the Springmont Condominiums, as recorded with the County Clerk of Dallas County, Texas, as recorded on July 16, 1982, in Volume 82139, Page 2714, of the Condominium Records of Dallas County, Texas (as may be amended from time to time, the "Declaration"). These Amended and Restated By-Laws completely amend and restate the By-Laws of the Association dated July 16, 1982 and shall hereinafter be referred to as the "By-Laws").

2.2 **OWNER OBLIGATION.** All present or future owners, tenants, future tenants or any other person who might use the facilities of this Project in any manner, are subject to the regulations set forth in these By-Laws. The mere acquisition or rental of any of the Condominium Units (hereinafter referred to as "Units") of the Project or the mere act of occupancy of any of said Units will signify that these By-Laws are accepted, ratified and will be strictly followed.

ARTICLE III

DEFINITIONS AND TERMS

3.1 **MEMBERSHIP.** Any person on becoming an Owner of a Condominium Unit shall automatically become a Member of this Association and be subject to these By-Laws. Such membership shall terminate without any formal Association action whenever such person ceases to own a Condominium Unit. Such termination shall not relieve or release any such former Owner from any liability or obligation incurred under or in any way connected with SPRINGMONT CONDOMINIUMS during the period of such ownership and membership in this Association, or impair any rights or remedies which the Board of Directors of the Association or others may have against such former Owner and Member arising out of or in any way connected with such ownership and membership and the covenants and obligations incident thereto. No certificates of stock shall be issued by the Association, but the Board of Directors, if it so elects, may issue one (1) Membership Card per Unit to the Owner(s) of a Condominium Unit. Such

Membership Card shall be surrendered to the Secretary whenever ownership of the Condominium Unit designated thereon is terminated.

3.2 VOTING. Unit ownership shall entitle the Owner(s) to cast one (1) vote per Unit in the affairs of the Association, which vote will be weighted to equal the proportionate share of ownership of the Unit Owner in the Common Elements. Voting shall not be split among more than one (1) Unit Owner. The present number of votes that can be cast by the Unit Owners is seventy-eight (78). The combined weighted votes calculated in accordance with Exhibit "C" to the Declaration shall equal one hundred percent (100%).

3.3 MAJORITY OF UNIT OWNERS. As used in these By-Laws the term "majority of Unit Owners" shall mean those Owners with fifty-one percent (51%) of the votes entitled to be cast.

3.4 QUORUM. Except as otherwise provided in these By-Laws, the presence in person or by proxy of a "majority of Unit Owners" as defined in Paragraph 3.3 of this Article shall constitute a quorum.

3.5 PROXIES. Votes may be cast in person or by proxy. Proxies must be filed with the Secretary before the appointed time of each meeting.

ARTICLE IV

ADMINISTRATION

4.1 ASSOCIATION RESPONSIBILITIES. The Owners of the Units will constitute the Association of Unit Owners, hereinafter referred to as "Association", who will have the responsibility of administering the Condominium Project through a Board of Directors.

4.2 PLACE OF MEETINGS. All annual and special meetings of the Association shall be held at the principal office of the Association or at such other suitable and convenient place as may be permitted by law and from time to time fixed by the Directors and designated in the notices of such meetings.

4.3 ANNUAL MEETINGS. Annual meetings shall be held the second (2nd) Tuesday of September each year.

4.4 SPECIAL MEETINGS. It shall be the duty of the President to call a special meeting of the Owners as directed by resolution of the Board of Directors or upon a petition signed by at least one-tenth (1/10) of the Owners and presented to the Secretary. The notice of any special meeting shall state the time and place of such meeting and the purpose thereof. No business shall be transacted at a special meeting except as stated in the notice unless by consent of four-fifths (4/5) of the Owners present, either in person or by proxy.

4.5 NOTICE OF MEETINGS. The Secretary shall mail notices of annual and special meetings to each Member of the Association, directed to his last known post office address, as shown on the records of the Association, by uncertified mail, postage prepaid. Such notice shall be mailed not less than ten (10) days nor more than twenty (20) days before the date of such meeting and shall state the date, time and place of the meeting and the purpose or purposes thereof. In lieu of mailing notice as herein provided, such notice may be delivered by hand or left at his residence in his absence. If requested, any Mortgagee of record or its designee may be entitled to receive similar notice.

4.6 ADJOURNED MEETING. If any meeting of Owners cannot be organized because a quorum has not attended, the Owners who are present, either in person or by proxy, may adjourn the meeting from time to time until a quorum is attained.

4.7 ORDER OF BUSINESS. The order of business at all meetings of the Owners of Units shall be as follows:

- a. Roll call.
- b. Proof of notice of meeting or waiver of notice.
- c. Reading of minutes of preceding meeting.
- d. Reports of officers.
- e. Reports of committees.
- f. Election of Directors.
- g. Unfinished business.
- h. New business.

ARTICLE V

BOARD OF DIRECTORS

5.1 NUMBER AND QUALIFICATION. The affairs of this Association shall be governed by a Board of Directors composed of five (5) persons. The following persons shall act in such capacity and shall manage the affairs of the Association until their successors are elected, to-wit:

<u>NAME</u>	<u>ADDRESS</u>
Sharon Botik	5590 Spring Valley Road F-101 Dallas, Texas 75254
Tammy Boyett	5590 Spring Valley Road A-203 Dallas, Texas 75254
Georita Frierson	5590 Spring Valley Road H-208 Dallas, Texas 75254
Paula Pedlar	5590 Spring Valley Road B-102 Dallas, Texas 75254
Richard Fiske	5590 Spring Valley Road C-201 Dallas, Texas 75254

5.2 POWERS AND DUTIES. The Board of Directors shall have the powers and duties necessary for the administration of the affairs of the Association and for the operation and maintenance of

a residential Condominium Project. The Board of Directors may do all such acts and things that are not by these By-Laws directed to be exercised and done by the Owners.

5.3 OTHER POWERS AND DUTIES. The Board of Directors shall have the following duties:

- a. To administer and enforce the covenants, conditions, restrictions, uses, limitations, obligations and all other provisions set forth in the Declaration.
- b. To establish, make and enforce compliance with rules necessary for the orderly operation, use and occupancy of this Condominium Project. (A copy of such rules and regulation shall be delivered or mailed to each Member promptly upon the adoption thereof.)
- c. To keep in good order, condition and repair all of the General and Limited Common Elements and all items of personal property used in the enjoyment of the entire Premises.
- d. To insure and keep insured all of the insurable Common Elements of the Property in an amount equal to their maximum replacement value, as provided in the Declaration. Further to obtain and maintain comprehensive liability insurance covering the entire Premises in amounts not less than One Hundred Thousand Dollars (\$100,000.00) per accident and Fifty Thousand Dollars (\$50,000.00) property damages, plus a One Million Dollar (\$1,000,000.00) umbrella policy. To insure and keep all the fixtures, equipment and personal property acquired by the Association for the benefit of the Association, the Owners of the Condominium Units and their First Mortgagees.
- e. To fix, determine, levy and collect the monthly prorated assessments to be paid by each of the Owners; and by majority vote of the Board to adjust, decrease or increase the amount of the monthly assessments; to levy and collect special assessments in order to meet increased operating or maintenance expenses or costs, and additional capital expenses. All monthly or other assessments shall be in itemized statement form and shall set forth in detail the various expenses for which the assessments are being made.
- f. To collect delinquent assessments by suit or otherwise and to enjoin or seek damages from an Owner, as provided in the Declaration or these By-Laws.
- g. To protect and defend the entire Premises from loss and damage by suit or otherwise.
- h. To borrow funds in order to pay for any required expenditure or outlay; to execute all such instruments evidencing such indebtedness which shall be the several obligations of all of the Owners in the same proportion as their interest in the Common Elements.
- i. To enter into contracts within the scope of their duties and powers.
- j. To establish a bank account for the common treasury for all separate funds which are required or may be deemed advisable by the Board of Directors.
- k. To keep and maintain full and accurate books and records showing all of the receipts, expenses or disbursements and to permit examination thereof at any reasonable time by each of the Owners and First Mortgagee of a Unit or the Veterans Administration. The Association shall cause to be prepared and delivered annually to each Owner a statement showing all receipts, expenses or

disbursements since the last such statement. Such financial statements shall be available to any First Mortgagee of a Unit, on request, within ninety (90) days following the fiscal year end of the Project.

l. To meet at least one each quarter.

m. To designate the personnel necessary for the maintenance and operation of the General and Limited Common Elements.

n. In general, to carry on the administration of this Association and to do all of those things, necessary and reasonable, in order to carry out the communal aspect of Condominium ownership and to protect the general health and welfare of the Owners.

5.4 ELECTION AND TERM OF OFFICE. At the first (1st) annual meeting of the Association the term of office of two (2) of the Directors shall be fixed for one (1) year, the term of office of two (2) of the Directors shall be fixed at two (2) years, and the term of office of the remaining one (1) Director shall be fixed at three (3) years. At the expiration of the initial term of office of each representative Director, his successor shall be elected to serve a term of three (3) years. The persons acting as Directors shall hold office until their successors have been elected and hold their first (1st) meeting.

5.5 VACANCIES. Vacancies on the Board of Directors caused by any reason other than the removal of a Director by a vote of the Association shall be filled by vote of the majority of the remaining Directors, even though they may constitute less than a quorum. Each Director so elected shall serve out the remaining term of his predecessor.

5.6 REMOVAL OF DIRECTORS. At any regular or special meeting duly called, any one (1) or more of the Directors may be removed with or without cause by a majority of the Owners, and a successor may then and there be elected to fill the vacancy thus created. Any Director whose removal has been proposed by the Owners shall be given an opportunity to be heard at the meeting.

5.7 ORGANIZATION MEETING. The first (1st) meeting of a newly elected Board of Directors shall be held within ten (10) days of election at such place as shall be fixed by the Directors at the meeting at which such Directors were elected, and no notice shall be necessary to the newly elected Directors in order legally to constitute such meeting, providing a majority of the whole Board shall be present.

5.8 REGULAR MEETINGS. Regular meetings of the Board of Directors may be held at such time and place as shall be determined, from time to time, by a majority of the Directors, but at least four (4) such meetings shall be held during each fiscal year. Notice of regular meetings of the Board of Directors shall be given to each Director, personally, by mail, telephone or telegraph, at least three (3) days prior to the day named for such meeting.

5.9 SPECIAL MEETINGS. Special meetings of the Board of Directors may be called by the President or Secretary, or upon written request of at least two (2) Directors. The President or Secretary will give three (3) days' personal notice to each Director by mail, telephone or telegraph, which notice shall state the time, place (as hereinabove provided) and purpose of the meeting.

5.10 WAIVER OF NOTICE. Before or at any meeting of the Board of Directors, any Director may in writing, waive notice of such meeting and such waiver shall be deemed equivalent to the giving of such

notice. Attendance by a Director at any meeting of the Board shall be a waiver of notice by him of the time and place thereof. If all Directors are present at any meeting of the Board, no notice shall be required and any business may be transacted at such meeting.

5.11 BOARD OF DIRECTOR'S QUORUM. At all meetings of the Board of Directors, a majority of Directors shall constitute a quorum for the transaction of business, and the acts of the majority of the Directors present at a meeting at which a quorum is present shall be the acts of the Board of Directors. If, at any meeting of the Board of Directors, there is less than a quorum present, the majority of those present may adjourn the meeting from time to time. At any such adjourned meeting, any business which might have been transacted at the meeting, as originally called, may be transacted without additional notice.

ARTICLE VI

OFFICERS

6.1 DESIGNATION. The officers of the Association shall be a President, Vice President, Secretary and Treasurer, all of whom shall be elected by the Board of Directors.

6.2 ELECTION OF OFFICERS. The officers of the Association shall be elected annually by the Board of Directors at the organization meeting of each new Board and shall hold office at the pleasure of the Board.

6.3 REMOVAL OF OFFICERS. Upon an affirmative vote of a majority of the members of the Board of Directors, any officer may be removed, either with or without cause, and his successor may be elected at any regular meeting of the Board of Directors or at any special meeting of the Board called for such purpose.

6.4 PRESIDENT. The President shall be the chief executive officer of the Association. He shall preside at all meetings of both the Association and the Board of Directors. He shall have all the general power and duties which are usually vested in the office of president of an association, including, but not limited to, the power to appoint committees from among the Owners to assist in the administration of the affairs of the Association. He shall co-sign all promissory notes with the Secretary and co-sign all checks with the Treasurer. The President, or his designated alternate, shall represent the Association at all meetings of the Association.

6.5 VICE PRESIDENT. The Vice President shall perform all of the duties of the President in his absence and such other duties as may be required of him from time to time by the Board of Directors.

6.6 SECRETARY.

a. The Secretary shall keep the minutes of all meetings of the Board of Directors and the minutes of the Association. He shall have charge of such books and papers as the Board of Directors may direct and shall co-sign all instruments of conveyance; and he shall, in general, perform all the duties incident to the office of the Secretary.

b. The Secretary shall compile and keep up to date at the principal office of the Association a complete list of Members and their last known address as shown on the records of the Association. Such list shall show opposite each Member's name, the number of Members living in the Unit and the

garage and storage space assigned for use in connection with such Unit. Such list shall be open to inspection by Members and other persons lawfully entitled to inspect the same at reasonable times during regulation business hours.

6.7 TREASURER. The Treasurer shall receive and deposit in appropriate bank accounts all money of the Association and shall disburse such as directed by resolution of the Board of Directors; provided, however, that a resolution of the Board of Directors shall not be necessary for disbursements made in the ordinary course of business conducted within the limits of a budget adopted by the Board of Directors, including authority to: co-sign all checks; keep proper books of account; cause annual statement of the Association's books to be made at completion of each fiscal year; prepare an annual budget and a statement of income expenditures to be presented to the Membership at its regular annual meeting, and deliver a copy of each to the Members; and perform all other duties assigned to him by the Board of Directors.

ARTICLE VII

MANAGEMENT CONTRACT

7.1 MANAGEMENT COMPANY. The Board of Directors may enter into a management agreement with a management company at a rate of compensation agreed upon by the Board of Directors. In accordance with the Declaration and these By-Laws, the management company shall have, but shall not be limited to, the following functions, duties and responsibilities:

a. FISCAL MANAGEMENT.

(1) Prepare annual operating budget detailed to reflect expected operations for each month. This budget is established to show expected recurring receipts and operating disbursements. It is further used for comparison with actual monthly income and expenditures.

(2) Prepare five (5) year sinking fund reserve budget projection for capital expenditures on items recurring only periodically, i.e., painting, etc., for Common Elements.

(3) Prepare monthly operating and cash position statements and statements concerning sinking fund reserve accounts.

(4) Analyze and compare operating receipts and disbursements against the Board-approved budget. Where a significant variation is shown (10% above or below the budgeted amount), prepare explanations of variations from budgeted figures. Suggest corrective recommendations, if applicable.

(5) Collect maintenance fees and special assessments; deposit them in checking, savings or other income producing accounts on behalf of the Board and maintain comprehensive records thereof. Establish individual checking and sinking fund reserve accounts, as directed by the Board.

(6) Mail notices of delinquency to any Owner in arrears, and exert reasonable effort to collect delinquent amounts.

(7) Examine all expense invoices for accuracy and pay all bills in accordance with the terms of the property management agreement.

(8) Prepare year-end statement of operations for Owners.

b. PHYSICAL MANAGEMENT.

(1) Assume full responsibility for maintenance and control of Common Area improvements and equipment. Maintain the Property in constant repair to reflect Owner pride and insure high property values in accordance with the provisions of the operating budget, as approved by the Board of Directors.

(2) Enter into contracts and supervise services for lawn care, refuse hauling, pump maintenance, etc., as approved by the operating budget.

(3) Select, train and supervise competent personnel, as directed by the Board.

(4) Compile, assemble and analyze data; and prepare specifications and call for bids for major improvement projects. Analyze and compare bids, issue contracts, and coordinate the work; maintain close and constant inspection to insure that work is performed according to specifications.

(5) Perform any other projects with diligence and economy in the Board's best interests.

c. ADMINISTRATIVE MANAGEMENT.

(1) Inspect contractual services for satisfactory performance. Prepare any necessary compliance letters to Vendors.

(2) Obtain and analyze bids for insurance coverage specified in By-Laws, recommend modifications or additional coverage. Prepare claims when required and follow up on payment; act as Board's representative in negotiating settlement.

(3) Exercise close liaison and supervision over all personnel to insure proper operational maintenance and to promote good Management-Resident-Owner relationships.

(4) Act as liaison for the Associations in any negotiations or dispute with local, federal or state taxing agencies or regulatory bodies.

(5) Exercise close supervision over hours and working conditions of employed personnel to insure compliance with Wage and Hour and Workman's Compensation laws.

(6) Assist in resolving individual Owner's problems as they pertain to the Association, Common Elements and governing rules and regulations.

(7) Represent an absentee Owner when requested.

(8) Administer the Condominium Project in such a way as to promote a pleasant and harmonious relationship within the complex for all Owners, Residents and Tenants alike.

ARTICLE VIII

INDEMNIFICATION OF OFFICERS AND DIRECTORS

8.1 INDEMNIFICATION. The Association shall indemnify every Director or officer, his heirs, executors and administrators, against all loss, cost and expense, including counsel fees, reasonably incurred by him in connection with any action, suit or proceeding to which he may be made a party by reason of his being or having been a Director or officer of the Association, except in matters of gross negligence or willful misconduct. In the event of a settlement, indemnification shall be provided only in connection with such matters in which the Association is advised by counsel that the person to be indemnified has not been guilty of gross negligence or willful misconduct in the performance of his duty as such Director or officer in relation to the matter involved. The foregoing rights shall not be exclusive of other rights to which such Director or officer may be entitled. All liability, loss, damage, cost and expense incurred or suffered by the Association in connection with the foregoing indemnification provision shall be treated and handled by the Association as Common Expenses; provided, however, nothing contained in this Article VIII shall be deemed to obligate the Association to indemnify any Member or Owner of a Condominium Unit, who is or has been a Director or officer of the Association, with respect to any duties or obligations assumed or liabilities incurred by him under and by virtue of the Declaration as a Member or Owner of a Condominium Unit covered thereby.

ARTICLE IX

OBLIGATIONS OF THE OWNERS

9.1 ASSESSMENTS. All Owners shall be obligated to pay the monthly assessments imposed by the Association to meet the Common Expenses as defined in the Declaration. The assessments shall be made pro rata according to the proportionate share of the Unit Owner in and to the Common Elements and shall be due monthly in advance. A Member shall be deemed to be in good standing and entitled to vote at any annual or special meeting of the Members, within the meaning of these By-Laws, only if he is current in the assessments made or levied against him and Condominium Unit owned by him. No Member shall be permitted to serve as an officer of the Association or a member of the Board of Directors unless he is current in the assessments made or levied against him and Condominium Unit owned by him, and such delinquency shall be sufficient for removal of such officer or director.

9.2 GENERAL.

- a. Each Owner shall comply strictly with the provisions of the Declaration.
- b. Each Owner shall always endeavor to observe and promote the cooperative purposes for which the Project was built.

9.3 USE OF GENERAL COMMON ELEMENTS AND LIMITED COMMON ELEMENTS. Each Owner may use the General Common Elements and the Limited Common Elements in accordance with purposes for which they were intended.

9.4 DESTRUCTION OR OBSOLESCENCE. Each Owner shall, if necessary, execute a power of attorney in favor of the Association, irrevocably appointing the Association his Attorney In Fact to deal with the Owner's Condominium Unit upon its destruction, obsolescence or condemnation, as is provided in the Declaration.

ARTICLE X

AMENDMENTS TO PLAN OF CONDOMINIUM OWNERSHIP

10.1 BY-LAWS. These By-Laws may be amended by the Association at a duly constituted meeting for such purpose, and no amendment shall take effect unless approved by Owner representing at least sixty-six and two-thirds percent (66 2/3%) of the aggregate interest of the undivided Ownership of the Common Elements except for those amendments provided for in Article VIII of the Declaration which shall require the approval of Owners and Mortgagees as provided therein. In no event shall the By-Laws be amended to conflict with the Declaration. In the event of a conflict between the two (2) documents, the Declaration shall control.

ARTICLE XI

MORTGAGES

11.1 NOTICE TO ASSOCIATION. An Owner who mortgages his Unit shall notify the Association through the President of the Association giving the name and address of his Mortgagee. The Association shall maintain such information in a book entitled "Mortgagees of Condominium Units".

11.2 NOTICE OF UNPAID ASSESSMENTS. The Association shall, at the request of a Mortgagee of a Unit, report any unpaid assessments due from the Owner of such Unit.

ARTICLE XII

COMPLIANCE

12.1 LEGAL REQUIREMENTS. These By-Laws are set forth to comply with the requirements of the Uniform Condominium Act, Texas Property Code, Chapter 82, Section 82.001 et. seq., as amended for time to time. If any of these By-Laws conflict with the provisions of said Act, it is hereby agreed and accepted that the provisions of the statute will apply.

ARTICLE XIII

NON-PROFIT ASSOCIATION

13.1 NON-PROFIT PURPOSE. This Association is not organized for profit. No Unit Owner, Member of the Board of Directors or person from whom the Association may receive any property or funds shall receive or shall be lawfully entitled to receive any pecuniary profit from the operation thereof, and in no event shall any part of the funds or assets of the Association be paid as a salary or as compensation to, or distributions to or inure to the benefit of any Member of the Board of Directors; provided, however, always (1) that reasonable compensation may be paid to any Member while acting as an agent or employee of the Association for services rendered in affecting one (1) or more of the purposes of the Association and (2) that any Member of the Board of Directors may, from time to time, be reimbursed for his actual and reasonable expenses incurred in connection with the administration of the affairs of the Association.

ARTICLE XIV

PRINCIPAL OFFICE

14.1 ADDRESS. The principal office of the Association shall be located at 5590 Spring Valley Road, Dallas, Texas, but may be located at such other suitable and convenient place as shall be permitted by law and designated by the Directors.

ARTICLE XV

EXECUTION OF INSTRUMENTS

15.1 AUTHORIZED AGENTS. The persons who shall be authorized to execute any and all instruments of conveyance or encumbrances, including promissory notes, shall be President with the co-signature of the Secretary of the Association.

ARTICLE XVI

CORPORATE SEAL

16.1 CORPORATE SEAL. The Directors may provide a corporate seal which shall be circular in

form and shall have inscribed thereon the name of the Association.

ARTICLE XII

DEFINITIONS OF TERMS

17.1 DEFINITION OF TERMS. The terms used in these By-Laws, to the extent they are defined in the Declaration, shall the same definition as set forth in the Declaration.

CERTIFICATE

I HEREBY CERTIFY that the foregoing is a true, complete and correct copy of the By-Laws of SPRINGMONT OWNERS ASSOCIATION, INC., a Texas non-profit corporation, as adopted by the Board of Directors, and approved by at least 66 2/3% of the Owners of the Units as required by the Initial By-Laws (the "Approving Owners") on the 25 day of September, 2012.

IN WITNESS WHEREOF, I hereunto set my hand this the 9 day of January, 2012.

Sharon Botik, President

House Rules of
SPRINGMONT OWNERS ASSOCIATION, INC.

1. Nothing shall be stored in the Common Elements without prior consent of the Board, except in storage areas or as otherwise herein expressly provided.
2. Nothing shall be done or kept in any Condominium Unit or in the Common Elements which will increase the rate of insurance for the property without the prior written consent of the Board. No Owner shall permit anything to be done or kept in his Unit or the Common Elements which will result in the cancellation of insurance on any Unit, or any part of the Common Elements, or which will be in violation of any law.
3. No waste shall be committed in or on the Common Elements.
4. No signs of any kind shall be displayed to the public view on or from any Unit or Common Elements without the prior written consent of the Board or the written consent of the Managing Agent acting in accord with the Board's direction.
5. No noxious or offensive activity shall be carried on, in, or upon the Common Elements, nor shall anything be done therein, which may be or become an unreasonable annoyance or nuisance to any other Owner. No loud noises or noxious odors shall be permitted on the property and the Board shall have the right to determine in accordance with the Bylaws whether a noise, odor, or activity constitutes a nuisance. Without limiting the generality of any of the foregoing provisions, a list of prohibited items includes but is not limited to exterior speakers, horns, whistles, bells or other sound devices (other than security devices used exclusively for security purposes), noisy or smoky vehicles, large power equipment or large power tools, unlicensed off-road motor vehicles or other items which may unreasonably interfere with television or radio reception of an Owner on the property. These items shall be not located, used, or placed on any portion of the property or exposed to the view of other Owners without the prior written approval of the Board.
6. Except as expressly provided herein above, nothing shall be altered or constructed in or removed from the Common Elements except upon the written consent of the Board.

7. No structure of a temporary character, trailer, tent, shack, garage, barn, or other outbuildings shall be permitted on the property at any time temporarily or permanently, except with the prior written consent of the Board; provided however, that temporary structures may be erected for use in connection with the repair or rebuilding of the buildings or any portion thereof.

8. No rubbish, trash, garbage, or other waste material shall be kept or permitted upon any Unit or the Common Elements, except in sanitary containers located in appropriate areas screened and concealed from view, and no odor shall be permitted to arise therefrom so as to render the property or any portion thereof unsanitary, unsightly, offensive, or detrimental to any other property in the vicinity thereof of its occupants. There shall be no exterior fires whatsoever except barbecue fires contained within receptacles designed in such a manner that no fire hazard is created. No clothing or household fabrics shall be hung, dried, or aired in such a way in the property as to be visible to other property and no lumber, grass, shrub or tree clippings, plant waste, metals, bulk material, scrap, refuse, or trash shall be kept, stored, or allowed to accumulate on any portion of the property, except within an enclosed structure or if appropriately screened from view.

9. No Owner shall park, store, or keep any vehicle, except wholly within the parking space designated therefore. Any inoperable vehicle shall not be stored in a parking space or within the Common Elements in general. No Owner shall park, store, or keep within or adjoining the property any large commercial-type vehicle (including but not limited to dump trucks, cement-mixer trucks, oil or gas trucks, delivery trucks, or any other vehicle equipment, mobile or otherwise, deemed to be a nuisance by the Board) or any recreational vehicle (camper unit, motor home, truck, trailer, boat, mobile home, or other similar vehicle deemed to be a nuisance by the Board.) No Owner shall conduct major repairs or major restorations of any motor vehicle, boat, trailer, aircraft, or other vehicle upon any portion of the Common Elements. Parking spaces shall be used for parking purposes only.

10. Except within individual Units, no planting, transplanting, or gardening shall be done, and no fences, hedges, or walls shall be erected or maintained upon the property except as approved by the Board.

11. Motorcycles, motorbikes, motor scooters, or other similar vehicles shall not be operated within the property except for the purposes of transportation directly from a parking space to a point outside the property or from a point outside the property directly to a parking space.

12. No animals, livestock, reptiles, or poultry of any kind shall be raised, bred, or kept in any Unit or the Common Elements. Owners may keep dogs, cats, fish, birds, and other household pets in their Units subject to the rules and regulations adopted by the Association. The household pets may not be kept, bred, or

maintained for commercial purposes or in unreasonable quantities. Unreasonable quantities shall mean more than two (2) pets per household. Furthermore, the Association hereby limits the weight of any household pets to 30 pounds. The Association, acting through the Board, shall have the right to prohibit maintenance of any animal which constitutes, in the opinion of the Board, a nuisance to any other Owner. Animals belonging to Owners, occupants or their licensees, tenants or invitees within the property must be kept either within an enclosure, an enclosed patio or on a leash being held by a person capable of controlling the animal. The enclosure must be so maintained that the animal cannot escape there from and shall be subject to the approval of the Board. Should any animal belonging to an Owner be found unattended, out of the enclosure, and not being held on a leash by a person capable of controlling the animal, the Board shall assess a fine and a written notice to the Owner. Upon the first notice, the fine shall be \$25.00. The second fine shall be \$50.00 and the third and all subsequent fines shall be \$100.00. If in the Board's opinion, the fines are insufficient to change the Owner's behavior, the Association or its Managing Agent may have the pet removed to a point under the jurisdiction of the local municipality in which the property is situated and subject to the laws and rules governing said pound, or to a comparable animal shelter. Furthermore, any Owner shall be absolutely liable to each and all remaining Owners, their families, guests, tenants and invitees, for any unreasonable noise or damage to person or property caused by any animals brought or kept upon the property by an Owner or members of his family, his tenants or his guests. It shall be the absolute duty and responsibility of each Owner to clean up after such animals, which have used any portion of the Common Elements.

13. No Owner shall be permitted to lease his Unit for hotel or transient purposes, which, for purposes of this paragraph is defined as a period less than thirty (30) days. No Unit Owner shall be permitted to lease less than the entire Unit. Every such lease shall be in writing. Every such lease shall provide that the lessee shall be bound by and subject to all of the same obligations under the Declaration and Bylaws as the Owner making such lease and failure to do so shall be a default thereunder. The Owner making such lease shall not be relieved thereby from any of said obligations.

14. Parking in fire lanes is strictly prohibited. The Board shall have vehicles removed from the property for parking in fire lanes.

15. Each Unit has an attached garage. There are not enough parking spots for each Owner to have an assigned parking spot in addition to the garage so the parking spots shall be on a first come, first serve basis. Owners shall place stickers in the windows of their cars and hang tags from the rearview mirror of their guests' cars to prevent towing when the parking lots are full. Cars that are parked in fire lanes shall be towed first. Cars that are being stored on the property shall be tagged with warning stickers and then towed. Cars without

Owner stickers or guest tags shall be towed next. Cars that are taking up more than one parking spot shall be towed. The Owner is responsible for paying the towing charge to recover their vehicle. The Board is not required to find the Owner before towing.

16. All Units must have white blinds in good repair.

17. No Unit shall have a screen door. Those that have screen doors shall be removed at the Owners expense.

18. The feeding of wildlife and feral cats is prohibited in Common Elements.

19. Screens are the responsibility of the Owner. The Owner shall keep screens in good repair and replace as needed.

20. Leaks originating from a Unit and causing damage to another Unit shall be repaired by the Owner of the offending Unit. If the Owner of the offending Unit refuses to repair the leak and the damages to the damaged Unit within 30 days of notice of the damage from the Owner of the damaged Unit, the Board shall intervene. The Board shall hire a locksmith to enter the offending Unit and have the repairs made by an approved vendor. The costs of the repairs shall be assessed to the offending Unit. The Board shall have no discretion as to whether to act only as to whether to postpone the intervention for lack of funds.

21. After each Board meeting, the Board shall post minutes of the meeting in the showcase near the pool. The minutes shall include a list of all Owners who are not current on their assessments and the collection actions taken against those Owners. The collections process shall begin on the 16th day of each month. On the 16th day, any Owner's account balance, which is not paid in full shall be assessed a \$5.00 late fee. The first late fee shall be accompanied by a letter notifying the Owner that there is a balance due. The second late fee shall be accompanied by a letter notifying the Owner that there is a balance due. The third late fee shall be accompanied by a letter notifying the Owner that there is a balance due. Upon the assessment of the fourth late fee, the Owner will be referred to an attorney for collections. The attorney will send the Owner a demand letter. Any legal fees generated by this referral shall also be assessed to the Owner. Upon the assessment of the fifth late fee, the attorney shall file a Notice of Lien. Again, any legal fees generated by this referral shall also be assessed to the Owner. Upon the assessment of the sixth late fee, the attorney shall foreclose on the Owner's Unit. Again, any legal fees generated by this referral shall also be assessed to the Owner. Upon the assessment of the seventh late fee, the sheriff shall evict anyone in the Owner's Unit.

SOLEMAR ASSOCIATES, LLC.
JULY 6, 2013

To ALL Residents at Springmont

The Bylaws of the complex allow the Board to amend the rules from time to time as needed for the health and general welfare of the residents. Due to a unanimous vote by over 50 homeowners at the last meeting, we are instituting a program known as PooPrints designed to keep the complex free of dog waste that a few owners simply are not picking up. To do this, it is required that we register the DNA of every dog at Springmont with the World Pet Registry. This applies to dogs only. If you have cats or other pets, you can ignore this letter.

There have been two days set aside for you to register your dog – August 4th and August 11th. These are both Sundays to make it easier for those who work during the week. At that time we will take a DNA sample of your pet at a cost of \$30 per dog. Cats and other animals are excluded and are not being registered. The schedule is as follows: On Sunday August 4th, Buildings A, B, C, D, and E will bring their dogs to the pool area between the hours of 9 and 12. On Sunday August 11th Buildings F, G, and H will bring their pets to the pool area at the same hours. If, by chance you can't make either one of those days, contact us - (Solemar – 936-546-8063) and arrangements will be made to register your dog.

It should be noted that if you lease your unit, your tenant is required to register any dogs they have. Please follow up with your tenants to insure they have registered their pets. **Failure to do so will become the homeowner's responsibility.**

TO PREPARE FOR YOUR REGISTRATION:

Keep food away from the pet for at least one hour prior to registering him. If you have multiple dogs, they must be separated for more than one hour before testing to avoid cross contamination of the DNA. If you have more than one dog, bring only one at a time to the pool area for registration.

The process is then very simple. Bring your dog to the pool area where you will be provided a sterile swab for you to collect his DNA. This involves rubbing the inside of the dog's cheek with a swab – which is similar to a Q-tip. You are given a little green tag for your pet to wear, and a picture of him (and you, so dress pretty) will be taken. We will submit the DNA sample and we will register your dog(s) with the DNA World Pet Registry.

Once the registration is complete, on August 14th, several people will go over the entire property carefully gathering any old feces anywhere and disposing of it. You are cordially invited to accompany them as they clean the entire complex. From that time on, any feces found on the property will be submitted to and checked for a DNA match by Biopetvetlab and the offending pet owner will be fined \$200. If you fail to pay the fine or if you fail to register your pet, you will be fined \$100 for the first month and \$200 for every month thereafter until you reach the foreclosure threshold. I'm sure the fines seem exorbitant – until you compare them with the City of Dallas. Due to the extreme toxicity in dog waste, they are really cracking down on offenders.

Payment of the registration fee is expected at the time of registration in the amount of \$30 per dog, and the check needs to be made payable to Springmont HOA. **No cash is accepted.** The HOA doesn't make anything from this since the collection kits cost us \$30 each.

Ladies and Gentlemen we are very serious about this program. Most of our dog owners are very responsible, but a few basically turn their dogs loose and eventually they come back after leaving a pile of dog poop somewhere on the property. We will discuss leash laws later.

When this program becomes operational, everyone in the complex is assured that they will seldom encounter pet waste on the premises. Non-pet owners are tired of seeing, smelling, and stepping in dog waste, and all will welcome the clean and green environment. Everyone will know that the dog owners are working towards the same goal – doing their part to keep the grounds clean. Additionally, dog owners will never again be wrongfully accused of leaving pet waste behind. We believe this will do more to clean up the grounds at Springmont than virtually anything. If you have any question whatsoever about the implementation of this program, please contact us. Thank you for your cooperation in this matter and for helping us keep a beautiful and clean community for our residents.

Very sincerely yours,

Phil Fairchild – Property Manager
Springmont Homeowners Association

PS: The following links are interesting and very informative.

www.usatoday.com/news/science/2002-06-07-dog-usat.htm

dfw.cbslocal.com/2012/12/05/234075/

Filed and Recorded
Official Public Records
John F. Warren, County Clerk
Dallas County, TEXAS
11/11/2014 08:58:29 AM
\$122.00



A handwritten signature, likely of John F. Warren, the County Clerk, is written in black ink next to the official seal.

201400288174

**FIRST SUPPLEMENT TO THE
NOTICE OF FILING OF DEDICATORY INSTRUMENTS
FOR
SPRINGMONT OWNERS ASSOCIATION, INC.
[Covenant Enforcement and Fining Policy]**

STATE OF TEXAS §
 § **KNOW ALL MEN BY THESE PRESENTS:**
COUNTY OF DALLAS §

THIS FIRST SUPPLEMENT TO THE NOTICE OF FILING OF DEDICATORY INSTRUMENTS FOR SPRINGMONT OWNERS ASSOCIATION, INC. (this "First Supplement") is made this 26th day of JUNE, 2018, by Springmont Owners Association, Inc. (the "Association").

WITNESSETH:

WHEREAS, U.S. Home Corporation, a Delaware corporation ("Declarant"), recorded an instrument entitled "Condominium Declaration for Springmont Condominiums" on or about July 16, 1982, as Instrument No. 198201399949 at Volume 82139, Page 2714 *et seq.* of the Real Property Records of Dallas County, Texas (the "Declaration"); and

WHEREAS, the Association is the property owners' association created by the Declarant to manage and regulate the condominium development established by the Declaration, which development is more particularly described in the Declaration; and

WHEREAS, Section 202.006 of the Texas Property Code provides that a property owners' association must file each dedicatory instrument governing the association that has not been previously recorded in the real property records of the county in which the condominium is located; and

WHEREAS, on or about November 11, 2014, the Association recorded a Notice of Filing of Dedicatory Instruments for Springmont Owners Association, Inc. as Document No. 201400288174 of the Real Property Records of Dallas County, Texas (the "Notice"); and

WHEREAS, the Association desires to supplement the Notice with the dedicatory instrument attached hereto as **Exhibit "A"**, pursuant to and in accordance with Section 202.006 of the Texas Property Code; and

WHEREAS, the Association desires to replace any prior adopted policy governing the the enforcement of the restrictive covenants and imposition of fines with the Covenant Enforcement and Fining Policy, respectively, attached hereto as **Exhibit "A"**; and

NOW, THEREFORE, the dedicatory instrument attached hereto as **Exhibit "A"** is a true and correct copy of the original and is hereby filed of record in the Real Property Records of Dallas County, Texas, in accordance with the requirements of Section 202.006 of the Texas Property Code.

IN WITNESS WHEREOF, the Association has caused this First Supplement to the Notice of Filing of Dedicatory Instruments for Springmont Owners Association, Inc. to be executed by its duly authorized agent as of the date first above written.

SPRINGMONT OWNERS ASSOCIATION, INC.

A Texas non-profit corporation

By: Barbara Garbacz

Name: Barbara Garbacz

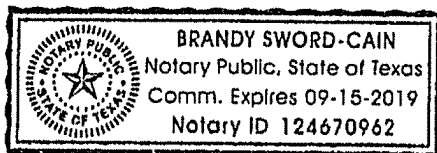
Title: Secretary

ACKNOWLEDGMENT

STATE OF TEXAS §
 §
COUNTY OF DALLAS §

BEFORE ME, the undersigned authority, on this day personally appeared Barbara Garbacz, Secretary of Springmont Owners Association, Inc., known to me to be the person whose name is subscribed to the foregoing instrument and acknowledged to me that (s)he executed the same for the purposes and consideration therein expressed on behalf of said corporation.

SUBSCRIBED AND SWORN TO BEFORE ME on this 26 day of June, 2018.



[Signature]
Notary Public, State of Texas
9-15-2019
My Commission Expires

Exhibit “A”

A-1 Covenant Enforcement and Fining Policy

SPRINGMONT CONDOMINIUMS

COVENANT ENFORCEMENT AND FINING POLICY

WHEREAS, Article V, Section 5.3 of the Amended and Restated By-Laws of Springmont Owners Association, Inc. (the "Amended Bylaws") provides that the Board of Directors of Springmont Owners Association, Inc. (the "Association") has the power to administer and enforce the covenants, conditions, restrictions, uses, limitations, obligations and all other provisions set forth in the Declaration, as well as to enforce compliance with rules and regulations adopted by the Board; and

WHEREAS, Article III, Section 3.11 of the Condominium Declaration for Springmont Condominiums (the "Declaration") provides that owners must comply strictly with provisions of the Declaration, the Amended Bylaws and the decisions and resolutions of the Association (collectively the "Community Documents"), and the failure to comply shall be grounds for an action to recover sums due for damages or injunctive relief, or both; and

WHEREAS, Section 82.102(a)(12) of the Texas Uniform Condominium Act ("TUCA") authorizes the Board to impose reasonable fines for violations of the Association's Condominium Documents; and

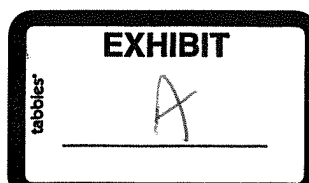
WHEREAS, Section 82.102(a)(7) of TUCA authorizes the Board to adopt and amend rules regulating the use, occupancy, leasing or sale, maintenance, repair, modification, and appearance of units and common elements, to the extent the regulated actions affect common elements or other units; and

WHEREAS, the Board desires to establish procedures for the enforcement of the Condominium Documents.

NOW, THEREFORE, IT IS RESOLVED that the following systems, procedures and practices are established for the levying of fines against Owners, their tenants, guests, lessees, occupants and invitees (the "Enforcement Policy").

1. Exempted Actions/Remedies. This Enforcement Policy and the procedures herein apply to fines and charges for property damage; they do not apply to other enforcement remedies, including but not limited to, if the Association files suit seeking a temporary restraining order or temporary injunctive relief, files suit to collect a regular or special assessment or seeks foreclosure under the Association's lien, is pursuing a self-help remedy, or in the event the Association temporarily suspends an Owner's right to use the Common Elements. This Enforcement Policy and the procedures herein do not apply to collection of assessments and related costs and charges.

2. Generally. The steps and procedures contained in this Enforcement Policy serve as a general outline of the procedures to follow for the levying of fines and imposition of



property damage charges; provided, however, that this Enforcement Policy does not apply to collection of assessments and related costs and charges. The Association is not bound to follow the exact procedures in every enforcement matter except as required by the Condominium Documents or TUCA. The procedures in this Enforcement Policy are not intended to constitute a prerequisite or condition precedent to the Association's ability to pursue a remedy to enforce against any violation or to obtain any legal relief or remedy except as required by TUCA.

3. Establishment of Violation. Any condition, use, activity or improvement which does not comply with the provisions of the condominium documents shall constitute a "Violation" under this Enforcement Policy for all purposes.

4. Notice of Violation. Upon discovery of a Violation, the Board or its delegate may, but is not obligated to, forward to the Owner of the Condominium Unit in question written notice via regular first-class mail or via postcard of the discovery of a Violation(s) (the "Courtesy Notice"). The Board is not required to send a Courtesy Notice and instead may move directly to sending the Notice of Violation as described below. The Association will forward to the Owner of the Condominium Unit in question written notice of the Violation(s) by certified mail (the "Notice of Violation"). A Notice of Violation is not required if the alleged violator received a Notice of Violation relating to a similar Violation within twelve (12) months of the current Violation and was given a reasonable opportunity to cure the prior Violation. In such event, the Board may impose sanctions as authorized by this Enforcement Policy without notice to the Owner other than the Notice of Sanction/Fine described below. A Notice of Violation is also not required if TUCA does not require it. The Notice of Violation, if required, will state the following:

- a. The description of the Violation, including any property damage caused by the Owner.
- b. A description of the action required to cure the Violation and a reasonable time period to cure the Violation in order to avoid the fine, unless the Owner was given notice and a reasonable opportunity to cure a similar violation within the preceding twelve (12) months.
- c. The amount of the proposed fine or damage charge.
- d. The recipient may, on or before thirty (30) days from the date of the Notice of Violation, request a hearing before the Board to contest the fine or damage charge.

5. Notice of Fine/Charge. A formal notice of the fine or damage charge (the "Notice of Fine/Charge") will be sent by the Association to the Owner not later than the fourteenth (14th) day after the date of levy.

6. Request for a Hearing. If the Owner timely requests a hearing, the hearing shall be held in executive session of the Board or its delegate affording the alleged violator a reasonable opportunity to be heard.

7. Referral to Legal Counsel. Where a Violation is determined or deemed determined to exist and where the Board deems it to be in the best interests of the Association to refer the Violation to legal counsel for appropriate action, the Board may do so at any time. Such legal action may include, without limitation, sending demand letters to the violating Owner, seeking injunctive relief against the Owner to correct or otherwise abate the Violation, and/or filing suit to collect fines and/or costs incurred to cure Violations or repair property damage. Attorney's fees and all costs incurred by the Association in enforcing the Condominium Documents and administering this Enforcement Policy shall become the personal obligation of the Owner and a lien on the Condominium Unit.

8. Fines. Subject to the provisions of this Enforcement Policy and/or the Condominium Documents, the imposition of fines will be based upon the following schedule. If the Violation is not cured within fourteen (14) days after Owner's receipt of notification of same, a subsequent fine will be levied.

Initial Fine:	\$ 50.00
Second Fine:	\$ 75.00
Third Fine:	\$ 100.00
Fourth and Subsequent Fines:	\$ 200.00

However, violations of the Association's parking restrictions will be subject to a \$100.00 fine for each violation.

9. Other Remedies/Sanctions. The Board may impose any sanctions listed in the Condominium Documents and provided by Texas law in order to enforce compliance with the Condominium Documents.

10. Notices. Unless otherwise provided in TUCA or this Enforcement Policy, all notices required by this Enforcement Policy shall be in writing and shall be deemed to have been duly given if delivered personally and/or if sent by United States Mail, first-class postage prepaid, to the Owner at the address which the Owner has designated in writing and filed with the Secretary of the Association or, if no such address has been designated, to the address of the Condominium Unit of the Owner.

a. Where the Board has actual knowledge that an enforcement action would directly affect a third party (e.g., a tenant or a neighbor) or involves a Violation by a party other than the Owner, notices required under this Enforcement Policy may be given, if possible, to such third party in addition to the Owner. Notwithstanding any notice sent to a third party, the Owner remains the party responsible for compliance with the requirements of the Condominium Documents. The Board shall accept a response from any such third party only upon the written direction of the Owner of the Condominium Unit upon which the Violation exists.

b. Where the interests of an Owner have been handled by a representative or agent of such Owner or where an Owner has otherwise acted so as to put the Association on notice that its interest in a Condominium Unit has been and are being handled by a representative or agent, any notice or communication from the Association pursuant to this Enforcement Policy will be deemed full and effective for all purposes if given to such representative or agent.

c. Where an Owner transfers record title to a Condominium Unit at any time during the pendency of any procedure prescribed by this Enforcement Policy, such Owner shall remain personally liable for all costs and fines under this Enforcement Policy. As soon as practical after receipt by the Association of a notice of a change in the record title to a Condominium Unit which is the subject of enforcement proceedings under this Enforcement Policy, the Board may begin enforcement proceedings against the new Owner in accordance with this Enforcement Policy. The new Owner shall be personally liable for all costs and fines under this Enforcement Policy which are the result of the new Owner's failure and/or refusal to correct or eliminate the Violation in the time and manner specified under this Enforcement Policy.

11. Cure of Violation During Enforcement. An Owner may correct or eliminate a Violation at any time during the pendency of any procedure prescribed by this Enforcement Policy. Upon verification by the Board that the Violation has been corrected or eliminated, the Violation will be deemed no longer to exist. The Owner will remain liable for all costs and fines under this Enforcement Policy.

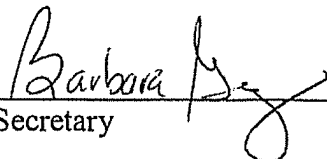
12. Definitions. The definitions contained in TUCA, the Declaration and Amended Bylaws are hereby incorporated herein by reference.

13. Severability and Legal Interpretation. In the event that any provision herein shall be determined by a court with jurisdiction to be invalid or unenforceable in any respect, such determination shall not affect the validity or enforceability of any other provision, and this Enforcement Policy shall be enforced as if such provision did not exist. Furthermore, in the event that any provision of this Enforcement Policy is deemed by a court with jurisdiction to be ambiguous or in contradiction with any law, this Enforcement Policy and any such provision shall be interpreted in a manner that complies with an interpretation that is consistent with the law. In the event any provision of this Enforcement Policy conflicts with the Declaration, the Declaration controls.

IT IS FURTHER RESOLVED that this Enforcement Policy is effective upon adoption hereof, to remain in force and effect until revoked, modified or amended.

This is to certify that the foregoing resolution was adopted by the Board of Directors at a meeting of same held on June 26, 2018, and has not been modified, rescinded or revoked.

DATE: 6-26-18


Secretary

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**Filed and Recorded
Official Public Records
John F. Warren, County Clerk
Dallas County, TEXAS
07/09/2018 08:55:52 AM
\$58.00
201800180305**





201500014435

CT 1/2

SPRINGMONT OWNERS ASSOCIATION, INC.**MANAGEMENT CERTIFICATE**

STATE OF TEXAS §
 §
COUNTY OF DALLAS §

KNOWN ALL MEN BY THESE PRESENTS:

Pursuant to the provisions of Section 82.116 of the Texas Property Code, the undersigned property owner's association hereby records this Management Certificate for Springmont Owners Association, Inc.

1. The name of the Condominium is: Springmont.
2. The name of the Association is: Springmont Owners Association, Inc.
3. The location of the Condominium is: 5590 Spring Valley Road, Dallas Texas 75254.
4. The recording data for the Declaration is as follows: See (i) Condominium Declaration for Springmont Condominiums, filed for record on July 16, 1982, and recorded on July 19, 1982, at Instrument No. 198201399949, Volume 82139, Page 2714 *et seq.*, of the Condominium Records of Dallas County, Texas, (ii) Supplemental Declaration of Merger and Annexation for Springmont Condominiums Phase II, filed for record on August 24, 1982, and recorded on August 25 1982, at Instrument No. 198201666111, Volume 82166, Page 0003 *et seq.*, of the Condominium Records of Dallas County, Texas, (iii) Supplemental Declaration of Merger and Annexation for Springmont Condominiums Phase III, filed for record on August 24, 1983, and recorded on August 26 1983, at Instrument No. 198301688748, Volume 83168, Page 0629 *et seq.*, of the Condominium Records of Dallas County, Texas, and (iv) Supplemental Declaration of Merger and Annexation for Springmont Condominiums Phase IV, filed for record on August 26, 1983, and recorded on August 29 1983, at Instrument No. 198301691892, Volume 831696, Page 4611 *et seq.*, of the Condominium Records of Dallas County, Texas,
5. The name and mailing address of the person or entity managing the Association: Solemar Associates, P.O. Box 111364, Carrollton, Texas 75011, Telephone Number: (936) 546-8063, Email Address: solemarassociates@yahoo.com.
6. The contact information for resale certificate requests: Please send requests to Solemar Associates at either of the following: Telephone Number: (936) 546-8063, Email Address: solemarassociates@yahoo.com..
7. Other information the Association considers appropriate: Prospective purchasers are advised to independently examine the Declaration, Bylaws, and all other governing documents of the Association, together with obtaining an official Resale Certificate and performing a comprehensive physical inspection of the unit/home and common elements, prior to purchase.

IN WITNESS WHEREOF, this Management Certificate is hereby executed by a duly authorized Officer of the Springmont Owners Association, Inc., on the 4th day of December, 2014.

**SPRINGMONT OWNERS
ASSOCIATION, INC.**

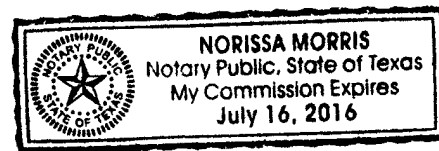
By: _____

Beau Hanna, President of the Association

STATE OF TEXAS §
 §
COUNTY OF DALLAS §

This instrument was acknowledged before me on this 4th day of December 2014, by Beau Hanna, President of Springmont Owners Association, Inc., a Texas property owners association, on behalf of said property owners association, as the designated representative of said Texas property owners association.

Norissa Morris
Notary Public in and for the State of Texas



AFTER RECORDING PLEASE RETURN TO:
The Blend Law Firm, P.C.
14131 Midway Road, Suite 1240
Addison, Texas 75001

Filed and Recorded
Official Public Records
John F. Warren, County Clerk
Dallas County, TEXAS
01/20/2015 01:14:25 PM
\$30.00



CONDOMINIUM ASSOCIATION MANAGEMENT CERTIFICATE

- 1 NAME OF SUBDIVISION Springmont
- 2 NAME AND ADDRESS OF ASSOCIATION Springmont Owners Association, Inc
% Principal Management Group
12700 Park Central Drive, Suite 600
Dallas, Texas 75251
- 3 RECORDING DATA FOR SUBDIVISION Instrument No 198201399949, Volume 82139, Page 2714,
Condominium Records, Dallas County, Texas
- 4 RECORDING DATA FOR ASSOCIATION DECLARATION
- NAME OF INSTRUMENT Bylaws for Springmont Owners Association, Inc
- RECORDING INFORMATION On or about July 19, 1982, Instrument No 198201399949,
Volume 82139, Page 2714, Condominium Records, Dallas
County, Texas, together with any other filings of records (if
any)
- 5 MAILING ADDRESS OF THE ASSOCIATION, OR NAME AND MAILING ADDRESS OF THE PERSON OR
ENTITY MANAGING THE ASSOCIATION
- Principal Management Group
12700 Park Central Drive, Suite 600
Dallas, Texas 75251
Phone (214) 368-4030
- 6 OTHER INFORMATION THE ASSOCIATION CONSIDERS APPROPRIATE

Prospective purchasers are advised to independently examine the Declaration, By-Laws, and all other governing documents of Association, together with obtaining an official Resale Certificate and performing a comprehensive physical inspection of the lot/home and common areas, prior to purchase

Signed this 4th day of MARCH, 2016

Springmont Owners Association, Inc

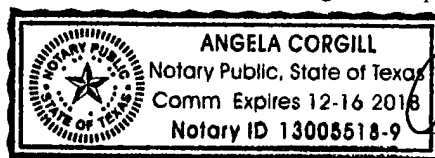
By

Mud Fen
Duly Authorized Agent

STATE OF TEXAS §

COUNTY OF DALLAS §

This instrument was acknowledged before me on March 4th, 2016, by
Mark Smith, duly authorized agent for Springmont Owners Association, Inc, on behalf of said
association



Angela Corgill
Notary Public, State of Texas

AFTER RECORDING RETURN TO
Principal Management Group
Attn Angela Corgill
12700 Park Central Drive, Suite 600
Dallas, Texas 75251

Filed and Recorded
Official Public Records
John F. Warren, County Clerk
Dallas County, TEXAS
04/18/2016 03:29:28 PM
\$26.00



A handwritten signature in black ink, appearing to be "JF2", is written over the seal.

201600101033

THE STATE OF TEXAS §
 §
COUNTY OF DALLAS §

**SPRINGMONT OWNERS ASSOCIATION, INC.
MANAGEMENT CERTIFICATE**

As Required by Section 82.116, Texas Property Code

NOTICE IS HEREBY GIVEN that the below property is controlled by a mandatory homeowner's association.

1. **EFFECT:** This instrument corrects, amends, restates, and entirely replaces all management certificates for the subdivision that were previously recorded in the Real Property Records of Dallas County, Texas, such as instruments recorded as Doc. No. 201500014435 recorded on January 20, 2015, and 201600101038 recorded on April 18, 2016.
2. **SUBDIVISION INFORMATION:** Springmont is an addition to the City of Dallas, Dallas County, Texas.
3. **DECLARATION INFORMATION:** Lots in Springmont are subject to the Condominium Declaration for Springmont Condominiums, recorded on July 19, 1982 as Instrument No. 198201399949, Volume 82139, Page 2714 *et seq.*, of the Property Records of Dallas County; the Supplemental Declaration of Merger and Annexation for Springmont Condominiums Phase II, recorded on August 25, 1982 as Instrument No. 198201666111, Volume 82166, Page 003 *et seq.*, of the Property Records of Dallas County; Supplemental Declaration of Merger and Annexation for Springmont Condominiums Phase III, recorded on August 26, 1983 as Instrument No. 198301688748, Volume 83168, Page 0629 *et seq.*, of the Property Records of Dallas County; Supplemental Declaration of Merger and Annexation for Springmont Condominiums Phase IV, recorded on August 29, 1983 as Instrument No. 198301691892, Volume 831696, Page 4611 *et seq.*, of the Property Records of Dallas County;
4. **PURPOSE:** The purpose of this Management Certificate is to provide information sufficient for a title company to correctly identify the development and to contact its governing association. It does not purport to identify every publicly recorded document affecting the development, or to report every piece of information pertinent to the development. No person should rely on this Management Certificate for anything other than instructions for contacting the association in connection with the transfer of title to a home in the development.
5. **NAME OF PROPERTY OWNERS ASSOCIATION:** Springmont Owners Association, Inc.

6. HOW TO CONTACT THE ASSOCIATION THROUGH ITS MANAGING AGENT:

Margie Maxwell

c/o Assured Association Management, Inc.

2500 Legacy Drive, Suite 220

Frisco, Texas 75034

Phone: (469)-480-8000

Fax: (469)-480-8080

Website: www.assuredmanagement.com

EFFECTIVE DATE: This certificate is executed to be effective as of the 1st day of January 2018.

SPRINGMONT OWNERS ASSOCIATION, INC.

a Texas Condominium Association

MARGIE MAXWELL c/o

ASSURED ASSOCIATION MANAGEMENT, INC.,

a Texas corporation, its managing agent

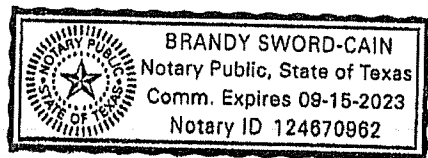
By: Margie Maxwell
Margie Maxwell, Executive Officer

ACKNOWLEDGEMENT

THE STATE OF TEXAS §
 §
COUNTY OF DALLAS §

BEFORE ME, the undersigned notary public, on this day personally appeared
Margie Maxwell, known to me to be the person whose name is
subscribed to the foregoing instrument and who acknowledged to me that he/she executed
the same for the purposes and consideration set forth therein and in the capacity therein stated.

SUBSCRIBED AND SWORN TO BEFORE ME, on this the 6 day of
April, 2020.



[Signature]
NOTARY PUBLIC IN AND FOR
THE STATE OF TEXAS

AFTER RECORDING PLEASE RETURN TO:

Assured Association Management, Inc.
2500 Legacy Drive, Suite 220
Frisco, Texas 75034

Filed and Recorded
Official Public Records
John F. Warren, County Clerk
Dallas County, TEXAS
04/23/2020 12:20:20 PM
\$34.00
202000105174

[Signature]

